

**LABOR AGREEMENT BETWEEN
THE CITY OF PORTLAND AND
THE AMERICAN FEDERATION OF STATE,
COUNTY, MUNICIPAL EMPLOYEES**



JANUARY 1, 2025 TO DECEMBER 31, 2027

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Preamble

This Agreement made and entered into between the City of Portland, Oregon, hereinafter called the City, and the American Federation of State, County and Municipal Employees, Local 189, for and on behalf of the Local Unions signatory hereto, hereinafter called the Union.

The provisions of this Agreement shall be applied equally to all employees in the bargaining unit without discrimination as to age, sex, marital status, sexual orientation, religion, race, color, creed, national origin, disability, gender identity, source of income, familial status, or political affiliation. The Unions shall share equally with the City the responsibility for applying this provision of the agreement. Nothing in this section, however, shall be construed to prohibit actions taken because of bona fide job qualifications.

All references to employees in this agreement designate all people and wherever the male or female gender is used, it shall be construed to include all employees, regardless of gender identity.

Article 1. Recognition

- 1.1 The City recognizes AFSCME Local 189 as the exclusive representative for all employees of the City in all classifications contained in Schedule A of this agreement, as defined in sections 1.1.1, 1.1.2, 1.1.3, 1.1.5, 1.1.7 and 1.2 below excluding employees described in 1.1.4, 1.1.8, 1.1.9 and 1.1.10 of this Article.

- 1.1.1 **Probationary Period.** For the purpose of this labor agreement, probation is defined as a six (6) month period from the date of hire, excluding any period of time off exceeding one (1) week in duration. For example, an employee hired on January 7 would complete their probationary period at the end of their shift on July 7. Notwithstanding the above, the probationary period for Police Records Specialist, Police Identification Technician, Residential Plans Examiners, Commercial Plans Examiners, Water Distribution Worker Trainee, Business Systems Analysts, and Water Operations Mechanic Apprentices shall be nine (9) months from the date of hire. The

probationary period may be extended for a period not to exceed three (3) months by mutual agreement between the City, the Union and the affected employee. Water Operations Mechanic Apprentices will not serve a Promotional Probationary Period at the completions of their apprenticeship.

- (A) Notwithstanding Article 1.1.1 above, failure or inability by an apprentice or trainee to successfully complete the designated apprenticeship or training program may result in termination from the apprentice or training program even after completion of the probationary period.
- (B) All employees upon hire will receive an offer letter specifying the official start date and end date of their probation. The City shall provide a copy of the offer letter to the Union. During their probationary period employees will be given a minimum of two written evaluations with a copy to the employee and the Union at approximately, mid-term, and one month prior to the end of probation. If the probationary period is extended for any reason, one additional evaluation will be complete during the extension. Nothing in this section shall limit management's right to terminate the probationary period.
- (C) The City shall provide the appropriate Union with a copy of an employee's resignation, layoff, or separation notice.

1.1.2 Regular/Probationary Employee. Any employee who has regular or probationary status as provided by the Human Resources Administrative Rules and who works in a position budgeted on a yearly basis in a job classification contained in Schedule A.

1.1.3 Regular Part-Time Employee. Any employee whose employment is for less than full-time in a job classification contained in Schedule A. Permanent part-time employees will be hired from the Civil Service register and will be given the first opportunity according to their standing on such register to

become regular employees. The probationary period of regular part-time employees will be nine (9) months from date of hire and step pay increases will be computed on the basis of hourly equivalence.

- (A) Regular part-time employees will be paid in accordance with Schedule A and will receive fringe benefits, except Health and Life Insurance, on a pro- rated basis, half if the employee works less than seventy-two (72) hours per pay period, full benefits if the employee works seventy-two (72) hours or more in the pay period.
- (B) Regular part-time employees will be eligible for Health and Life Insurance coverage as provided in section 18.2.2.
- (C) Regular Part-time employees will accrue seniority on the basis of regular hours paid and approved unpaid leaves of absences in their classification and shall not bump permanent full-time employees.

1.1.4 **Casual Employees.** Casual Employees as defined herein shall be excluded from the bargaining unit covered by this Agreement. A Casual Employee shall be defined as an employee who is employed for a limited duration of up to 860 hours in a calendar year.

- (A) The City may employ Casual Employees at any time of the year. However, a Casual Employee may only be employed for up to 860 hours in a calendar year. After working for 860 hours, a Casual Employee must have a break in service of at least ninety (90) days before they may be reemployed. Except for continuation overtime, regular employees in the work unit will be offered overtime before Casual Employees.
- (B) Casual Employees will normally be assigned to common labor jobs and will not normally be upgraded to classifications covered by the contract except on an

incidental basis as required by day-to-day workflow. Nothing in this Agreement will be construed to limit the City's right to hire additional personnel in emergencies beyond the City's control.

- 1.1.5 **Temporary Employee.** Any employee employed in a full-time budgeted position in a classification in this bargaining unit without regular status with the City. Recognition under this section shall not detract from any rights or benefits already pertaining to the employee, by virtue of their regular status in some other classification with the City. Contract rights for temporary employees are as provided in Schedule "B".
- 1.1.6 The City shall make available to the Union, on a monthly basis, a listing of all employees appointed to positions in classifications contained in Schedule A. The list shall include all temporary appointments.
- 1.1.7 **Limited Duration Employees.** Any appointment in a classification contained in Schedule A without regular status to the City. A Limited Duration appointment is an appointment to an identified classification through the Civil Service; and
- (A) To a permanent budgeted position that is vacant due to the incumbent's leave of absence and when the replacement employee's services will be needed for a period of two years or less; or
 - (B) A Limited duration position identified for a project with a specific work assignment intended for a limited term with an identifiable endpoint not to exceed twenty-four (24) months.

Standard Limited Duration appointments do not exceed twenty-four (24) months. A limited duration appointment may be extended beyond twenty-four (24) months up to an additional twelve (12) months after written notice has been provided to the Union and the appointment is for a

project or assignment that is limited to a specific time or limited funding with a maximum duration of thirty-six (36) months. If there is a bona-fide reason for an additional extension of the Limited Duration Appointment beyond the thirty-six (36) months, the extension must be mutually agreed to.

Limited Duration employees may be released at any time without a showing of just cause.

This type of appointment is distinguished from a temporary appointment by the longer length of time and appointment through the Civil Service Process. Employees with a limited duration appointment receive the same vacation and sick leave, holiday pay, service credit, retirement and healthcare benefits as regular employees covered by this Agreement. Limited duration employees are not eligible for reemployment under the Administrative Rule on Reinstatement or Layoff and Recall under Article 15 of this Agreement.

Limited Duration employees shall be compensated in accordance with the wages set in Schedule A.

A limited duration appointment may not result in the replacement of a regular employee. If an employee in a limited duration appointment is subsequently permanently appointed to the classification, seniority begins the date of the permanent appointment although credit may be given for all accumulated limited duration service in that classification in the previous three (3) years for the purpose of determining salary range and anniversary date.

- 1.1.8 Employees certified to another bargaining unit.
- 1.1.9 Supervisory and confidential employees as defined by ORS 243.650.

1.1.10 Other employees excluded by written mutual agreement between the parties.

- 1.2 **Rehired Retirees.** The City may reemploy a retired PERS or OPSRP employee pursuant to State Law and the Human Resources Administrative Rule on retirees. Rehired Retirees will be able to request current hours from bureau timekeepers.

Rehired Retirees are, at all times, “At-Will” employees and the only Articles in the Collective Bargaining Agreement that shall apply to rehired retirees are Article 1: Recognition, Article 2: Union Security, Article 3: Dues Checkoff and Schedule A.

1.2.1 Any retiring employee in good standing who provides the Bureau sixty (60) or more days’ notice of their intent to retire shall be offered the opportunity to work as a Rehired Retiree for a period of at least ninety (90) days commencing immediately after their official retirement date. This opportunity shall not apply to any employee who retires under a Voluntary Retirement Incentive Program. “Good standing” shall be defined as an employee who has no documented discipline in the two (2) years prior to the date of retirement.

1.2.2 The City and the Union agree that either party may terminate this subsection at any time for any reason upon thirty (30) days written notice to the other party.

- 1.3 Prior to any merger or consolidation of any division, bureau or department by the City with any government agency, the City shall notify and consult with the Unions affected. Such notification will be given at least thirty (30) days prior to the merger or consolidation or, in the event that thirty (30) days' advance notice is not available, at such time as the City has knowledge of the impending merger or consolidation.

Article 2. Union Security

- 2.1 All employees covered by this agreement may voluntarily join the union as a member.

- 2.2 Notifications of change in authorization—adding or dropping membership status—submitted by the Union to the City will be effective with the next paycheck so long as the list of employees authorizing dues deductions is received by the end of business the Friday before the City's Time Submission deadline. Notifications received after the deadline will be effective at the start of the next pay period. The City shall furnish the Union with the Payroll Processing Calendar by December 20th each year for the following calendar year.
- 2.3 The Union assumes responsibility for repayment of monies found to be illegally deducted by the City under this Article.
- 2.4 Employees who are current members of the Union at the signing of this Agreement who sign a Union membership card subsequent to the signing of this Agreement shall maintain their Union membership. However, there shall be a window period each year that is identified in the Union membership application during which the employee may drop their membership without penalty.
- 2.5 The Union agrees that it will indemnify and save the City harmless from all suits, actions, and claims against the City or persons acting on behalf of the City arising out of the City's faithful compliance with the terms of this Article, provided the City notifies Union in writing of such claim and tenders the defense to Union.

Article 3. Dues Checkoff

- 3.1 The City agrees to deduct fees and dues from the pay of employees covered by this Agreement in accordance with the terms of the contract between the employee and the union. The amounts deducted shall be transmitted monthly to the Union.
- 3.2 The Union shall have sole responsibility to determine who is on the list of authorized deductions and the City will rely upon the list from the Union as an accurate list of employees that have authorized such deductions. The City will direct all Union membership questions or requests to change membership status to the Union Membership Administrator.

- 3.3 The total amount of the monies deducted for regular union dues and shall normally be transmitted to the unions within ten (10) calendar days after the payroll deduction is made.
- 3.4 The performance of these services is at no cost to the Union.
- 3.5 The Union agrees that it will indemnify and save the City harmless from all suits, actions and claims against the City or persons acting on behalf of the City arising out of the City's faithful compliance with the terms of this Article, provided the City notifies the Union in writing of such claim and tenders the defense to the Union.

Article 4. Management Rights

- 4.1 The City shall exercise sole responsibility for management of the City and direction of its work force except as expressly limited by the terms of this agreement.

Article 5. Productivity

- 5.1 It is the intent of the parties to achieve and sustain maximum productivity per employee during the term of this agreement. In return to the City for the wage rates and working conditions herein provided and consistent with the principle of a fair day's work for a fair day's pay, the Union pledges its agreement with the objective of achieving the highest level of employee performance and efficiency consistent with safety, good health and sustained effort. Management may provide rewards to employees for improvements in productivity, however, such rewards shall not change the employee's pay rate as contained in Schedule A.

Article 6. Job Security and Outside Contracting

- 6.1 The City is committed to providing regular budgeted positions for bargaining unit members and does not intend to privatize its workforce. No employee shall lose employment as a result of contracting out work performed by bargaining unit employees. Any reduction of employees as the result of contracting out will be done through attrition or transfer of affected employees to comparable employment. This does

not preclude layoff for other reasons including the termination of regular status employees for just cause.

6.2 Any work which is performed by bargaining unit employees shall not be contracted out except pursuant to Article 6.3 and its subsections.

6.2.1 Bargaining unit work will not include work that the bargaining unit employees do not possess the skills or have the appropriate equipment to perform. Notwithstanding the above, the parties acknowledge that work processes and methods evolve. The City shall continue to provide employees with the necessary equipment and training to perform work that is a logical and reasonable advancement of the work covered by this agreement, provided the money to pay for the necessary equipment and/or skills is either within the bureaus' budget and they are authorized to spend it in this manner, or the expenditure is approved by City Council. Article 6.2 through 6.5 shall not apply to donations of property, facilities, services, or materials to any bureau or to partnerships with any bureau whose operating agreements may provide for them.

6.2.2 Article 6.2 through 6.5 shall not apply to projects designated for the City's Prime Contractor Development Program.

6.3 The City may contract out work under the following circumstances.

6.3.1 **Cost Savings:** The ability to perform the work at a reduced cost that is not achieved by lower wages and benefits paid by a contractor.

(A) If the solicitation is initiated based solely upon cost savings, the City will provide all available cost comparison data to the Union(s) concerned. Available cost comparison data must include City employee base wages and City employee and employer contributions in health, welfare, and pension costs for the classification(s) that would normally perform the work. The purpose of this subsection is for comparison only and shall not be

considered a requirement upon a third-party contractor to provide these wages.

- 6.3.2 **Emergency:** An emergency is an event beyond the reasonable control of the City and for which the City could not continuously maintain adequate resources to address. Examples of events that could be an emergency include, but not limited to, acts of nature, weather- related emergencies, pandemic, civil unrest, loss of critical infrastructure, and mass displaced persons. The City may immediately hire contractors to address the emergency.
- 6.3.3 **Statutory Requirement:** Work that is required to be contracted out by federal or state statute.
- 6.3.4 **Extreme Risk:** Work that has the potential to cause serious injury or death or serious damage to property which the City has historically contracted out. When the extreme risk is acute, the City may immediately hire contractors to address.
- 6.3.5 **Capital Improvement Projects:** Work that is funded with CIP funds, warranted upon completion, or awarded through Guaranteed Maximum Price.
- 6.3.6 **Warranted:** Work provided by the vendor or manufacturer at no additional cost.
- 6.3.7 **Proprietary:** Work required to be performed by the vendor or manufacturer due to the proprietary nature of the product involved.
- 6.3.8 **Urgent:** Work that is extremely time sensitive and requires immediate response, which existing staffing level is unable to respond to without substantial disruption of workload assignment.
- 6.3.9 **Limited:** Work that requires no bidding under City Code (less than \$25,000 per job).

6.3.10 **Peak Load:** Work during a peak load, which existing staffing level is unable to cover in a timely manner without substantial disruption of workload assignment.

6.4 **Notice.** The City shall provide the Unions with access to all procurement requests submitted to Procurement Services for Construction and Goods and Services contracts that are solicited using the formal and informal/intermediate contract solicitation processes.

6.4.1 The formal contract solicitation process applies to Construction/Public Improvement projects with an estimated value above \$100,000 and Goods and Services projects with an estimated value above \$250,000. The informal/intermediate contract solicitation process applies to Construction/Public Improvement projects with an estimated value between \$25,001 and \$100,000 and Goods and Services projects with an estimated value between \$25,001 and \$250,000.

6.4.2 The Union shall have a reasonable opportunity to discuss projects subject to the formal contract solicitation process. A “reasonable opportunity” shall mean that the Union may request a discussion of such contracts with applicable bureau staff members not more than ten (10) calendar days from the date the project transmittal form is sent to the Union. If no request is made within ten (10) calendar days, the Union have waived their right to discuss the matter. If requested in a timely manner, the Union and the City must meet within ten (10) calendar days of receiving the Union’s request for a meeting.

6.4.3 The City will post solicitations for Goods and Services contracts over \$250,000 and Construction/Public Improvement contracts over \$100,000 on the City of Portland Online Procurement system website for a minimum of fourteen (14) calendar days.

6.4.4 The City shall provide the Union with an after-the-fact quarterly report showing the following contracted services:

professional services, repair and maintenance services, non-capital improvements, and miscellaneous services.

6.4.5 The Union may request a quarterly meeting with bureau staff to discuss information provided under 6.4. The first quarterly meeting in each fiscal year shall be designated as “the Annual Meeting”. The purpose of the Annual Meeting shall be to discuss bargaining unit work contracted out in the preceding fiscal year.

6.5 If a grievance is filed under Article 6.4 and its subsections, the sole remedy under these sections shall be to provide the required notice.

Article 7. Protection of Bargaining Unit Work

7.1 The City agrees that the primary function of supervisors is the supervision of employees and not the performance of the work of the employees they supervise. Accordingly, the City agrees that supervisors and other employees of the City who are not members of AFSCME Local 189 bargaining unit will not perform, as their primary duties, Local 189 bargaining unit work on an ongoing basis, except:

- (A) In emergencies arising out of unforeseen circumstances which call for immediate action to avoid interruption of operations including Peak Load and Urgent as defined in Article 6;
- (B) In the instruction or training of employees, including demonstrating safety and the proper method to accomplish the task assigned.
- (C) Nothing in this article supersedes the language in Article 6.

7.2 (a) As part of its public responsibility, the City may participate in or establish public employment programs to provide employment and/or training for and/or services to the City by various segments of its community. Such programs may result in individuals performing work for the City that is considered bargaining unit work. Such programs include, but are not limited to, youth training and/or employment programs, adult training and/or employment programs, vocation rehabilitation programs,

work study and student intern programs, court-ordered community service programs, volunteer programs and other programs with similar purposes.

(b) The City shall have the right to implement new internship or related public employment programs or expand its current programs beyond what exists as of the signature date of this Agreement, but where such new or expanded program implementation involves bargaining unit work and results in a departure from existing practice, the City shall give thirty (30) days' advance written notice to the Union of such and upon receipt of a written request from the Union thereafter, the City will engage in discussions with the Union on concerns raised by the Union. Creation of an internship or related public employment program shall not result in;

- 1) a layoff of regular employees covered by this Agreement, or
- 2) the elimination of a regular budgeted position covered by this Agreement that recently had been occupied by a regular employee that performed the specific bargaining unit work now being or about to be performed by an individual under one of the City's public employment programs.

Article 8. Work Schedules and Workweeks

- 8.1 A standard workweek shall consist of forty (40) hours with the same starting and quitting time for each working day and include consecutive days off.
- 8.2 In the event the starting or quitting time of any existing schedule for a non-probationary employee or employees participating in an official apprenticeship or training program is changed, the Union will be advised. Notice of change in shift starting times or days off will be given a minimum of two weeks' notice in writing.
- 8.3 The standard workweek for non-shift employees shall normally be Monday through Friday. However, it is recognized that City services and operations may require schedules other than Monday through Friday.

The City will not utilize such other schedules unnecessarily, and such other schedules may be made subject to the grievance procedure should the Unions consider any such schedule as not required by the reasonable needs of City Operations.

- 8.4 In the event any employee's workdays are changed so that the employee does not have two consecutive days off between schedules, the first day of the changed weekly schedule shall be paid for at time and one half.
- 8.4.1 Notwithstanding the workweek set forth in 7.1 above, the City and the Union involved may, by mutual agreement, initiate a workweek consisting of four (4) consecutive ten (10) hour days with three (3) consecutive days off. To address specific needs of the Bureau or employee, the parties may agree to a schedule with two consecutive days off and one non-consecutive day off. Overtime will be paid in accordance with Article 10 of this Agreement.
- 8.4.2 It is further agreed, the City and the Union involved may by mutual agreement, initiate an altered bi-weekly work schedule consisting of four (4) consecutive nine (9) hour days, with three (3) consecutive days off and five (5) consecutive workdays consisting of four (4) consecutive nine (9) hour days, and one (1) eight (8) hour day with two (2) days off. To address specific needs of the Bureau or employee, the parties may agree to a schedule with two consecutive days off and one non-consecutive day off. Overtime rates will be paid in accordance with Article 9 of this Agreement.
- 8.4.3 The City and the Union involved agree that either party may terminate a schedule created under 8.4.1 or 8.4.2 at any time for any reason upon thirty (30) days written notice to the other party. The employee(s) will then revert to a shift schedule established by the bureau under Article 8.1.
- 8.5 It is agreed that for FLSA purposes, the City may designate a standard workweek for employees that is different than the City's payroll period.

Once such a workweek is established for a group of employees, it shall remain fixed, unless changed for legitimate business reasons.

For example: The workweek for the bi-weekly work schedule described in Article 8.4.2 consisting of four (4) consecutive nine (9) hour days, with three (3) consecutive days off and five (5) consecutive workdays consisting of four (4) consecutive nine (9) hour days, and one (1) eight (8) hour day with two (2) days off would cut the eight hour day in half, so that four hours go into each workweek for a total of 40 per week.

- 8.6 Employees working a second or third shift shall receive a shift differential in accordance with the provisions of Article 9.
- 8.7 Except in case of emergency, all employees' work schedules shall provide for a fifteen (15) minute rest period during each one half (1/2) shift. Rest periods shall be scheduled at the middle of each one half (1/2) shift whenever feasible.
- 8.8 **Emergency Work Scheduling.** Changes of an employee's scheduled working hours (i.e., shift) which do not affect the employee's working days and days off can be made by the City without the notice required under 8.2, in case of an emergency situation; provided, however, that the first shift on the new schedule shall be paid at the overtime rate. Such change may remain in effect during the duration of the emergency.
 - 8.8.1 Employees shall maintain their right to their regular shift and may be transferred to their normal shift at the end of the emergency without penalty, provided they have at least an eight (8) hour rest period. If the rest period is not provided, then the City shall pay the employee the overtime rate for the first shift of their regular schedule.
 - 8.8.2 Emergency shall be defined as a situation beyond the control of the City for which the City could not pre-plan. Emergencies shall not include those day-to-day situations which require immediate action which have been normally performed by bargaining unit employees.

8.8.3 Any disagreement between the City and the Union on what constitutes an emergency shall be taken up at Level Two (Article 37.3.5) of the grievance procedure.

8.9 Employees working any of the allowed work shifts and weeks may, by mutual agreement between management and the employee, and to meet the needs of the City or the employee, occasionally adjust their hours of work by working fewer hours than scheduled on one day and making up for those hours by working an equivalent number of additional hours on another day in the same FLSA work week. Such scheduling adjustments must be pre-approved and will not result in overtime pay outside of the provisions outlined in Article 8.9.2 and 8.9.3. Each bureau will make the final determination if flexible work schedules will be offered within their division, or work groups, based upon their operational and business needs.

8.9.1 The following provisions of the contract shall not apply when an employee is approved for flexing their work schedule: 8.1, 8.2, 8.4, 9.1, 9.2, 9.5-9.5.2.

8.9.2 If an employee working a flexible schedule works more than 40 hours in an FLSA workweek, the employee shall accrue overtime at the rate of one (1) and a half (1/2) times their regular rate of pay.

8.9.3 Article 10.2 shall only apply when an employee is unable to flex their schedule due to FLSA workweek restrictions.

8.9.4 Flexing of schedules will not be permitted on any of the City Paid Holidays outlined in Article 16.1.1.

8.10 **Telework.**

8.10.1 Per Human Resources Administrative Rule 4.04, employees covered under this agreement may be eligible to enter into a telework agreement. Should the provisions of HRAR 4.04 change, the City and Union will meet to negotiate over the impact of the changes in accordance with ORS 243.698.

8.10.2 If the City determines that a position's hybrid or remote work location status is incompatible with the duties of the work assignment or the operational needs of the work unit, an employee will be given at least six weeks' notice of a return to office. Routine hybrid/remote work may require an employee be present at a City facility, however Management will provide as much advance notice as possible.

Article 9. Shifts

9.1 Shifts shall be defined by the following starting times:

Shift	Starting no earlier than:	and no later than:
Day	5:00 AM	11:59 AM
Second/Swing	12:00 PM	6:59 PM
Third/Nights	7:00 PM	4:59 AM

Shift work shall be permitted in all classifications, without restrictions, on the following basis:

- 9.2 **Day Shift.** Present practices as to day shift starting times shall be maintained provided that the City may change such starting times (subject to requirements of Article 8.2) with notice to the Union. Notwithstanding the above, the day shift for the Office of Management and Finance Distribution Technician and P&D Customer Service Representatives shall begin within the hours of 6:00 A.M. to 10:00 A.M. Changes may be made outside the above listed hours upon mutual agreement between the City and the Unions.
- 9.3 Employees scheduled on a second, third or relief shifts shall receive the following shift differential in addition to their regular hourly rate as set forth in Schedule A for all hours worked on the second, third or relief shift:

Shift	Eff. Upon Ratification
Second/Swing	\$2.25
Third/Graveyard	\$3.50
Relief	\$3.50

- 9.3.1 The swing shift differential does not apply to part-time employees whose shift may begin after noon but ends by 5:00 p.m.
- 9.3.2 Shift differential shall be adjusted to reflect the annual increase in the Consumer Price Index for Urban Wage Earners and Clerical Workers (CPI-W) for West-Size A (as measured by the annual change in the index between the 2nd half of the two (2) years previous and the 2nd half of the previous year), published by the Bureau of Labor Statistics, U.S. Department of Labor.
- 9.4 Employees transferred from a regularly scheduled day shift to another, unless relieved from work at least ten (10) hours before their new shift, shall be paid overtime for the first such new shift worked. This section shall not apply to those employees covered under sub section 9.5 of this Article. Each employee shall be assigned to a regularly scheduled workweek and shift unless changes are made by mutual agreement between the City and the affected Union.
- 9.5 **Relief Shifts.** Relief shifts shall be defined as:
- 9.5.1 Any workweek schedule which includes multiple shifts with a maximum of three (3) day shifts.
- 9.5.2 Any workweek schedule which includes multiple starting times of more than two (2) hours difference within the starting times listed in paragraph 8.1 above.
- 9.5.3 The provisions of Article 8.5 do not apply to employees who are part-time.
- 9.6 The shift premiums provided for in 9.3 above shall not apply when on vacation, sick leave or any other paid leave of absence. The shift premiums of 9.3 shall be paid to any employee working full overtime shifts; however, such premiums shall be used in computing the overtime rate, as required by Federal Law.
- 9.7 **Lunch Periods.** Lunch Periods shall be scheduled by the City, and will

allow the employee either thirty (30) minutes, forty-five (45), or one (1) hour time off without pay to eat lunch. The current length of lunch periods may be extended or reduced by mutual agreement between the City and the Unions.

9.7.1 No employee shall be required to begin their lunch period sooner than one (1) hour before nor later than one (1) hour after the middle of the employee's scheduled shift. In the event it is not possible to begin a lunch period during such two (2) hour period, the employee shall receive time and one half (1 ½) for the employee's lunch period and shall also be allowed a reasonable opportunity to eat their lunch on the City's time. Lunch periods other than those listed above may be arranged by mutual agreement between the City and the Union.

9.7.2 Notwithstanding the above, when different lunch periods exist in the same unit, the parties shall meet upon the request of either party to seek a mutually agreeable uniform length lunch period for that unit. If the parties are unable to arrive at agreement, the City may implement its last proposal. The Unions may grieve that the implemented lunch period does not meet the reasonable needs of City operations.

9.7.3 Where needs of multiple shift operations dictate that employees remain on the work site and be on call for duty during their lunch period, the employees will be provided a twenty (20) minute lunch period on the City's time.

9.8 Employees on swing or graveyard shift in the Portland Police Bureau who are required to attend mandatory in-service training may by mutual agreement with management adjust their starting and quitting time or take paid or unpaid leave for the first few hours of the shift in order to have at least ten (10) hours between shifts. (For example, an employee who works from 2345 to 0800 will attend mandatory in-service training instead from 0800 to 1700. The employee may, with management approval, adjust their next shift to 0300 to 1115 or take paid or unpaid leave to enable them to have a 10-hour relief period. A swing shift employee in a 4-10 schedule who normally works 1345 to

2400 may, with management approval, work 1145 to 2200 or take paid or unpaid leave to have a 10-hour relief period before the start of the in-service training the following day.)

- 9.8.1 Nothing in Article 9.8 is intended to avoid current practices regarding the payment of overtime to employees who attend mandatory in-service training off their regular shift.

Article 10. Overtime

- 10.1 **Overtime Rate.** Overtime shall be paid at the rate of one and one half (1 ½) times an employee's established hourly rate as set forth in Schedule A. Overtime rates shall apply to work performed by an employee outside of or in excess of their established shift hours, or on their days of rest or in excess of forty (40) hours in their FLSA workweek.
- 10.2 Overtime rates shall apply to work performed by an employee before the regular starting time and after the regular quitting time of the shift on which that employee is regularly employed unless work performed outside the regular workday results from unpaid absence during the regular workday for personal reasons. Nothing in this Article limits an employee's ability to flex their time in accordance with Article 8.9.
- 10.3 Employees who are exempt from the overtime pay requirements of Fair Labor Standards Act (FLSA) in the Business Systems Analyst I, II, III, the Risk Specialist I, and the Portland Police Bureau Internal Affairs Investigator classifications shall earn overtime at the rate as described in Article 10.1 for hours worked in excess of forty (40) hours in an FLSA workweek. These employees are not subject to the provisions of Article 10.8 and any hours not worked such as vacation, compensatory time, and sick leave do not count in the forty (40) hour calculation, however, City-paid holidays will count in the forty (40) hour calculation.
- 10.4 Employees may elect pay or compensatory time for time worked under this Article. Any compensatory time will be subject to the provisions of Article 10.12 with the exception of Housing classifications, who may only earn compensatory time.

- 10.5 For the purpose of this article, officially recognized holidays for which the employee is paid, vacation and compensatory leaves and sick leave will be counted as time worked.
- 10.6 Shift premiums will be included in overtime computations as required by Federal Law.
- 10.7 Internal Affairs Investigators may substitute compensatory time in lieu of pay for standby or on-call time.

Internal Affairs Investigators will receive a minimum of two (2) hours overtime to perform mandatory interviews outside their regular work shift.

- 10.8 **Overtime Equalization.** Overtime work shall be offered equally among employees within the same job classification within each work unit, provided the employee is available and qualified to perform the work required.

- 10.8.1 A record of overtime hours worked or offered to each employee shall be maintained in each work unit for each month and available upon request. In work units consisting of five (5) or more employees within the same classification, such information shall be posted. The equalization of overtime shall be reviewed no less than each three (3) month period starting July 1, of any year. For the purpose of equalization, overtime offered shall be counted the same as overtime worked. By mutual agreement the City and Union may meet to discuss perceived systematic inequities that may be occurring.

- 10.9 **Remedy.** Employees who believe that they have not received a fair share of available overtime offers has an assertive duty to address the matter with their immediate supervisor and union representative for the purposes of review and consideration. Corrective action will be taken through future assignments of overtime if a bona fide inequity exists in the employee's opportunity to receive a fair share of the overtime offers available in the employee's work unit.

- 10.10 It is further provided that the City shall schedule known weekend overtime by the end of the fourth (4th) day of an employee's workweek. Except where conditions beyond the City's control require the cancellation of scheduled weekend overtime, scheduled weekend overtime shall be canceled prior to the end of the fifth (5th) day of an employee's workweek. Notification and cancellation times for scheduled overtime will be adjusted appropriately for employees working an alternate schedule.
- 10.11 The City will attempt to avoid situations which require employees to work more than sixteen (16) consecutive hours. Employees will be compensated at the rate of two (2) times their established hourly rate for the hours worked in excess of sixteen (16) consecutive hours.
- 10.12 **Compensatory Time Off.** Employees who receive compensatory time shall have the option of pay at the applicable overtime rate or compensatory time computed at the applicable overtime rate for the overtime hours worked up to a total accrual of eighty (80) hours at any given time.
- 10.12.1 Compensatory time off will be arranged by mutual agreement between employees and their supervisors. However, the taking of compensatory time off will not be unreasonably denied.
- 10.12.2 In the event that an employee transfers from one bureau to another, any compensatory time will be paid or used before such transfer or, at the employee's request, accrued compensatory time shall be transferred, along with necessary funds to cover such compensatory time, to the bureau receiving the transferred employee.
- 10.12.3 Employees may receive once per fiscal year, at their request, a payout of any amount of accrued compensatory time.
- 10.12.4 Employees required to work around the clock (three shifts) and required to continue work through their regular assigned shift, shall continue to receive pay at the overtime rate. Any hours over sixteen (16) will be paid at the double time rate.

- 10.12.5 If an employee has worked 16 hours or more in the 24-hour period prior to their next regular shift and needs to rest, the bureau may excuse the employee from all or part of their regular shift. Under such circumstances employees will remain in paid status and will not be required to use accrued leave.
- 10.13 Employees who are required to work more than two (2) hours before or beyond their regular shift shall be allowed a thirty (30) minute lunch period on the City's time, to be taken not later than the expiration of such two (2) hour overtime period. In the event employees work for more than four (4) hours beyond such two (2) hour overtime period, they shall receive an additional thirty (30) minute lunch period on the City's time for each additional four (4) hour overtime increment.
- 10.14 Notwithstanding section 9.4, the City may require the least senior qualified employee(s) in the classification within the work unit or a qualified temporary employee be available to work overtime.
- 10.15 There shall be no pyramiding of overtime rates.
- 10.16 **Qualified Citywide Closures.** Employees directed to physically report to or remain in-person at a City facility or jobsite during qualified Citywide Closures will be compensated with one hour of deferred holiday leave for every regularly scheduled hour they work during such Citywide Closures. Qualified Citywide Closures are those ordered by the Mayor of the Mayor's designee and includes direction for all other employees to remain at home or work from home and will stay in effect till the Mayor or the Mayor's designee declares the closure is over. After an employee earns one hundred (100) hours in a calendar year of deferred holidays under this subsection of Article 10, they shall not accrue more deferred holidays for qualified Citywide Closures, but then Article 10.16.1 will apply and Article 10.16.2 will apply in the event of a sustained Citywide Closure.
- 10.16.1 Employees whose deferred holiday bank is full, will be given the equivalent time in pay. Employees who earn a deferred holiday within 30 days of the end of the calendar year will be allowed to carry over said holiday to the subsequent year's

deferred holiday bank.

10.16.2 In the event of a sustained qualified Citywide Closure greater than fourteen (14) calendar days, the City and the Union will meet and discuss the impacts of the ongoing closure by the fifteenth (15) calendar day and Article 10.16.1 will apply up to twenty-one (21) calendar days.

10.16.3 Power and/or Internet Outages During Citywide Closure.

- a. Employees impacted by a power or internet outage during City closures when they would otherwise be expected to use individual leave accruals to make up lost work time will receive a full day's pay.
- b. In the event the Mayor makes the decision to close City offices and buildings and fully remote or hybrid employees are directed to work from home, and an employee experiences a power and/or internet outage that prevents the employee from teleworking, then the employee will remain in a paid status for their regularly scheduled shift during the duration of the outage. If an employee's power or internet is restored during their workday, the employee is expected to continue working remotely for the remainder of their regularly scheduled shift.
- c. The City agrees to allow paid time in qualifying circumstances for a maximum of forty (40) hours, regardless of how many events of outage occur.

Article 11. Reporting Pay and Minimum Pay

11.1 Employees who are scheduled to report for work on their regular schedule, and who present themselves for work as scheduled, but where work is not available, or made available for them, shall be excused from duty and paid at the employee's regular rate for the remainder of their regularly scheduled shift. The City shall not be required to work and compensate an employee in accordance with this section after an employee has completed sixteen (16) consecutive

hours of work. The guarantee of pay for the remainder of the regularly scheduled shift shall be inapplicable if employees fail to report at the scheduled starting time or otherwise are unable to perform their normal duties for the full shift.

- 11.2 Employees called to return to work before the employee's next work shift, and such call is after the employee has left the City's premises at the end of their last shift, shall be paid for a minimum of three (3) hours at the rate of one and one half (1 ½) times their regular rate. The "return to work" will commence at the time the employee receives the call and agrees to return to work. The "return to work" shall end when the employee leaves the last designated reporting location at the conclusion of the work.
 - 11.2.1 If an employee is called back to work, either under a call to return to work, a standby agreement or otherwise, and works less than three (3) hours and is called out again within the three (3) hours, they will not receive a second minimum. If an employee is subsequently called back to work after the initial (3) three hours has elapsed, they would then be eligible for an additional (3) three hour minimum.
 - 11.2.2 Employees who have been asked to work overtime at the end of their shift shall receive overtime pay but not call back pay.
 - 11.2.3 When the employee is called back and is required to work eight (8) or more consecutive hours outside of their normal working shift, the employee shall be paid a shift differential that corresponds with the time of the call to return to work.
 - 11.2.4 Work Related Communication. If a City supervisor or an employee at the direction of a supervisor makes a work related telephone call to an employee during their off hours, and the employee is required as a result to perform work for the City in excess of five minutes, the employee will be compensated at one and one-half (1 ½) times their regular rate of pay for the actual time spent performing the work, rounded up to the nearest fifteen (15) minutes. Work shall be defined

to include legally compensable tasks performed for the benefit of the City remotely via electronic means. Phone calls to an employee for the purpose of asking if the employee is available to perform extra work are not compensable.

- 11.3 Any employee required to work a split shift shall be paid at the overtime rate, as defined in 10.1 for not less than eight (8) hours of such shift (exclusive of any overtime worked in addition thereto). Time worked on the employee's sixth and seventh day shall not be covered by this paragraph.
- 11.4 Before the City requires bargaining unit employees to "standby" during their off-duty hours, the City and Union will meet and determine the appropriate compensation.
- 11.4.1 If the City has not worked out a "standby" agreement with the Union and requests an employee to "standby", the employee shall receive .25 hours pay or comp time at the straight time rate for each one (1) hour of "standby" time. For the purposes of this section, "standby" shall be defined as a requirement that an employee remain available and fit for duty during non-working time, with City communication device(s) and/or at a phone number left with the bureau such that the employee can report for work within a period of one half (1/2) hour, absent unusual circumstances.
- 11.5 If an employee is called back on an emergency during ice or snow conditions, their overtime will commence at the time they receive the call, with a maximum of one (1) hour's travel time permitted. The end of the call back shall be when the employee leaves the designated reporting location at the end of the call back.
- 11.6 All mileage allowances must be preauthorized. Employees are authorized special mileage allowances under the following conditions: When such employees use their own transportation to report directly to a work site other than their normal reporting place, they will file a mileage pay request for any miles that are in excess from their current home address to their normal reporting place. Mileage payments will

be at the applicable IRS rate for using personal vehicles on City business. Payment will be made for the excess distance both going to work and returning home. Employees are required to keep their supervisors advised of their current home address and number of miles from their home to their regular reporting place.

- 11.7 Employees required to use their personal automobile in the course of employment will be paid mileage reimbursement at the applicable IRS rate.

Article 12. Working Out of Classification

- 12.1 For the purposes of this Article, working out of classification shall mean the temporary assignment of a willing, available, and qualified employee to perform substantially the duties and responsibilities of a higher classification.
- 12.2 In the event that there is not a willing employee, the City may require the least senior qualified employees or a qualified temporary employee to work out of classification. In the event that there is not a least senior qualified employee in the work unit, the City may require the least senior qualified employees or a qualified temporary employee in the bureau to work out of classification.
- 12.3 Employees may be worked out of classification when:
 - 12.3.1 Temporary vacancies occur in any classification.
 - 12.3.2 Emergency conditions exist and enough personnel are not available in a classification to take care of such emergency.
 - 12.3.3 For legitimate training purposes.
 - 12.3.4 Any reason approved through a Memorandum of Understanding between the Union(s) and the City.
- 12.4 This provision shall be inapplicable to the selection of employees to perform non bargaining unit work. Subject to agreement with the Union, the City may reserve upgrade opportunities for legitimate

training purposes. Otherwise, when selecting employees to work in higher classifications, as provided in 12.3.1 through 12.3.4:

12.4.1 The City and the Union have agreed that when filling short-term vacancies in a higher class, the offer of such work shall be made first to employees who are on the appropriate eligible list. The City further agrees that it will make every effort to distribute such assignments as equally as possible among those on the eligible lists.

12.4.2 When no employee is available from the appropriate eligible lists, the City shall select from among the three available senior qualified employees in the division or bureau, who are willing to accept the appointment, until a list of qualified candidates is certified.

(A) New City employees shall not be eligible for temporary upgrades under 12.2 and 12.3 until they have completed their probationary period. This shall not preclude the City from using new employees for temporary upgrade if no other employees are available under 12.2 and 12.3.

12.4.3 Employees appointed temporarily to work out of classification will be expected, for the term of such appointment, to substantially perform the duties normally performed by the employees they are replacing in that classification. However, employees temporarily appointed to non-represented positions will not administer discipline or have access to personnel files.

(A) The City will notify the Union when a bargaining unit member is upgraded to a non-represented position. When an employee is assigned to work out of class in a non-represented classification, the employees' pay rate shall be percent (5%) above their current rate of pay or the entry rate of the higher classification, whichever is greater. Employees temporarily appointed to non-represented positions who are also Union Shop Stewards

shall be required to cease operating in the capacity of a Shop Steward for the duration of said appointment.

- (B) Employees appointed temporarily to a non-bargaining unit position shall not be subject to this agreement for the duration of such appointment.

12.5 When employees are assigned to a higher classification, the employees' pay rate shall be the step within the higher classification range which represents at least a three percent (3%) increase over the employees' regular rate in their former classification, provided that in no event shall the rate of pay exceed the maximum rate for the higher classification as provided in Schedule A. When a permanent employee is temporarily assigned to a higher paid classification, credit shall be allowed for all prior temporary service in that classification for determining the appropriate service step of the pay range for that classification.

12.5.1 If upgraded in a workday to a higher classification, an employee will receive the rate applicable to the higher classification for a minimum of one (1) hour. If upgraded longer than one (1) hour, the employee will receive four (4) hours; eight (8) hours if assigned to such higher classification over four (4) hours in the workday. If the employee works an alternate schedule and performs the upgraded work all hours of the day, they will receive the higher rate of pay for all hours worked.

12.5.2 When it is necessary to work employees as provided in 12.3.1 and 12.3.2 in a lower classification, the City shall pay the employee their regular rate for their permanent classification.

12.5.3 When a classification within a department or bureau has been filled by temporary assignment for a period of thirty (30) days, the City and the Unions shall meet to determine if there is a vacancy for a full-time position. "Full time" as used in this Article means a position which has been budgeted on an annual basis, or to the end of the fiscal year.

- 12.6 The City agrees that it will conduct timely examinations to provide the necessary eligible registers to fill the vacancies which occur in the classifications covered by this agreement. No vacancy in a full-time position covered by this agreement shall be filled on a temporary basis for longer than twelve (12) months unless the Bureau of Human Resources is unable to provide the necessary eligible register. This provision does not require the City to fill budgeted vacant positions.

Article 13. Seniority

- 13.1 In the matter of selections of jobs or opportunities to work on new jobs, processes or job locations and the selection of work shifts and vacation periods within a given classification, within a bureau, department, or division thereof, the City shall prefer those employees who have permanent Civil Service status with the greatest length of service with the City within a given classification subject to the following conditions. In calculating an employee's permanent work unit seniority, it shall be the employee's total uninterrupted time in such unit, including the time spent in unsuccessful probation in another unit.

- 13.2 **Shift Selection.** In multiple shift operations, employees within each classification shall have a right to select their work shift on the basis of their seniority within a bureau or division thereof and competing only with employees covered under this Agreement on the following basis:

13.2.1 After the employee's original selection of a work shift, changes may be made only when a vacancy occurs on another shift; provided, however, if the City eliminates any employee's shift, such employee shall have the right to exercise their seniority to select one of the existing shifts.

13.2.2 Shift trades or individual shift changes may be made by mutual agreement between the employees and the City, provided such changes are posted and there are not objections. However, any such mutually agreed changes shall not be subject to the overtime provisions of this agreement.

13.2.3 Group shift changes may be made by mutual agreement

between the Unions and the City. However, any such mutually agreed changes shall not be subject to the overtime provisions of this agreement.

- 13.2.4 When shift changes are made which are beyond the control of the City, the overtime provisions of this contract will be waived.
- 13.2.5 **Job Bidding.** The City reserves the right to organize work and assignments. Bureau managers will consult with the Union prior to implementation of a reorganization to discuss proper application of this Article. Whenever the City determines that it will fill a vacancy in a new or existing job, present employees shall be given the first opportunity on the following basis: the City may choose from among the two (2) most senior qualified bidders for 25% of all vacancies occurring within a bureau in a Fiscal Year. Prior to posting, the City must identify a posting as one which will be subject to this provision. If the vacancy involved is a new job process within a classification, first choice shall be given to employees in that classification within the division where the vacancy occurs. Second choice shall be given employees within the bureau in which the vacancy occurs. Qualifications and seniority within the division (first choice) or bureau (second choice) shall be the determining factors. "Qualifications" means the ability to meet the performance requirements and job-related skills required for the job in question, but not based solely on Civil Service certification.
- 13.2.6 Whenever an opening occurs in any job classification in an existing work assignment, employees within that classification shall have an opportunity to bid on such vacancy based on their seniority if they are qualified to do the work as defined in 13.3.1 above. First choice shall be given to employees within the division where the vacancy occurs. Second choice shall be given to employees within the bureau in which the vacancy occurs.

- 13.2.7 A bureau and the Union may mutually agree to implement an alternative method of filling vacancies identified in 13.3.1 and 13.3.2, subject to the Director of Human Resources approval. The agreement can cover a work unit(s), a classification(s), or an entire bureau. Any such agreement will be made in writing and will be copied to the Union prior to its implementation.
- 13.2.8 The overtime provisions of this Agreement will not apply as a result of employees exercising their seniority rights under 13.3.1 and 13.3.2.
- 13.2.9 **Limitations on Bidding.** If an employee receives discipline subsequent to a written reprimand (i.e., another written reprimand), or a suspension or demotion, or a Performance Improvement Plan which takes the place of a second written reprimand or higher-level discipline, the City may, at its sole discretion, suspend the employee's ability to bid on any job assignments for one year.
- 13.2.10 **Employees in Conflict.** If a situation develops which involves two or more employees who are in conflict with one another, the bureau will document the conflict and meet with the employees and the union and attempt to jointly resolve the conflict. If no resolution can be mutually agreed upon, the bureau may move the employee to vacant job assignment in another work unit within the bureau. If there are no vacancies in another work unit, the bureau may seek volunteers willing to trade assignments with the employee(s) in conflict. If there are no volunteers, the bureau may, at its sole discretion, move the employee(s) as a last resort.
- 13.2.11 **Injured Worker Return to Work.** When a vacancy under 13.2.1 and 13.2.2 occurs, the City and the Unions may by mutual agreement exempt the job from the bidding procedures of this Article so that the job may be utilized to employ a worker returning from Industrial Accident leave.

- (A) The parties jointly recognize the desirability of returning an injured worker, whose condition is not medically stationary, to some form of available work at the earliest possible time consistent with the ability of the worker to return as certified by the treating physician. Employees may be assigned work other than their regular job as soon as released to do so by the treating physician. Positions filled by an injured worker on jobs designed to reasonably accommodate an injured worker shall not be subject to the bidding procedure specified in this agreement.
- (B) Injured workers whose conditions are medically stationary will be given the opportunity to return to their original job as provided in section 13.2.11 (C). If the injured worker's condition is permanent partial disability, the City will make reasonable effort to accommodate such condition and to return the injured worker to available and suitable work.
 - (i) The City shall notify the Union(s) at the earliest stage of efforts to place injured workers into available and suitable positions.
 - (ii) If placement efforts do not result in the return to work of the injured worker, the matter shall be referred to a joint labor/management committee for the purpose of providing recommendations and advice to the Human Resources Director and the Risk Manager on the worker's placement including, but not limited to, the effectiveness of any bureau- wide or City-wide placement activities or other issues relating to the return to work of the injured worker.
 - (iii) The joint committee will also be charged with a review of current practices and issues relating to injured workers and provide recommendations and

advice to the Human Resources Director and Risk Manager on program operations relating to injured workers. This committee shall consist of equal numbers of management and Union representatives. Union participants will be appointed by the District Council of Trade Unions and management participants by the Bureau of Human Resources and Risk Management.

- (C) A job which is vacant by reason of a compensable injury will be treated as a temporary vacancy for the first eighteen (18) months. Such jobs may be filled by appointment and is not subject to bidding. During this period, injured workers who have received a full release will be returned to their former job on request. Employees displaced by the return of an injured worker will be entitled to bump pursuant to their seniority and classification. After eighteen (18) months, employees who are absent due to compensable injury shall be entitled to bump junior employees within their classification.

13.3 Posting. All vacancies which create job opportunities under Article 13 shall be posted in the work location of the affected employees. Job opportunities shall be posted for a period of five (5) working days. Each posting shall contain the shift and days to be worked and a brief description of the duties and responsibilities to be performed at the time of vacancy in addition to who to contact for more information. The posting shall also include any special qualifications for the job and, if applicable, the requirement that an employee must commit to remaining in the assignment due to on-the-job or formal training requirements for up to two (2) years before bidding to another assignment. It shall also contain the date the transfer is to take effect. However, the date of transfer shall be no later than thirty (30) days after the first date of posting. The transfer to the bid position may be made earlier or later than the date in the posting, upon mutual agreement between the City and the employee. Applicants may be required to perform other functions which they are qualified to perform. Employees shall bid in writing on such opportunities according

to the provisions of this section and such bid shall be made by the sixth (6th) working day after the first day of posting. Probationary employees are not allowed to bid on other job opportunities for the duration of their probationary period.

13.3.1 Evaluations. Employees who fill vacancies under the provisions of 13.3 and fail to qualify in the new job during a ninety (90) day evaluation period that will include a minimum of one (1) interim and one (1) final written performance evaluation, will be returned to their former position in the division or bureau if it is vacant. If the employee's former position is not vacant, they will be placed in a vacancy in their classification elsewhere in the bureau. If there is no vacancy in the bureau, the employee will be returned to their former position in the division or bureau. Failure by management to provide the written evaluations within the ninety (90) day evaluation period will indicate the employee's successful completion of the evaluation period.

13.3.2 Lateral Transfers. Employees may request a lateral transfer to another Bureau by notifying the Bureau of Human Resources of their desires. Lateral transfers to vacant, budgeted positions, within or between bureaus within a classification at the request of the employee will be limited to one (1) per year. However, in the event that an employee does not pass the evaluation period provided for in 13.3.1 of this Agreement, the one (1) year limit on lateral transfers shall be waived.

13.3.3 Bid Trades. An employee may "trade" a bid work assignment within a shift subject to management approval. Such trades do not require posting or approval of the Union or other employees in the work units involved. However, any such mutually agreed upon trades shall not be subject to the overtime provisions of this agreement and the employees who trade waive their ability to bid to new assignments for two years.

13.3.4 Within seven (7) working days after the closing of the bidding procedure, the City shall award the bid, in writing, to the successful bidder. After an employee has received written notification that they were the successful bidder, such employee shall be required to honor such bid.

13.4 Seniority shall continue and accumulate during approved leaves of absence in accordance with the provisions of the City Charter and the Bureau of Human Resources Rules and Regulations, except that seniority shall be frozen after eighteen (18) continuous months of absence for the purposes of vacation and job bidding.

13.5 The City agrees to make available to the Union, upon request, copies of any personnel list the City maintains regarding seniority or classification changes.

13.6 **Special Projects & Assignments.** Notwithstanding any other article or section of this contract, the City may designate certain Special Projects and Assignments under the limitations listed in 13.6.1 and 13.6.2.

13.6.1 **Special Projects.** A bureau may identify a project for a period of no more than one (1) year and assign employee(s) to that project for its duration. Any employee(s) so assigned will have the right to return to their originally bid work unit and cannot be involuntarily re-assigned for at least eighteen (18) months. Employees assigned to a special project continue to accrue seniority in their previous work unit and may bid on future assignments during the project but will not move to that new assignment until the conclusion of the special project. The duration of the project may be extended by mutual agreement between the City and Union.

13.6.2 **Special Assignments.** A bureau may re-assign any employee to an assignment in another work unit for up to sixty (60) days. Any employee(s) so assigned will have the right to return to their originally bid work at the conclusion of the assignment or after sixty (60) days. Employees re-assigned continue to accrue seniority in their previous work unit and may bid on other

assignments during the special assignment but will not move to that new assignment until the conclusion of the special assignment. The duration of the special assignment may be extended by mutual agreement between the City and Union.

Article 14. Promotion

- 14.1 For the purposes of this article “promotions” shall be defined as the movement of an employee from a position in one job classification to a position in another job classification having a higher maximum salary rate. Employees promoted to another City classification are eligible to receive a three percent (3%) promotional increase, or the next step in the higher classification, whichever is greater, though not to exceed the top step of the new classification.
- 14.2 The City agrees that permanent or probationary employees within a bureau, shall have an opportunity for an interview for promotions within that bureau, subject to qualifications through proper Bureau of Human Resources procedures. “Qualifications” means the ability to meet the performance requirements and job- related skills required for the job in question, but not based solely on Civil Service certification.
- 14.3 When a City employee is promoted to a higher paid classification all working out of class credit shall be allowed for all prior service at the City in that classification for determining the appropriate service step of the pay range for that classification.
- 14.4 **Promotional Probationary Period.** For the purpose of this labor agreement, probation for promotion is defined as a six (6) month period from date of hire into the job classification, excluding any period of time off exceeding one (1) week in duration. Notwithstanding the above, the promotional probationary period for Police Records Specialist and Police Identification Technician shall be nine (9) months from the date of hire into the job classification. The promotional probationary period may be extended for a period not to exceed three (3) months by mutual agreement between the City, the Union and the affected employee.
- 14.4.1 All employees upon promotion will receive an offer letter

specifying the official start date and end date of their probation. During their promotional probationary period, employees will be given a minimum of three (3) written evaluations with a copy to the employee and to the Union at approximately one (1) month, mid-term, and one (1) month prior to the end of promotional probation. Nothing in this section shall limit management's right to terminate the promotional probationary period.

- 14.5 Any employee who is promoted and fails to pass the promotional probationary period for the new position shall have the right to be returned to their former classification and bureau based on seniority with all the rights and conditions of employment they had in their former classification.
- 14.6 Within six (6) months of promotion, any employee may elect to return to their former classification and bureau with no loss of rights and conditions of employment.

Article 15. Layoff/Recall

- 15.1 Layoff and recall of employees shall be as provided in this section.
- 15.2 **Seniority within Classification.** Seniority for purposes of layoff and recall shall be determined as the length of continuous service, from the date of permanent appointment to the classification listed in Schedule A. An employee will not lose classification seniority in previously held classifications as a result of accepting permanent or temporary appointment to another classification.
- 15.2.1 Continuous service shall be broken, and accrued seniority canceled, by resignation, dismissal, retirement, voluntary demotion, or movement to a classification not listed in Schedule A. However, seniority shall continue to accrue during layoff, disability retirement and approved leaves of absence.
- 15.2.2 Seniority in a job classification consolidated prior to March 17, 1988, shall be as determined at the time of consolidation by the Civil Service Board. Seniority in a job classification

consolidated after March 17, 1988, shall be equal to the total permanent service in all job classes included in the consolidated classification.

15.3 A tie in classification seniority shall be broken and greatest seniority determined by:

15.3.1 the highest score on the eligible list from which appointment was made; if a tie remains, then

15.3.2 the greatest length of service with the City; if a tie remains, then

15.3.3 the date and time of receipt of the application by the Human Resources Bureau; if a tie remains, then

15.3.4 by random draw

15.4 It is recognized from time to time that a seniority inequity may exist in multiple appointments in a bureau and classification where an employee is required by the City to delay the starting date in a new position. In those instances, the employee may submit to the Human Resources Director a request for the seniority adjustment within thirty (30) days of the delay.

15.5 **Reductions in Force.** In the event an employee's position is abolished, an employee shall be permitted to bump as follows, providing the employee is qualified to perform the work and meets the skills, knowledge and ability requirements for the position which have been designated in existing classification specifications by the Bureau of Human Resources:

15.5.1 into a vacancy in the same classification in the employee's assigned bureau with the same shift(s) and days off; if none, then, provided the affected employee has greater seniority:

15.5.2 into the position held by the least senior person within the employee's current classification within the bureau with the same shift(s) and days off; if none, then

- 15.5.3 into a vacancy in the same classification in the employee's assigned bureau; if none, then
- 15.5.4 into the position held by the least senior person within the employee's current classification within the bureau; if none, then
- 15.5.5 into a vacancy in the employee's current classification City-wide; if none, then
- 15.5.6 into the position held by the least senior person within the employee's current classification City-wide; if none, then
- 15.5.7 at the full-time employee's option, into a part-time or job share position in the employee's current classification, in the bumping sequence as defined in 15.5.1 through 15.5.6 above; if not, then
- 15.5.8 into previous classifications in inverse chronological order, where the employee held permanent status, in the bumping sequence as defined in 15.5.1 through 15.5.6 above.
- 15.5.9 A part-time or job share employee shall have bumping rights as described in 15.5 above except that a part-time or job share employee shall not displace a full-time employee.
- 15.5.10 No layoffs or reduction to a lower classification shall be executed so long as there are temporary employees serving within the affected classification.

15.6 Recall

- 15.6.1 Employees that have been transferred as a result of a layoff, shall have the right to transfer back to their former classification in their former bureau or division from which they were transferred, if the City is going to reemploy an employee in that classification in that bureau or division. The transfer back shall be on a strict City-wide seniority basis in the classification of the employee at the time the transfer

occurred.

- 15.6.2 The City shall re-employ laid off employees in a strict seniority basis for the classification from which the employee was laid off.
- 15.6.3 Employees shall be placed on a recall list for the classification from which layoff occurred, for five years, or removal as defined in 15.6.6 below, whichever occurs earlier.
- 15.6.4 The employee, by notifying the Bureau of Human Resources in writing, may become unavailable for recall no more than one specified period of time, except when documented medical evidence or lack of both personal and public transportation prevent the employee from being available for work.
- 15.6.5 On re-employment of laid off employees, the City shall notify employees by Certified Letter, with a copy to the Unions, mailed to their last known address. Employees shall have five (5) days to report their intentions to the City and shall report to work within two (2) weeks after notification to the City.
- 15.6.6 Reappointment to the classification from which the employee was laid off, or refusal of appointment by the employee to a bona fide recall, shall result in the employee's removal from the recall list and right to recall, except that an employee recalled to a bureau other than that of layoff may opt to remain on the recall list for the bureau from which they were laid off.
- 15.6.7 Employees who return to City service into a classification with a lower rate of maximum pay within six (6) months after layoff, but not through the recall process, will be placed at the rate of pay which represents the least or no reduction in pay for the employee, so long as the new rate is consistent with Oregon law.
- 15.6.8 Employees who return to City service into a classification with a higher rate of maximum pay within six (6) months after

layoff, but not through the recall process, will be placed at the rate of pay in accordance with Article 14.

Article 16. Holidays

16.1 The following holidays shall be recognized and observed as guaranteed paid holidays:

16.1.1 New Year's Day, Martin Luther King's Birthday, Presidents Day, Memorial Day, Juneteenth, Independence Day, Labor Day, Veteran's Day, Thanksgiving Day, the day after Thanksgiving, Christmas Day and every day appointed by the President or the Governor of the State of Oregon as a universal holiday for all citizens.

- (A) For Monday through Friday Schedules, whenever one of the above listed holidays falls on a Saturday, the Friday before said holiday shall be considered as a holiday and paid for as such. Whenever a holiday falls on Sunday, the following Monday shall be considered as a holiday and paid for as such.
- (B) For schedules other than Monday through Friday, when a holiday falls on an employee's first regularly scheduled day off, the day before the holiday shall be considered the holiday and paid as such. If the holiday falls on their second or more contiguous regularly scheduled days off, the first scheduled workday following the holiday(s) shall be considered the holiday and paid as such.
- (C) When a holiday is observed on an employee's regularly scheduled solitary day off, they will be permitted to defer the holiday with pay until a later date as described in section 16.2 below.
- (D) With management pre-approval, Police Internal Affairs Investigators may voluntarily report to work on an observed holiday. The employee will receive holiday

premium pay at their regular rate of pay and will be compensated at the overtime rate established in Article 10.1 for any work performed on the observed holiday. The employee may elect pay or comp time.

16.1.2 Notwithstanding the foregoing, those crews or work units which operate seven (7) days per week, twenty-four (24) hours per day, will observe Veterans Day on November 11, Christmas on December 25, New Year's on January 1, Juneteenth on June 19, and Independence Day on July 4.

16.1.3 In operations that run a night shift and the operation is shut down on a holiday by mutual agreement between the supervisor and the Union, employees will be allowed the choice of holiday eve as their holiday rather than the night of the holiday.

16.2 **Holiday Pay.** Eligible employees shall receive holiday pay equal to each employee's regularly scheduled work shift for each of the holidays set forth above on which they perform no work. (For example, an employee who is regularly scheduled to work an 8-hour shift will be paid 8 hours holiday pay; an employee regularly scheduled to work a 10-hour shift will be paid 10 hours holiday pay.) In addition to an employee's holiday pay, they shall be paid the overtime rate for any holiday they are required to work. However, if an employee is regularly scheduled to work on a holiday and works in a 24-hour and/or 7-day per week operational group, they will be permitted to defer the holiday with pay until a later date. An employee under this section can accumulate no more than ten (10) deferred or postponed holidays. Deferred or postponed holidays will be taken at a time mutually agreeable to the City and the employee. Deferred or postponed holidays will be used prior to the vacation time, but not prior to vacation over the max. The employee will endeavor to schedule the deferred or postponed holiday within the calendar year it accrues. The language of this section applies to all letters of agreement attached to this contract.

16.2.1 Full-time employees who are on work schedules other than

eight (8) hours per day, five (5) consecutive days per week will receive full vacation and sick leave accrual for each of the observed holidays for which they are entitled to be paid.

- 16.2.2 An eligible employee shall be any employee who has been an employee of the City at least one (1) day prior to the holiday.
- 16.2.3 If a holiday is observed during an employee's vacation period, the employee shall be paid for such holiday, and it shall not count against the employee's accumulated vacation leave.
- 16.2.4 If employees are on sick leave and a holiday is observed, they shall be paid for such holiday, and it shall not count against their accumulated sick leave.
- 16.2.5 **Holiday Pay Exclusions.** Holiday pay under this article does not apply to employees receiving third party compensation under any leave claims including but not limited to long-term disability benefits, workers compensation, the City's catastrophic leave program, State's disability programs, and State's Paid Family Leave programs.

16.3 **Personal Holidays**

- 16.3.1 After completion of thirty (30) days of service, each regular full-time employee covered by the terms of this Agreement shall receive personal holiday time based on three (3) times their normal shift length per calendar year. "Normal shift length" will be determined by taking a snapshot of each eligible employee's work schedule on the first day of the first pay period in January.
- 16.3.2 Effective upon ratification, employees that report in person one hundred percent of the time will receive three (3) additional personal holidays per calendar year for a total of six (6) days.
- 16.3.3 After completion of thirty (30) days of service, each regular

part-time or job- share employee covered by the terms of this Agreement shall receive twelve (12) hours personal holiday time per calendar year.

- 16.3.4 Personal holidays shall be maintained in a separate quota account and will be added to each eligible employee's personal holiday account at the end of the first pay period in January of each year. Personal holiday time may be utilized in any increment of time.
- 16.3.5 The first twenty-four (24) hours, or twelve (12) hours in the case of a part- time or job-share employee, taken off on vacation leave by an employee during a calendar year shall be considered personal holidays.
- 16.3.6 The personal holidays shall be arranged by mutual agreement between the employee and the City. Failure to reach mutual agreement shall immediately refer the matter to the bureau manager.
- 16.3.7 Personal holidays may only be used during the calendar year in which they accrue. Failure to use the personal holidays by the end of the calendar year will result in forfeiture of that portion of the personal holiday time not used.

Article 17. Vacations

- 17.1 **Vacation Leave Accrual.** Annual vacation leave for employees shall be computed based on time served during each calendar year. The rate that annual vacation leave accrues shall depend upon the total amount of service for the City, whether or not such service was broken. Beginning with January 1 of the year in which the employee reaches the following service anniversaries, vacation leave shall accrue at the following rates:

Years of Service (years)	Bi-Weekly Accrual Rate (hours)	Annual Accrual Rate (hours)
0	4.31	112.06
1	4.46	115.96

2	4.62	120.12
3	4.77	124.02
4	4.92	127.92
5	5.08	132.08
6	5.23	135.98
7	5.38	139.88
8	5.54	144.04
9	5.69	147.94
10	5.85	152.10
11	6.00	156.00
12	6.15	159.90
13	6.31	164.06
14	6.46	167.96
15	6.62	172.12
16	6.77	176.02
17	6.92	179.92
18	7.08	184.08
19	7.23	187.98
20	7.38	191.88
21	7.54	196.04
22	7.69	199.94
23	7.85	204.10
24	8.00	208.00
25	8.15	211.90
26+	8.31	216.06

17.2 An employee's vacation is deemed earned and shall be credited each payroll period.

17.3 In computing total amount of service as used in 17.1.1 above:

17.3.1 Includes time taken while on leave of absence with pay or for military or parental leave without pay.

17.3.2 Includes any time under temporary appointment in City service employment, the Exposition-Recreation Commission, and the Portland Development Commission.

17.3.3 Includes absence because of an on-the-job injury up to one (1) year.

- 17.3.4 Excludes time in City service for which the employee receives pension benefits.
- 17.4 Employees shall continue to earn vacation credit for:
 - 17.4.1 A cumulative period of one (1) year because of time lost for each on-the-job injury, provided that the employee returns to work in accordance with Human Resources Administrative Rule (HRAR) 7.08. However, should such on-the-job injury result in disability retirement, the employee will be paid for such accrued vacation up to the one-year maximum accrual.
 - 17.4.2 Any authorized leave of absence where an employee continues in paid status.
 - 17.4.3 Any authorized unpaid personal leave(s) of absence not to exceed a cumulative total of thirty (30) days in any calendar year.
- 17.5 The total number of vacation hours accrued at the end of the first payroll period in January cannot exceed an employee's vacation accrual for the preceding twenty-four (24) month period. Any excess credit at that time will be forfeited. Except, however, if during the Month of December, the City requires an employee to work their vacation period that was previously scheduled and approved, the amount of vacation worked may be carried over in addition to two (2) years' accumulation.
- 17.6 Vacation credits will not be available for use until the employee has completed thirty (30) days of service. Whenever an employee with more than thirty (30) days service is laid off or terminated, their vacation time shall be paid in a lump sum.
- 17.7 Vacation Sell Back. Employees may elect to sell up to a maximum of forty hours (40) of accrued vacation back to the City.
 - 17.7.1 Bargaining unit employees will have the option to be voluntarily paid out for up forty (40) hours of their accrued but unused vacation time, one time per calendar year, from January 1st to December 31st, each year through the duration

of the Agreement.

17.7.2 As per IRS requirements, employees must designate in writing their irrevocable agreement to sell back vacation time in the following calendar year (e.g., if an employee intends to sell back vacation in the 2026 calendar year, the employee must submit their written request before the end of the 2025 calendar year).

17.7.3 Vacation hours may only be sold if earned in the same calendar year.

17.8 **Vacation Scheduling.** Vacation selections shall be by classification based on seniority within the bureau and division thereof in which they are employed.

17.9 Employees will be entitled to exercise their seniority for only one (1) vacation period selection each calendar year.

17.10 A bureau and the union representative(s) may mutually agree to implement an alternative method of approving vacations, subject to the approval of the Director of Human Resources. The agreement can cover a work unit, a classification, or an entire bureau.

17.11 The bureau and the union representative(s) involved agree that either party may terminate an agreement created under the previous subsection at any time for any reason after giving thirty (30) days written notice to the other party. The bureau will then revert to vacation selections established by the bureau under 17.8 and 17.9.

17.12 The deadline for management to respond to vacation bidding and ad-hoc requests will be two (2) weeks for annual bidding from the end of the bidding process and three (3) working days for ad-hoc vacation requests. If after the third (3rd) day of the requesting employee's regularly scheduled workday, an employee's ad hoc vacation request has not been responded to, the employee may advance their vacation request up to and including the bureau Director or their designee.

17.13 Employees shall be permitted to choose either a split or entire vacation.

Employees shall have the right to determine their vacation times on the basis of seniority as provided in 17.8 and 17.9. However, employees must receive prior approval for use of vacation time. Nothing contained within this Article shall be interpreted to prevent employees from taking one- or two-day vacations upon reasonable notice and by mutual agreement between the employees and their immediate supervisors. Employees shall not take vacation if the employee does not have the requisite time accrued in their Vacation, Compensatory Time, and/or Deferred Holiday bank, at the time of usage regardless of prior supervisor approval.

17.14 Once an employee's vacation time has been scheduled, the City shall not cancel such scheduled vacation time except for business necessity and only with Bureau Director Approval. Notice of canceled vacation must be provided in writing. If the employee is called back during their scheduled vacation time, they shall be paid at time one and one half (1½) for time worked during the scheduled vacation and have any canceled days of their vacation reimbursed to their leave bank.

17.15 **Use of Accrued Vacation for Other Purposes.** Use of Emergency Leave: Employees may use up to a maximum of three (3) days of vacation leave each calendar year for personal emergencies. Emergency Leave may be used without prior supervisor approval.

Article 18. Health and Life Insurance

18.1 Labor/Management Benefits Committee

18.1.1 The parties agree to the continuation of the City-wide Labor/Management Benefits committee (LMBC). One member shall be appointed from each of the following labor organizations: the American Federation of State County and Municipal Employees, Local 189 (AFSCME), the District Council of Trade Unions (DCTU), the Portland Fire Fighters' Association (PFFA), the Professional and Technical Employees, Local 17 (PROTEC17), Portland Police Association representing Emergency Communications Operators (BOEC), Laborers' Local 483, representing Recreation Employees (Recreation), the

Portland Police Commanding Officers Association (PPCOA), the City of Portland Professional Workers (CPPW), and Laborers' Local 483 representing Portland City Laborers. The remaining members shall be appointed by the City. There will be an equal number of representatives from Labor and the City.

- 18.1.2 A quorum of voting members is required for the committee to take action. An absent committee member may designate a substitute with full voting authority. Any committee member may invite one or more visitors to attend committee meetings. Any vacant committee position may not designate or substitute voting authority.
- 18.1.3 The committee shall select its chairperson, who shall serve at the will of the committee.
- 18.1.4 In order to make a recommendation to the City Council, a quorum of the committee members must vote in favor of the recommendation. The committee shall be responsible for establishing internal committee voting and decision- making processes.
- 18.1.5 Members of the committee shall be allowed to attend committee meetings on- duty time. In the event meetings are scheduled outside the regular shift hours of a committee member, the City shall make every effort to adjust the shift of the member to allow the member to attend while on duty.
- 18.1.6 The committee shall meet at least quarterly and shall make written recommendations regarding plan design changes in the employee benefits program to the City Council no later than April 1st of each year.
- 18.1.7 The City Council shall retain the discretion to implement or reject any of the committee's recommendations. In the event the committee makes a recommendation that is consistent with the committee's authority, is actuarially sound and meets all the requirements of federal, state and local laws, and

Council rejects the recommendation, any reductions in plan costs that may have occurred due to the change in plan design, will be treated as having occurred for the purposes of calculating the maximum city contribution under this agreement. These costs will be calculated by evaluating the premiums and/or rates as if the changes had occurred, the rates and/or premiums absent the changes, and the number of participants under the plan(s) involved. For example, if the self-insured plan two party rate would be \$298 per employee per month with the addition of a benefit design change "X", but Council rejects the design change and therefore the two-party rate is \$350 per month per employee, the City contribution will be increased \$52 per month per employee on the self-insured plan to give credit for the change.

18.2 Benefits Eligibility. The City offers healthcare benefits to regularly appointed full-time and part-time employees and their qualified dependents. The plan is administered in compliance with all applicable federal, state, local laws, statutes and rules.

18.2.1 Regular Full-Time Employees. Regular full-time employees shall be eligible as provided herein for medical, dental, vision and life insurance coverage the first of the month following the date of hire. City paid benefits will continue for employees each month in which they are actively employed in an eligible job class and status and are working their regularly scheduled hours, or they are in a qualified leave status for the City of Portland, and they make the required premium contribution. Employees who are on non-paid Military Leave or personal leave without pay do not receive City paid benefits. City paid benefits will end on the last day of the month in which an employee terminates employment, enters an unpaid status because of military leave or unpaid leave or is not working their regularly scheduled hours. Coverage for the employee and their eligible family members will be reinstated retroactively to the first of the month in which the employee returns to their regular work schedule. Any required catch-up premium contribution(s) will be deducted from the first

paycheck the employee receives upon returning to paid status unless other repayment arrangements have been made.

- (A) Employees who become ineligible for participation in City benefit plans will have the right to continue coverage on a self-pay basis in accordance with state and federal law and/or as described in this labor Agreement.
- (B) Medical, dental, vision and life insurance benefits will be paid at 100% of the City contribution for those employees who have regularly scheduled hours of at least seventy-two (72) hours in a pay period in a benefits eligible, budgeted position.

18.2.2 Regular Part-Time Employees. Regular part-time employees will be eligible for medical, dental, vision and life insurance coverage the first of the month following the date of hire. City paid benefits will continue for employees each month in which they are actively employed in an eligible job class and status and are working their regularly scheduled hours, or they are in a qualified leave status for the City of Portland, and they make the required premium contribution. Employees who are on non-paid Military Leave or personal leave without pay do not receive City paid benefits. City paid benefits will end on the last day of the month in which an employee terminates employment, enters an unpaid status because of military leave or unpaid leave or is not working their regularly scheduled hours. Coverage for the employee and their eligible family members will be reinstated retroactively to the first of the month in which the employee returns to their regular work schedule. Any required catch-up premium contribution(s) will be deducted from the first paycheck the employee receives upon returning to paid status unless other repayment arrangements have been made.

- (A) Employees who become ineligible for participation in City benefit plans will have the right to continue coverage on a self-pay basis in accordance with state and federal law

and/or as described in this labor Agreement.

- (B) Percentage of City Contribution based on employee status. The amount of contributions which the City will make on behalf of regularly appointed employees for medical, dental, vision and life insurance benefits shall be as follows:

Regularly Scheduled Hours Per Pay Period	Percentage of Employer Contribution
40 – 45	50%
46 – 55	63%
56 – 63	75%
64 – 71	88%
72 – 80	100%

- (C) The percentage of benefits paid shall be based on whether an employee is actively employed in an eligible job class and is in paid status.

18.3 City/Employee Contributions

18.3.1 High Deductible Health Plan (HDHP) effective Plan Year July 1, 2017. Beginning with Benefit Plan year July 1, 2017, and effective in subsequent plan years, the City shall contribute one hundred percent (100%) of the medical and vision rates and ninety-five percent (95.0%) of the dental rates adopted by the City Council for the one party, two party or family enrollees (whichever applies), or any variation of the tiered rates recommended by the LMBC and subsequently approved by City Council, for regular full-time employees who elect the HDHP. Each regular full-time employee who elects the HDHP shall contribute five percent (5.0%) of the dental rates adopted by the City Council for the one party, two party or family enrollees (whichever applies), or any variation of the tiered rates recommended by the LMBC and subsequently approved by City Council.

18.3.2 Self-Insured Medical Plan or Kaiser Plan effective Plan Year July 1, 2018. Beginning with Benefit Plan year July 1, 2018, and

effective in subsequent plan years, the City shall contribute ninety-five percent (95.0%) of the medical, vision and dental rates adopted by the City Council for the one party, two party or family enrollees (whichever applies), or any variation of the tiered rates recommended by the LMBC and subsequently approved by City Council, for each regular full-time employee who elects the Self-Insured Medical Plan or the Kaiser Plan; provided that the employee has received a preventive health care examination within the prior two (2) full calendar years. Each regular full-time employee who elects the Self-Insured Medical Plan or the Kaiser Plan and who received a preventive health examination within the prior two (2) full calendar years shall contribute five percent (5.0%) of the medical, vision and dental rates adopted by the City Council for the one party, two party or family enrollees (whichever applies), or any variation of the tiered rates recommended by the LMBC and subsequently approved by City Council.

- 18.3.3 Beginning with Benefit Plan year July 1, 2018, and effective in subsequent plan years, the City shall contribute ninety percent (90.0%) of the medical, vision and dental rates adopted by the City Council for the one party, two party or family enrollees (whichever applies), or any variation of the tiered rates recommended by the LMBC and subsequently approved by City Council, for each regular full-time employee who elects the Self-Insured Medical Plan or the Kaiser Plan and who has not received a preventive health care examination within the prior two (2) full calendar years. Each regular full-time employee who elects the Self-Insured Medical Plan or the Kaiser Plan and who did not receive a preventive health examination within the prior two (2) full calendar years shall contribute ten percent (10.0%) of the medical, vision and dental rates adopted by the City Council for the one party, two party or family enrollees (whichever applies), or any variation of the tiered rates recommended by the LMBC and subsequently approved by City Council.

- 18.3.4 Beginning with Benefit Plan year July 1, 2018, and effective in

subsequent plan years, newly hired full-time regular employees who elect the Self-Insured Medical Plan, or the Kaiser Plan will have one (1) full calendar year to receive a preventive health examination to retain the City's ninety-five percent (95.0%) contribution and the employee's five percent (5.0%) contribution in the subsequent plan year. The City shall contribute ninety percent (90.0%) and the employee shall contribute ten percent (10.0%) of the medical, vision and dental rates adopted by the City Council for the one party, two party or family enrollees (whichever applies), or any variation of the tiered rates recommended by the LMBC and subsequently approved by City Council, for each newly hired full-time regular employee who does not receive a preventive health examination within the first full calendar year of service.

- 18.3.5 Confirmation of meeting the preventative exam criteria will be sent from the provider to a third-party administrator. The third-party administrator will send the employee's name, birth date, and last four digits of the social security number to the City. No other information will be provided. The parties acknowledge that Kaiser requires a release of information to be signed allowing Kaiser to release the information described above.
- 18.3.6 The City shall share all cost, savings, and participation data from the healthcare plan with the Labor Management Benefits Committee.
- 18.3.7 **Medical Coverage Opt Out.** For the term of the Agreement a benefits eligible employee who has alternate group medical coverage may choose to opt out of City provided medical coverage. A full-time employee who chooses to opt out shall not be required to pay the contribution in Clauses 18.3 and shall receive a cash payment every payday (except for the third payday in a month) as follows:

Cash Payment	One Party	\$25.00 per payday
	Two Party	\$45.00 per payday

Family \$62.50 per payday

- 18.3.8 Employees may elect to receive the cash payment as cash (subject to withholding). In addition to the cash payment to the employee, the City shall contribute for each full-time employee who opts out of medical coverage an additional amount to the Health Fund based on the annual composite rate.
- 18.3.9 Benefit coverage for domestic partners will continue. Availability of domestic partner benefit is subject to continuing availability from the City's employee benefit insurance carriers. The Committee will recommend eligibility rules governing domestic partner benefit coverage to the City Council.

18.4 Health Fund Reserves

- 18.4.1 The Health Fund shall be maintained with adequate reserves to meet fund obligations.
- 18.4.2 The term "excess reserves", as used in this agreement, shall be defined as the monies in the Health Fund which are not needed to meet fund obligations. Excess reserves shall remain in the Health Fund but shall be subject to separate reporting to the committee.
- 18.4.3 The Health Fund and all reserves associated with the Fund must be maintained in an interest-bearing account. Fund reserves shall be pooled and shall not be allocated on an individual employee or employee group basis.

18.5 Retiree and Survivor Benefits

- 18.5.1 The City shall make available to a retired employee and their eligible dependents, the same medical, dental, and vision benefits offered to active employees. The cost of the plans shall be borne by the retiree, surviving spouse, or surviving domestic partner. Such coverage shall be made available

through the City until both the retiree and spouse (or domestic partner) become eligible for federal Medicare coverage.

- 18.5.2 The City shall provide to the spouse (or domestic partner) and eligible dependent children of an employee who is killed on the job, the same medical, dental and vision benefit plans available to active employees. The City agrees to continue the City contribution for the spouse (or domestic partner) and eligible dependent children until the spouse (or domestic partner) becomes eligible for federal Medicare coverage or remarries (or establishes a new domestic partnership) and for each dependent child, to the date which meets the eligibility requirements of the health plan in which said eligible child is enrolled.

18.6 Life Insurance

- 18.6.1 The City shall provide each employee with a life insurance policy; said policy shall be secured and maintained in accordance with the City's existing practices.
- 18.6.2 The value of the policy shall be no less than \$50,000 and if greater, shall be such amount as established by the City Council upon the recommendation of the Labor/Management Benefits Committee.
- 18.6.3 The City shall make available supplemental life coverage on a voluntary, employee paid basis.

18.7 Federal and State Health Legislation

- 18.7.1 If the Federal Government enacts Federal Health Legislation, the State of Oregon enacts or changes any Health Legislation, including ORS 243.303, or if any taxing authority taxes or otherwise limits or restricts health care benefits paid by the City, the City and the union will immediately negotiate on the effect of that legislation as it pertains to this Article.

18.8 **Disability Insurance**

18.8.1 The City shall provide each employee with a long-term disability insurance coverage through a group policy; said policy shall be secured and maintained in accordance with the City's existing practices.

18.8.2 Effective with the benefit plan year 2025-2026, the City will pay the full premium for part time City employees.

18.9 **Domestic Partners.** For purposes of this agreement, the phrase "domestic partners" shall be as defined by the Labor-Management Benefits Committee.

18.10 **Transportation Benefit.** The City shall continue to provide the TRIP reduction program.

Article 19. Sick Leave

19.1 The City will continue for the life of this agreement to provide its employees with the sick leave plan and program presently in effect, except as modified as follows: Permanent employees, including those in probationary status, shall be eligible for use of earned sick leave after thirty (30) days service with the City. An employee shall be entitled to use a maximum of four (4) consecutive workdays' sick leave without a signed doctor's certificate if the employee has accumulated not less than four hundred (400) hours of sick leave. Otherwise, the employee will be entitled to use a maximum of three (3) consecutive workdays' sick leave without a doctor's certificate. When a doctor's certificate is required, it will contain the date of treatment and the date the employee may return to work. If the City desires to verify the authenticity of a doctor's certificate, the employee may be required to furnish the doctor's name, address, and phone number. If the employee is aware that the condition will require more than two (2) days sick leave usage, the employee will inform their supervisor of the approximate time of return.

19.2 Time for medical and dental appointments will be charged against accrued sick leave. Employees may accumulate unlimited sick leave.

- 19.3 Prior to taking any disciplinary action concerning excessive sick leave usage, the supervisor will notify the employee that their sick leave usage appears to be excessive. The purpose of the notification is to allow the employee the opportunity to identify the specific reasons for the usage of sick leave, and to assist the employee in a cooperative effort to alleviate the cause of the problem. If the employee does not correct their behavior the City may proceed with progressive discipline.
- 19.4 The City may discipline an employee for misuse of sick leave.
- 19.5 **Non-Protected Dependent Sick Leave.** In situations where an employee's spouse, domestic partner, parent, child, or other person for whom the employee is legal guardian, becomes ill or injured and alternate means of transporting or caring for such person cannot be arranged immediately by the employee, the employee shall be permitted to use vacation time or sick leave. The employee shall be required to submit a doctor's certificate for any absence of three (3) days or more within a period of five (5) working days.
- 19.6 **Industrial Accident Leave**
- 19.6.1 During an absence due to an industrial accident which has been accepted by the Risk Management Division, any employee covered by this agreement shall be entitled to receive an income supplement from the City for as many days as they had accrued sick leave prior to the accident. The amount of supplement is designed to provide no more net compensation while on time loss than they would have received while working their regular hours. Supplemental pay will be determined in the following manner:
- (A) The Employee's base hourly rate will be multiplied by the number of regular hours in a pay period to determine the regular gross pay. From this amount the mandatory deductions of FICA and State and Federal withholdings based on the reported exemptions prior to the time of the accident will be deducted. The result will be the regular

net pay amount that will be met with any combination of time loss pay, regular hours pay, and supplemental pay.

- (B) The total mandatory deductions in Step 1 above will be divided by the regular gross pay as calculated in Step 1 above. The result will be the worker's standard mandatory deduction rate.
- (C) The amount of net Supplemental Pay will be determined by taking the regular net pay from Step 1 above, subtracting Worker's Compensation time loss payments, then subtracting the product of gross pay from regular hours worked (including pay for approved time off) times one minus the worker's mandatory deduction rate determined in Step 2 above.
- (D) The net Supplemental Pay determined in Step 3 above will be divided by one minus the worker's mandatory deduction rate as determined in Step 2 above to determine the amount of gross supplement pay required to yield the target net pay.
- (E) If the above calculations determine a negative net Supplemental Pay amount, the Supplemental Pay amount will be zero.

Gross Supplemental Pay =

$$\frac{[(\text{Base Rate} * \text{Regular Hours}) - \text{Deductions} - \text{W.C. Time Loss}] - [\text{Gross Pay} * (1 - [\frac{\text{Deductions}}{\text{Normal Gross Pay}}])]}{1 - \frac{\text{Deductions}}{\text{Normal Gross Pay}}}$$

- (F) The number of days of income supplement to which an employee is entitled shall be calculated by dividing the number of sick leave hours accrued by the employee at the close of the pay period preceding the date on which the injury or illness occurred by eight (8) and rounding up

to the nearest whole number. Supplemental pay will be paid on a continuous basis until exhausted. If the employee's claim for Workers' Compensation benefits is accepted by the Risk Management Division, supplemental payments based upon sick leave accrued shall not be charged against the employee's sick leave balance.

- (G) This new method of computing Supplemental Pay will begin for all injuries reported after the approval of this agreement and for existing claims on the first day of the pay period following the approval of this agreement.

19.6.2 Upon hire, employees shall be credited with a total of fifteen (15) days of industrial accident leave. Such leave shall be available for time lost because of industrial injury for two years from the employee's date of hire. Such leave credits shall be used prior to the supplement outlined in subsection 19.6.1 above. Payments made by the City under subsections 19.6.1 and 18.6.2 shall not be charged to accrued sick leave.

19.6.3 If an employee exhausts all benefits in 19.6.1 and 18.6.2 above, and remains employed with the City, the City shall maintain the employee's health and welfare insurance benefits for a period not to exceed twelve (12) months of the industrial accident leave, providing the employee was eligible for City-paid benefits at the time of the accident. The subject of waiver of premium for employees in this category will be referred to the Insurance Committee for review and report.

19.7 Sick Leave Utilization Upon Retirement

19.7.1 The City agrees to convert sick leave pay, upon retirement to a PERS supplement, as contemplated by ORS 238.350 or on an equivalent basis for those employees covered by a retirement program other than PERS.

19.8 Sick leave will not accrue during unpaid leaves of absence exceeding thirty (30) days.

Article 20. Federal, State, and City Family and Medical Leave

- 20.1 The City will grant employees leave in accordance with the Federal Family and Medical Leave Act (FMLA), the Oregon Family Leave Act (OFLA) and Human Resources Administrative Rules for Family and Medical Leave. For purposes of Family Leave, the City agrees that “spouse” includes “domestic partner”.
- 20.2 Any subsequent changes in the law or the Human Resources Administrative Rules will be incorporated into this Agreement. Specific rules and/or administrative procedures are available from bureau timekeepers or the Bureau of Human Resources.
- 20.3 During periods of leave covered by FMLA and/or OFLA the Oregon Family Leave, eligible employees shall be required to use accrued or accumulated paid leaves, including vacation and, when applicable, sick leave, prior to a period of unpaid leave of absence. The use of sick leave shall be governed by Article 19 except as indicated below in this Article.
 - 20.3.1 Notwithstanding the provisions of Article 20.3 above, an employee may reserve all compensatory time and whatever vacation is necessary to accumulate a total of 80 hours of combined compensatory and vacation time for use upon return from family leave.
 - 20.3.2 If an employee has qualified for family leave, the employee may use sick leave in cases of qualifying conditions as defined by federal and state law in the employee’s immediate family including domestic partner as defined in the Human Resources Administrative Rules. If the duration of the employees’ family leave is longer than the amount of the employees’ accrued paid leave (not including sick leave), the employee may choose to be placed on unpaid leave of absence or sick leave for the duration of the family leave after using all other accrued paid leave. In no event may an employee use sick leave under this section to extend family leave beyond twelve (12) weeks per year.

- 20.4 **City Paid Parental Leave.** Per City Human Resources Administrative Rules, employees covered by this agreement may be eligible for paid parental leave. Should the provisions of the HRAR change, the City and Unions will meet to negotiate over the impact of the change(s).
- 20.5 **State Paid Leave.** Under Paid Leave Oregon (PLO) or Washington Paid Family and Medical Leave (WA PFML), employees may be eligible to take a leave of absence with partial or full-wage replacement provided by the State. If an employee elects to take a leave of absence covered by PLO or WA PFML, and the employee chooses to top off, an employee may elect the order in which they use their accrued leaves or elect to not use their accrued leaves to supplement their PLO or WA PFML benefit. PLO or WA PFML benefits may exceed one hundred percent (100%) of an employee's regular income without penalization or recoupment by the City. Paid time off will accrue only on the monies paid by the City that the employee has elected to access to supplement PLO benefits. PLO benefits paid by the state will not accrue paid time off.
- 20.6 **Non-City Parental Leave.** In addition to Parental Leave described in Article 20.4, employees may be eligible for leave under FMLA and Oregon or Washington law for the care of an infant or newly adopted child or for a newly placed foster child.
- 20.7 **Extended Parental Leave.** If an employee exhausts their City Paid Parental Leave and their State Paid Parental Leave under PLO/WAPFML, an additional period of unpaid leave or accrued vacation will be granted upon written notification to extend the period of their Parental Leave. However, the total of all paid and unpaid leaves must not exceed a total of six (6) months.
- 20.7.1 The parties have further agreed that an employee who is granted family leave under the above laws shall be entitled to utilize accrued compensatory time for that leave. An employee must exhaust all sick and unreserved vacation leave and unreserved accrued compensatory time before taking unpaid leave.

Article 21. VEBA

Effective the first pay period after January 1, 2026, the City will allow AFSCME 189 members to participate in a Plan(s) which is defined to include a Voluntary Employee Beneficiary Association (VEBA), a Section 457 plan or any other form of non-qualified deferred compensation program.

AFSCME Local 189 will establish a retirement medical trust (the AFSCME Local 189 VEBA) for the purpose of providing for the payment of life, sick, accident or other benefits to its members. The AFSCME Local 189 VEBA will receive tax-exempt status from the internal revenue Service under Section 501(c)(9) of the Internal Revenue code. The City will withhold a percentage of base pay from each individual AFSCME member's gross wages per pay period to be determined by AFSCME and submitted to the City by July 1, 2025. This amount shall be contributed on the member's behalf to the AFSCME Local 189 VEBA each pay period or monthly, the interval to be determined by the City. The withholding will be made on a pre-tax basis.

If at any time during the operation of the Plan or Plans it is determined that (1) deposits may not be made on a pre-tax basis or (2) that plan earnings are not tax-exempt or (3) payments from the Plan or Plans are not tax-exempt or if participation in the Plan or Plans is in violation of any federal or state law or regulation, then in that event the parties agree to negotiate a substitute provision in order to carry out the original intention of the Agreement.

The Union will be responsible for the administration and management of the VEBA. The Union will not change the percentage of withholding for the duration of this agreement.

Participation is mandatory for all bargaining unit members.

Article 22. Leaves of Absence

22.1 Funeral and Bereavement Leave

- 22.1.1 In accordance with Human Resources Administrative Rule 6.08 – Funeral and Bereavement Leave, an employee absent from duty by reason of the death of their spouse, domestic partner, parents, children, foster children, children under legal

guardianship, sisters, brothers, grandparents, grandchildren, father-in-law, mother-in-law, sister-in-law, brother-in-law, daughter-in-law, son-in-law, grandparents-in-law, step-children, step-brothers, step-sisters, step-parents, step-grandchildren, step-grandparents and the equivalent relatives of an employee with a domestic partner, or chosen family, or for pregnancy loss shall be allowed no more than three (3) days' time off duty without deduction of pay on account of such absence. For the purpose of 22.1 and its subsections, a day is equal to the employee's regularly scheduled work shift.

- 22.1.2 Employees shall be allowed an additional two (2) days' leave for necessary funeral travel time in the event of a death in their immediate family. Approval for such travel time shall be made by the Bureau Director (or their designee).
- 22.1.3 When employees attend a funeral ceremony for a fellow employee within their own bureau, they will be granted four (4) hours' time off with pay to attend such funeral ceremony, subject to the needs of the operation.

22.2 Other Leaves of Absence

- 22.2.1 **Day Off Without Pay.** With reasonable advance notice and with the consent of the City, employees may be permitted a day off without pay; provided, however, that no day off or leave shall be granted for outside employment.
- 22.2.2 **Personal Leave of Absence.** The City may grant an employee a long-term leave of absence. Employees must exhaust all appropriate accrued leave prior to going on unpaid leave except in accordance with the Administrative Rules on Family Medical Leave and Military Leave.
 - (A) After a personal leave of absence of longer than six (6) months for any reason, an employee desiring to return to work must give the City ten (10) days' written notice of their intent to return. However, if a vacancy does not exist

at the time such employee decides to return from a leave, the employee shall be placed on the appropriate recall list in accordance with their seniority.

22.2.3 **Blood, Stem Cell, and Bone Marrow Donation Leave.** Subject to the mutual agreement between the City and the employee, a reasonable period will be allowed for the donation of blood and participation in the registry for stem cell and bone marrow transplant on a voluntary basis. If the donation period occurs on City time, it shall not normally exceed two (2) hours.

22.2.4 **Civil Service Board.** Where the employee cannot arrange alternative schedules with the Bureau of Human Resources, the employee will be allowed to take Civil Service examinations without loss of regular pay for the duration of the time spent in the examination.

22.2.5 **Military Leave.** Military leave shall be provided to employees in accordance with ORS Chapter 408 and Human Resources Administrative Rule 6.07 – Military Leave. Employees shall notify their supervisor in writing of their scheduled military leave dates as soon as they have been notified. The employee shall provide the bureau with copies of their orders when they receive them from the military.

(A) **Reserve Military Leave.** Any employee serving in the National Guard or Reserve Military Forces shall be entitled to paid absence from duties not to exceed thirty (30) workdays in any federal fiscal year (October 1 through September 30), provided the employee is employed at least ninety (90) days prior to the leave. Employees are not required to take their leave in one block of time but may use the paid leave allowed under this rule over the course of the federal fiscal year.

(B) In the event an employee's paid military leave is exhausted, the City shall continue employer contribution for medical, dental, and vision coverage, with no changes

for employees ordered to military service for the first sixty (60) days of unpaid military leave. If the employee is ordered to federal military service which is eligible to receive coverage, the employee will notify the City and City paid coverage for the employee will terminate one the thirty-second (32nd) day of unpaid leave or the effective date of the military paid coverage, whichever is later. Employee premiums for covered months will be deducted from the final paycheck prior to military leave. If the City is unable to deduct prior to leave, payroll deductions for missed premiums will occur on the first available paycheck upon an employee's return from military leave.

- 22.2.6 **Search and Rescue Operations and Disaster Relief.** Per Human Resources Administrative Rule 6.11, employees covered under this agreement may be eligible to participate in a search or rescue operation at the request of any law enforcement agency, the state Office of Emergency Management or the United States Forest Service. Employees are subject to the rules and eligibility requirements of the HRAR. Should the provisions of HRAR 6.11 change, the City and the Union will meet to negotiate over the impact of the change(s).

Article 23. Jury Duty and Witness Pay

- 23.1 All employees shall be granted leave with pay and without loss of any benefits of their employment, to serve as a juror in State or Federal court or witness as a consequence of their official duties in response to subpoena or similar service issued out of a State or Federal Court, subject to the following provisions:
- 23.1.1 All employees granted such leave or receiving witness fees shall pay all money received for their service as a juror or witness to the City Treasurer, less any travel allowance received.
- 23.1.2 Where the employee is required to serve as a juror or witness on a scheduled day off or vacation day, and such day cannot

reasonably be rescheduled, they may retain the fee paid for service as a juror or witness on their day off or vacation day.

- 23.1.3 If an employee is subpoenaed to appear on a civil or criminal case, as a consequence of their official duties, on their off duty time; they shall receive a minimum of four (4) hours at the overtime rate, and if more than four (4) hours, they shall receive overtime pay for the time actually spent in court rounded to the next hour, and they shall be allowed to retain the witness fee.
- 23.1.4 If an employee is not on a Monday through Friday day-shift schedule, and is required to serve as a juror, they shall be rescheduled to a Monday through Friday day shift for the duration of their jury duty. The overtime provisions of this agreement shall not apply to an employee undergoing a shift change to go on or come off jury duty.
- 23.1.5 If an employee granted leave under this Article is excused from service as a juror or witness with more than two (2) hours remaining in their work shift, they shall notify their immediate supervisor and shall report to work the remainder of their shift if their immediate supervisor requests them to do so. For the purpose of this Article, the employee shall be considered as working the normal day shift.
- 23.1.6 **Immigration and Citizenship Leave.** An employee may use up to forty (40) hours of paid leave per fiscal year to address immigration or citizenship matters for themselves or members of their family in their immediate household. This includes, but is not limited to, attending meetings with immigration or criminal defense attorneys, state or federal criminal court proceedings, deportation hearings, or other events bearing on the subject individual's legal resident, immigration, or citizenship status.
- 23.1.7 An employee who has used forty (40) hours of paid leave covered under Article 23.1.6 and has exhausted all other

vacation, compensatory time, personal holiday, and deferred holiday hours leave, but who needs additional leave for the purposes described above to address immigration and citizenship matters, shall be granted an unpaid leave of absence under Article 22.2.1.

- 23.1.8 The City will require written documentation corroborating the dates of the requested Immigration and Citizenship Leave.

Article 24. Safety – Sanitation

- 24.1 The City will exert every reasonable effort to provide and maintain safe working conditions and equipment, and the Unions will cooperate to that end, encourage members to work in a safe manner and support the City when discipline is reasonably required in the case of safety regulation violations. The willful violation of any State or Federal safety law by an employee shall be cause for disciplinary action or discharge.
- 24.2 **Safety Committees.** The parties recognize that disciplinary action may be imposed for just cause in matters involving violations of safety rules and procedures. To that end safety committees shall be established within the various operations of the City. Each committee shall be composed of a minimum of five (5) representatives, two (2) representatives designated by the City, two (2) by the Unions represented in the work unit(s) covered by the committee, and a fifth picked by the four (4) representatives. Each union represented by a committee will be afforded a minimum of (1) membership position. Structure and membership of the Safety Committee shall be in compliance with applicable State and OSHA regulations; namely safety committee memberships may be expanded appropriately for the size of the work unit and to accommodate all unions represented, however no more than 50% of membership shall be management or management designees. The committee shall assist, make recommendations to and cooperate with a safety representative of the City, who shall be an ex-officio member of such committee. The employees designated for this committee shall be employees who have knowledge of practices of the operations and who have worked for the City a minimum of one (1) year. The functions of such committee shall be advisory only.

Committees in the City's maintenance and field operations work units shall meet once a month with minutes of meeting prepared by management and a copy thereof furnished to the Unions Other committees shall meet as necessary. Committee members shall serve a term of one (1) year or until replaced but may not serve more than five (5) consecutive years.

24.2.1 Each month each manager or supervisor in a maintenance or construction operation shall hold a safety meeting with their crews. The manager or supervisor will report on the action or disposition of any recommendations or complaints of the safety committee that would have an effect on the employees.

24.3 All work performed by the employees shall be governed by the provisions set forth in the Oregon State Safety Codes.

24.4 The City will keep its vehicles, equipment, and machinery in safe condition. No employee shall be allowed to operate any vehicle, equipment, or machinery known or that the employee should have reasonably known to be unsafe.

24.5 **Reporting Unsafe Conditions or Equipment/Machinery.** Any employee who believes that any working condition or equipment/machinery is unsafe shall immediately be placed out of service and call it to the attention of their supervisor. The supervisor shall immediately discuss the matter with the employee and try to arrive at a mutual agreement as to whether or not an unsafe condition exists. If unable to reach a mutual agreement on the matter, the supervisor may make a decision on the matter. However, if the employee is not satisfied with the decision, such employee shall be allowed time to telephone the City's Safety Officer and if they are unavailable, the Workers' Compensation Board and/or the Occupational Safety and Health Administration, to request an immediate investigation of the matter.

24.6 No employee shall be disciplined for refusal to violate the Safety Codes or the laws of the State of Oregon or to follow a supervisory directive where the employee reasonably believes direct bodily harm would result.

- 24.7 The City shall furnish on all temporary work sites sanitary facilities or shall provide transportation when available.
- 24.8 Any condition which the Unions believe a violation of reasonable sanitation practices may be taken up through the grievance procedure at Level Two (Article 37.3.5).
- 24.9 **Personal Clean Up Time.** Employees required to work in and around biohazards, sewage or garbage and others required to work in live sewers shall be allowed adequate time to wash or shower and change their clothes prior to the end of their work shift on paid time. Any clothing furnished such workers by the City shall not be worn home nor away from a permanent job location. Other employees shall be allowed necessary time for personal clean-up prior to the end of the shift. The City shall furnish waterless cleaner and towels when it is necessary for employees to clean up, and when soap and water are not available.
- 24.10 **Ventilation.** Where noxious or poisonous gasses may accumulate, the City shall provide proper protection and ventilation. Proper lighting and ventilation shall be provided for all enclosed working spaces. All work in enclosed and confined spaces shall be performed in accordance with applicable Federal, State, and local regulations. Spray painting shall be done only by qualified painters.
- 24.11 No employee shall be allowed to work alone in a situation in which working alone is hazardous. In the determination of whether it is hazardous to work alone, the City's Safety Representative and the Unions in the operation involved, shall meet to discuss, and arrive at a mutual decision as to what constitutes such a hazardous condition when the question arises.
- 24.12 The City shall provide a traffic-safe outer garment to employees required to work in streets open to traffic.
- 24.13 **Safety Apparel and Equipment.** Each employee shall be required to wear such safety and protective apparel and devices as furnished by the City. Employees shall be instructed as to the safety apparel and/or

equipment required for the work to be performed and the proper use thereof. In order to efficiently distribute job related safety equipment and to encourage individual employee responsibility, each bureau, with Union input, shall set work group standards as to what schedule and in what quantity it shall be issued.

24.13.1 The bureau will meet with the Union on proposed changes from current practice. At that meeting the parties agree to meet up to an additional two times within 14 calendar days, or such other schedule as is mutually agreeable. The discussions shall be limited to quantity and frequency of items issued. If the parties are unable to reach an agreement, the unresolved portions will be referred to the first available local Metropolitan Portland area arbitrator supplied by the State Employment Relations Board. The parties shall equally share the costs of the arbitration. The arbitrator shall issue a bench decree after a hearing of no more than two hours in length that is the final offer of one of the parties. The decree shall be final and binding. Attorney advocates shall not be allowed as representatives.

24.14 **Drivers/Commercial Driver's License.** The parties agree that an employee should only operate a City of Portland motor vehicle with a valid driver's license. An employee who is required to have a valid driver's license as a condition of employment, and who loses their driving privileges must report their driving status to their supervisor by their next working day.

24.14.1 An employee who receives a citation (including a parking citation) while operating a city vehicle, shall report the citation to their supervisor by their next working day. The parties agree that the employee is responsible for payment of any fine(s).

24.14.2 Operating a city vehicle without a valid license, failing to report the loss of a license in a timely manner, or failing to pay any fines related to a citation received while operating a city vehicle within a timely manner may subject employees to disciplinary actions.

24.14.3 Loss of Driving Privileges

- (A) **First Occurrence.** On the first occasion when an employee, who is required to have a valid driver's license as a condition of employment, reports driving privileges suspended, revoked, cancelled or restricted, the employee will be accommodated in a non-driving assignment in the same or lower job classification for thirty (30) calendar days. If the employee does not regain a valid, unrestricted license at the end of the thirty-day accommodation period, the bureau may transfer the employee to a non-driving assignment in the same or lower job classification or lay off the employee, at the bureau's sole discretion. If the employee receives a valid, unrestricted license within ninety (90) calendar days after the loss of the license, the employee will be returned to work. If the employee receives a valid, unrestricted license after ninety (90) calendar days after the loss of the license, the employee will be subject to recall under the provisions of Article 15. The bureau will, at the request of the employee, provide the employee with a letter that verifies the employee's work location and schedule for the purpose of providing the employee with necessary documentation to obtain a Hardship Permit. If an employee obtains a Hardship Permit, the City's Risk Manager will review and determine whether to allow the employee to operate a vehicle for City business purposes.
- (B) **Second Occurrence.** If within three years from the first incident of driving privileges being suspended, revoked, cancelled or restricted, an employee again reports their driving privileges being suspended, revoked, cancelled or restricted, the employee may be accommodated in a non-driving assignment in the same or lower job classification or may be laid off at the bureau's sole discretion. Upon receipt of a valid, unrestricted driver's license, the employee will be subject to recall under the provisions of Article 15. If an employee obtains a Hardship Permit, the

City's Risk Manager will review and determine whether to allow the employee to continue to operate a vehicle for City business purposes.

- (C) Reporting the loss of a license shall have no bearing on whether there is just cause for discipline.

24.14.4 Loss of CDL Medical Certification. The following sub-articles are intended to apply to temporary disqualification of CDL holders due to the temporary loss or lapse of medical certification caused by a medical condition that is difficult to regulate, and the temporary disqualification is beyond the employees' ability to control. When employees are unable to maintain medical certifications under such circumstances, the parties agree to treat the affected CDL employees as follows:

24.14.5 Lack of Knowledge/Active Management Initial Thirty (30)-day Accommodation. Where an employee has not been medically diagnosed or otherwise informed of a CDL medical certification-impacting medical condition, or where an employee can establish that they are engaged in active and affirmative efforts to manage their CDL medical certification-impacting medical condition, and where the employee's medical certification lapses or is otherwise lost for no more than thirty (30) days, the employee will be accommodated by not being assigned CDL-vehicle operation duties for thirty (30) calendar days. In such instances, although a record may be kept of the lapse or loss, there shall be no adverse employment action or other prejudice related to or based on the lapse or loss.

24.14.6 Extended Initial Accommodation. If the employee does not have a valid and current medical certification at the end of the thirty (30) day initial accommodation period, and if the bureau can continue to provide placement in an assignment where CDL-vehicle operation duties can be temporarily avoided without adverse impact to the bureau efficiently completing its scheduled work, the employee shall be assigned

accordingly. If at any point after thirty (30) days, however, continuation of the same or other accommodation cannot be made without adverse impact, the bureau may transfer the employee to another assignment in the same or lower job classification or may lay the employee off. If transfer is made to an assignment in a lower job classification, the employee shall be temporarily demoted until reassigned in their previous classification with no loss of seniority.

24.14.7 Regaining Certification/Failure to Obtain. Affected employees, who regain their medical certifications before the expiration of ninety (90) days from the date of the lapse or loss, will be reassigned to their regular classification. A record of the lapse or loss may be kept; in instances where the employee is actively seeking to obtain medical certification following lapse or loss, such lapse or loss may not be considered for future discipline, but in instances where the employee has failed to actively seek recertification, the lapse or loss may be referred to and relied on in the event of a subsequent like instance of failure to actively seek recertification occurring within three (3) years of the prior instance. After ninety (90) days without a valid and current medical certification, a laid off employee will be subject to the recall provisions of Article 15 provided they meet the eligibility requirements under the federal regulations.

24.14.8 Subsequent Loss or Lapse of CDL Medical Certification. If an employee who has had a lapse or loss of more than thirty (30) days before obtaining valid and current medical certification subsequently obtains medical certification in their next certification cycle without lapse or loss, or with a lapse or loss of not more than thirty (30) days, their prior lapse or loss of more than thirty (30) days may not subsequently be relied upon as a basis for subsequent adverse employment action. If, however, an employee has a second consecutive lapse or loss of more than thirty (30) days, they may be laid off at the bureau's sole discretion.

24.14.9 Lack of Proof of Active Management Initial Thirty (30)-day Accommodation. Where an employee has been medically diagnosed or is otherwise aware of a CDL medical certification-impacting medical condition, and where the employee cannot establish that they are engaged in active and affirmative efforts to manage their CDL medical certification-impacting medical condition, the employee will be accommodated for a medical certification lapse or loss of no more than thirty (30) days by not being assigned CDL vehicle operation duties for thirty (30) calendar days. In such instance, however, a record of the lapse or loss shall be permanently retained and may be the basis of subsequent adverse employment action.

24.14.10 No Extension of Accommodation. At any point after thirty (30) days, the bureau may transfer the employee to another assignment in the same or lower job classification or may lay the employee off, at the bureau's sole discretion. If transfer is made to an assignment in a lower job classification, the employee shall be temporarily demoted until reassigned in their previous classification with no loss of seniority.

24.14.11 Regaining Certification/Failure to Obtain. Affected employees, who regain their medical certifications before the expiration of ninety (90) days from the date of the lapse or loss, will be reassigned to their regular classification with no loss of seniority. Affected employees who fail to obtain a medical certification after ninety (90) days will be laid off. Employees who are laid off will be subject to the recall provisions of Article 15.

24.14.12 If, however, an employee has a second lapse or loss within four (4) years where the employee cannot establish that they are engaged in active and affirmative efforts to manage their CDL medical certification impacting medical condition or has a second lapse or loss of more than thirty (30) days within four (4) years, they may be laid off at the bureau's sole discretion.

24.14.13 Hazardous Materials. Employees required to handle hazardous materials in the course of their employment, shall receive instructions as to the safe procedures for the handling of such materials, in conformance with State and Federal regulations.

24.14.14 Atypical Work Incidents and Trauma Training. The City will make available, Trauma Informed Care training to assist employees who experience a traumatic event at work.

Per Human Resources Administrative Rule 6.01 – General and Administrative Leaves, paid administrative leave may be granted for up to three (3) days to provide physical, emotional or psychological support in response to an atypical, and rare incident that occurs while the employee is at work, and when the incident temporarily and significantly interferes with an employee’s ability to perform their normal job functions. This type of paid administrative leave is subject to supervisory discretion and may or may not be granted in response to atypical work incidents. Bureau Directors shall not extend this type of paid administrative leave beyond three days. When granted, it must be taken immediately following the circumstances necessitating such leave.

24.15 Pregnancy Accommodation. If during the first seven (7) months of pregnancy, a pregnant employee presents supporting medical evidence, the City on request will attempt to make reasonable accommodation regarding available work within the employee's classification for a period not to exceed sixty (60) days.

24.16 Reasonable Suspicion of Drug or Alcohol Use. For the purposes of determining Reasonable Suspicion the City prefers two supervisors observe and document behavior, however, if two are not available then one supervisor may take action.

24.16.1 For purposes of this Article, the following definitions apply.

(A) Reasonable suspicion: a legal standard of proof that is less than probable cause, but more than a “hunch.” It must be

based on specific, contemporaneous, articulable observations.

- (B) by a trained manager or supervisor concerning the appearance, behavior, speech, or body odors of an employee.
- (C) Alcohol: colorless, volatile, and flammable liquid that is the intoxicating agent in fermented and distilled liquors. Includes, but is not limited to, beer, wine, and liquor.
- (D) Drugs: any controlled substance included in ORS 475.005, including marijuana, or prescribed drugs which have not been legally obtained or are not being used for the purpose for which they were prescribed.
- (E) Drug paraphernalia: any item which is clearly intended for use for the administering, transferring, manufacturing, testing, or storing of a drug.

24.16.2 The City reserves the right to determine whether reasonable suspicion exists. Only managers and supervisors trained in the signs and symptoms of drug and alcohol use may refer employees for reasonable suspicion testing. Circumstances which constitute a basis for determining “reasonable suspicion” may include, but are not limited to, direct observation of any of the following:

- (A) on-duty use or possession of alcohol;
- (B) on-duty use or possession of drugs or drug paraphernalia;
- (C) on-duty odor of alcohol;
- (D) on-duty physical symptoms of drug or alcohol use (e.g., glassy or bloodshot eyes, slurred speech, poor coordination or reflexes);

- (E) on-duty indications of chronic and/or withdrawal effects of alcohol or drugs;
- (F) pattern of abnormal conduct, erratic behavior or deteriorating work performance which can be reasonably attributed to alcohol or drug use.

24.16.3 Where the City has reasonable suspicion to believe that an on-duty employee possesses or is under the influence of alcohol or drugs, including marijuana, the City may require that the employee immediately consent and submit to a urine and breathalyzer test. The City shall pay the cost of the tests, and employees will be paid for time spent in the testing process. A refusal to consent and submit to such tests shall subject an employee to discipline up to and including termination. Refusal to consent and submit means:

- (A) refusing a directive to submit to a required test;
- (B) inability to provide a urine specimen or breath sample without a valid medical reason confirmed by a physician;
- (C) tampering, adulterating, or substituting a specimen or any other attempt to defeat or obstruct an alcohol or drug test;
- (D) leaving the collection site before the testing process is complete;
- (E) failing to permit an observed collection when required;
- (F) failing to submit to a second test when required;
- (G) failing to undergo a medical evaluation when required;
- (H) failing to cooperate with any part of the testing process.

24.16.4 When an employee is notified, that testing is required, the employee may request the presence of a Union representative.

Testing may not be delayed for more than 15 minutes in order to wait for a representative. The absence of a representative shall not be grounds for the employee to refuse to consent and submit to testing. The presence of a representative shall not disrupt or interfere with the tests.

24.17 For purposes of drug testing, the City will use the Department of Transportation concentrations described in Rule 49 CFR Part 40 Section 40.85. The parties recognize that urinalysis testing for marijuana metabolites and THCA does not provide conclusive evidence of employee intoxication at the time of the test.

Article 25. Union Representation

25.1 **Union Activities.** The parties agree to the primary principle that Union activities will normally be carried on outside of working hours. It is recognized that from time to time it will be necessary to perform union activities in accordance with 25.4 and its sub-articles during work hours. Where such activities are necessarily or reasonably to be performed on City time, they may be done without loss of pay to the employees involved provided, however, such activities will be limited to the designated representatives having direct responsibility for them. Designated representatives shall notify their immediate supervisors indicating the nature and expected duration of such absence. If the time cannot be granted due to operational necessity, the responsible supervisors shall arrange in a timely fashion for a mutually satisfactory time to perform the requested activity.

25.2 **Designated Representatives.** A designated representative is a public employee who is designated by the Union as a representative for the employees of the bargaining unit in the manner required under this article. Such designated representatives may be granted reasonable paid time to perform the activities listed in Article 25.4. Designated representatives are also eligible for Union Leave, Union Paid time and unpaid Release Time under a leave of absence as provided in the article.

25.3 **List of Designated Representatives.** Only the exclusive representative

may identify bargaining unit members to serve as designated representatives for the duration of the contract. The Union will update the City quarterly in writing of changes in representatives. The Union may designate up to seven percent (7%) of the bargaining unit as designated representatives.

25.4 Designated Representative Activities. Designated representatives may engage in the following activities during their regularly scheduled work hours without a loss in compensation, seniority, leave accrual or any other benefits:

- (A) Investigate and process grievances and other workplace-related complaints on behalf of the Union representative;
- (B) Attend investigatory meetings and due process hearings involving represented employees;
- (C) Participate in or prepare for proceedings under ORS 243.650 to 243.782, or that arise from a dispute involving a collective bargaining agreement, including arbitration proceedings, administrative hearings and proceedings before the Employment Relations Board;
- (D) Act as a representative of the exclusive representative for employees within the bargaining unit for purposes of collective bargaining;
- (E) Attend labor-management meetings held by a committee composed of employers, employees, and representatives of the labor organization to discuss employment relation matters;
- (F) Provide information regarding a collective bargaining agreement to newly hired employees at employee orientations or at any other meetings that may be arranged for new employees;
- (G) Testify in a legal proceeding in which the public employee has been subpoenaed as a witness;
- (H) Perform any other duties agreed upon by a public employer and

an exclusive representative in a collective bargaining agreement or any other agreement.

25.5 Reasonable Paid Time. Designated representatives may spend reasonable paid time conducting the designated activities in Article 25.4. Reasonable time shall not exceed 2,080 hours in a fiscal year to be used among all designated representatives and across all affiliates. The City will provide to the Union a quarterly report to show the amount of City paid time used by the designated representatives. If the City and the Union disagree whether a designated representative's reasonable time appears excessive, the parties will meet and attempt to resolve their differences. If the City and Union cannot resolve their concerns, the case may proceed through mediation or the grievance process starting at Level 2.

25.5.1 Additional hours of reasonable time shall be granted to the Union's designated representatives participating on the Union's bargaining team during successor negotiations. The total number of additional hours shall be mutually agreed upon prior to the start of the first session of successor negotiations.

25.5.2 Designated representatives performing designated activities under Reasonable Paid Time will do so during their regularly scheduled working hours.

25.6 Designated Representatives. It is recognized by the City that designated representatives are desirable for the proper administration of the terms of this agreement. The City also recognizes that it is desirable that the people designated as representatives shall receive their fair share of the work that they are qualified to perform. In no event shall the City discriminate against designated representatives in the matter of layoff or rehires or discharge them on account of the proper performance of their designated representative duties.

25.7 The Unions shall have the right to take up any disciplinary action brought against a designated representative by the City as a grievance at Level Two of the grievance procedure, and the matter shall be

handled in accordance with this procedure through arbitration, if deemed necessary by either party.

25.8 Consultation, Negotiations and Meetings. Consultation, negotiations, and meetings with the City representative will be carried out at times mutually acceptable, and each party shall in good faith endeavor to perform such activities at a time which will not unreasonably inconvenience the other nor detract from the City's work operations. Where such issues impact more than one employee in a given workgroup or bureau, more than one employee spokesperson may attend on City time from each workgroup or bureau by mutual agreement.

25.8.1 Meetings for the purpose of discussing disciplinary action under section 36.1, will be held as promptly as possible, usually within two (2) working days, unless compelling reason requires an extension of time of up to an additional two (2) working days of the request for such a meeting.

25.9 Union Access. The City shall provide the exclusive representative, including all designated representatives of the Union, with reasonable access to employees within the bargaining unit. Reasonable access includes:

25.9.1 New Employees: For the purpose of employees new to the bargaining unit, reasonable access includes the right to meet with employees within ninety (90) calendar days of their employment for a period of at least thirty (30) minutes during the City's new employee orientation or an individual or group meeting if the employee does not attend the City's orientation. For individual or group meetings, the Union will notify the City in advance to make arrangements to release the employee(s) to attend and, if the time is not operationally feasible will work with management to arrange an acceptable time to meet.

25.9.2 Regular Employees: For all employees, reasonable access includes, but is not limited to, the right to meet with

employees during regular working hours at their work location to investigate and discuss grievances, workplace concerns, and other matters relating to their employment, provided the meetings do not interfere with the City's operations.

25.9.3 The City will provide the exclusive representatives with a daily access pass for the Portland Building and any other City owned buildings to conduct Union business consistent under Article 25. For bureaus with leased properties, secured facilities or campuses, the exclusive representative will contact Bureau management or the assigned Human Resources Business Professional in advance to receive access.

25.9.4 **Use of City Facilities and Technology.** The exclusive or designated representative may use the City's facilities, whether owned or leased, including conference rooms, for the purposes of conducting meetings with or for represented employees in the bargaining unit before or after work hours, during meal periods, and during any other break periods. The use of facilities shall be arranged at least twenty-four (24) hours in advance to ensure available space.

The exclusive representative may use the City's electronic mail or other similar communication systems to communicate with bargaining unit members regarding collective bargaining, the investigation of grievances or other disputes, matters relating to employment relations, or matters involving the governance or business of the union. Consistent with City policy, users of the City's information technology systems should have no expectation of privacy.

25.10 **Union Leave, Union Paid Time.** Authorized union representatives, upon written requests from the Union, may be given time (less than thirty (30) days) to transact business for the Union in which they are a represented member. The Union will cooperate with the City by controlling requests for such time to a maximum of five (5) employees per union off at any given time and in a manner which will minimize interference with the City's operations. Employees granted such leave

for attending Executive Board meetings, Membership meetings, conferences, training and workshops pertaining to collective bargaining, arbitration, or other labor law matters and developments, shall be maintained on the payroll with full accrual of wages and benefits and the Union shall reimburse the City for all wage and wage-driven benefit costs associated with this time. Effective with this agreement, the rate of reimbursement is 134.98% of the employee's normal hourly wage and includes 26.12% for PERS, 6.2% for SSI, 1.45% for Medicare, and 0.8237% for Tri-Met and 0.4% for Paid Leave Oregon. Should the wage-driven benefits cost change, the City will provide written documentation of the change to the Union. All Union Leave, Union Paid time will be counted as hours worked for FMLA/OFLA calculation and in the calculation of eligibility for City-paid health benefits as provided in Article 18.

25.11 Long Term Leave of Absence (Release Time, Union Paid). Union representatives may take reasonable time off to conduct full-time union business and shall, upon fifteen (15) calendar days' written notice be granted a union leave of absence and will be maintained on the payroll. The employee will receive their salary and fringe benefits and the Union shall reimburse the City for all wage and benefit costs associated with this time. Employees on Release Time will continue to accrue seniority and retirement credit. Accrued vacation, compensatory time, deferred holiday, and sick leave will remain on the books until such time that the employee returns to the City as a full-time employee or their service with the City is terminated, whereupon the use of such accruals shall be governed by the appropriate contract provisions in effect. No additional vacation, compensatory time, deferred holiday, or such leave will accrue during this Release time. The City will permit a maximum of two employees at any given time to be released under this Article.

25.11.1 Termination of Release Time. An exclusive representative or a designated representative may terminate a period of release time authorized under this article at any time for any reason.

25.11.2 Return to Work. At the conclusion or termination of a period of release time granted to a designated representative under

this article, the designated representative shall have a right to reinstatement to the same position and work location held prior to the commencement of the release time or, if not feasible, to a substantially similar position without loss of seniority, rank, or classification. The City will return an employee who has terminated their release time to paid employment within fourteen (14) business days of written notice from the employee or the union.

25.12 The City shall invoice the Union on a quarterly basis for reimbursable loss time. Invoices shall be provided within six (6) months of the end of the billable quarter. The Union shall have thirty (30) days from receipt of the invoice and billing report to review for any discrepancies. The Union will reimburse the City within sixty (60) calendar days of receipt of the invoice, or thirty (30) days from receipt of the corrected invoice.

25.13 **Employee Rights.** The City agrees not to interfere with the rights of employees to become members of the Union, and there shall be no discrimination, interference, restraint, or coercion by the City or any City representative against any employee because of Union membership or because of any employee activity in an official capacity on behalf of the Union, or for any other cause, provided that such activity shall not interfere with employees in the performance of their duties.

25.13.1 There shall be one official personnel file maintained by the Bureau of Human Resources. Upon signing this agreement, all future disciplinary actions will be maintained in the official personnel file. Employee shall be allowed to examine their personnel file upon request. Employee will be made aware of any information placed in their personnel file. Nothing herein shall preclude bureaus from maintaining unofficial personnel files.

25.13.2 All written working rules or regulations affecting the working conditions of any employee covered by this agreement shall be made available upon request to the Unions. The Union and the City shall meet immediately on any rule or regulation which tends to be in conflict with this agreement. It shall also be the

responsibility of the City to inform employees of all rules and regulations which affect him/her as an employee.

- 25.14 **Labor Management Committee.** The parties agree to continue their commitment to currently established Labor Management Committees for the duration of this labor agreement.
- 25.15 The City shall furnish bulletin boards in places mutually satisfactory to the City and the Unions. Such bulletin boards are to be used by the Unions to post notices of interest to the employees.
- 25.15.1 Such notices shall be signed and in good taste and shall not reflect on the integrity or motives of any individuals, City Bureaus, or activities.
- 25.15.2 If the City believes that a notice does not meet the criteria specified in Article 25.15, it will notify the Union. Upon such notification, the Union will remove the notice. If the City and the Union disagree whether or not a notice meets the criteria specified in Article 25.15, they will meet and attempt to resolve their differences. If the City and the union still cannot agree, the union may file a grievance. If the matter is eventually referred to arbitration through the grievance process, the issue before the arbitrator will be whether or not the notice met the criteria specified in Article 25.15. If the arbitrator determines that the criteria of 25.15 have been met, the notice will be re-posted.

Article 26. Pay Day

- 26.1 Payday shall be every other week and in no case shall more than six (6) days' pay be held back. Employees shall be paid prior to the end of their assigned shift.
- 26.2 Employees that are laid off, quit, or are discharged, shall receive their pay in compliance with State law.
- 26.3 Upon request by the employee the City will make any earnings-related payroll data not regularly provided on the pay stub available to the

employee without unreasonable delay.

- 26.4 Prior to implementing direct deposit, the Union and City will meet to review the procedures and reporting requirements for direct deposit.

Article 27. Strikes and Lockouts Barred

- 27.1 There shall be no lockouts on the part of the City, nor suspension of work on the part of the employees. This agreement is a guaranty that for its duration there will be neither strikes, picketing nor lockouts, and that all complaints, grievances or disputes arising under its provisions will be settled pursuant to its grievance procedure. Employees covered by this Agreement shall not be used to perform work which is normally performed by striking employees.
- 27.2 If employees encounter a labor dispute picket line at an assigned work location, the employees shall immediately contact their supervisor. The City and the employee's union shall confer about appropriate actions to ensure employee safety and the completion of City work.
- 27.3 ORS 243.732 provides that public employees, other than those engaged in a non-prohibited strike, who refuse to cross a picket line shall be deemed to be engaged in a prohibited strike.
- 27.4 The City may require employees to return City property in good working condition to their supervisor or designee immediately prior to the commencement of a strike.

Article 28. Maintenance of Standards

- 28.1 Standards of employment related to wages, hours and working conditions which are mandatory for collective bargaining except those standards modified through collective bargaining shall be maintained at not less than the level in effect at the time of the signing of this Agreement. Any disagreement between the Union and the City with respect to this section shall be subject to the grievance procedure.
- 28.2 Notwithstanding the provisions of Article 28.1, the parties agree that the private use of public resources (e.g., facilities, services, equipment,

tools, computers, technology, etc.) by individual employees is a matter of managerial discretion. The Union agrees that the City retains the right to establish policies governing the private use of City resources by employees and that the City may change, modify or discontinue these policies at any time, without further bargaining, with fourteen (14) days written notice. These policies shall not be subject to the grievance procedure.

Article 29. Wage Scales

29.1 Upon request, with reasonable notice, the City will provide an accurate amount of the individual employee's accumulated sick leave, holiday, and vacation credits.

29.2 City Initiated Classification Changes. Before reclassifying any AFSCME represented position, proposing a new classification in a AFSCME represented series, or abolishing any AFSCME represented classification, the Human Resources Director, or designee, shall notify the Unions affected by the proposed reclassification, creation or abolition, and discuss the effect thereof.

29.2.1 If the City reclassifies any represented bargaining unit position(s), and there is a disagreement over whether the new classification remains in the bargaining unit or over representation of the new classification, the parties will meet, within 10 working days (14) calendar days to attempt to resolve the matter by mutual agreement prior to resorting to the procedures in the Public Employees Collective Bargaining Act.

29.3 Reclassification Changes

29.3.1 The City shall maintain a procedure for employees to initiate reclassification reviews.

29.3.2 Disputes about the appropriateness of reclassification of employees by management or denial of employee-initiated requests for reclassification may be appealed to the Human

Resources Director and the Civil Service Board in accordance with the Personnel Rules of the City of Portland.

29.4 The Unions recognizes that the Human Resources Director and Civil Service Board have the sole authority to classify or reclassify positions.

29.5 **Granting of Status.** When a position is reclassified, the incumbent may be granted status in the position when the following criteria are met:

29.5.1 Management makes a request to grant status when going through the position reclassification process; and

29.5.2 The employee being granted status meets the minimum qualifications for the new classification, including any required licenses and certifications.

29.6 **Wage Rates for New Classifications**

29.6.1 When any classification not listed in Schedule A is established, or when an existing classification is substantially revised, the City will set a wage range for the classification which is reasonably related to wage ranges for comparable positions in comparable labor market areas for the classification and to wage ranges for existing classifications in Schedule A.

29.6.2 Upon setting a wage range for the new classification, the City shall notify the Union of the range and its effective date. The Union may either accept the established range or within ten (10) working days of receipt of the City's notice, notify the City's designee for labor relations of its desire to bargain under the provisions of state law. The Union's demand to bargain will outline whether it is looking to bargain over wages, impacts or both. The City can establish an interim rate during bargaining.

29.7 **PERS/OPSRP.** The City agrees to maintain its membership in the State of Oregon Public Employees Retirement System (PERS)/Oregon Public Service Retirement Plan (OPSRP). The City shall "pick-up", assume and pay a six percent (6%) average employee contribution to the Public Employees Retirement Fund and the Oregon Public Service Retirement

Plan for the employee members then participating in the Public Employees Retirement System. Such “pick-up” or payment of employee member contributions to the system shall continue for the life of this agreement and shall also be applicable to employees who first begin to participate in the system on and after July 1, 1980, to the termination of this agreement.

- 29.8 The full amount of required employee contributions “picked-up” or paid by the City on behalf of employees pursuant to this agreement shall be considered as “salary” within the meaning of ORS 238.005 (21) or ORS 238A.005 (16), as appropriate, for the purposes of computing an employee member's “final average salary” within the meaning of ORS 238.005 (8) or ORS 238A.130, as appropriate, but shall not be considered as “salary” for the purposes of determining the amount of employee contributions required to be contributed pursuant to ORS 238.200 or ORS 238A.330, as appropriate. Such “picked-up” or paid employee contributions shall be credited to employee accounts pursuant to ORS 238.200 (2) or ORS 238A335, as appropriate, and shall be considered to be employee contributions for the purposes of ORS 238.200 or ORS 238A330, as appropriate.
- 29.9 City employees under Multnomah County Retirement System will receive in lieu of the PERS “pick-up” a six percent (6%) contribution by the City of Portland into its Deferred Compensation Program.
- 29.10 **Deferred Compensation.** The City shall allow employees under this contract to participate in the Deferred Compensation Program that is currently available to employees. However, if the program is determined not to be allowable as a tax deferral under the Internal Revenue Code, the participating employee shall hold the City and the union harmless against any and all claims, demands, or other forms of liability arising as a result of any invalidation of the terms and conditions of the Program.

Article 30. Recoupment of Overpayment/Underpayments

30.1 Overpayments

30.1.1 In the event that an employee receives wages or benefits from the City to which the employee is not entitled, regardless of whether the employee knew or should have known of the overpayment, and regardless of when the overpayment occurred, the employee will repay the City. The City will provide the employee with written notification of the overpayment, including information supporting that an overpayment exists and the amount of wages and/or benefits to be repaid.

30.1.2 Overpayment amounts may be recovered by payroll deduction. For purposes of recovering overpayments by payroll deduction, the following shall apply:

- (A) The City may, at its discretion, use the payroll deduction process to correct any overpayment.
- (B) Where the payroll deduction process is utilized, the employee and City, and the Union if requested by the employee, shall meet and attempt to reach mutual agreement on a repayment schedule within thirty (30) calendar days following written notification.
- (C) If there is no meeting held or otherwise a mutual agreement on repayment at the end of the thirty (30) calendar day period, the City shall implement the repayment schedule stated in 30.1.4 below. The parties may extend the thirty (30) calendar day period by a mutual written agreement.

30.1.3 The employee may elect to repay the City for the total amount owed via cash or check in one payment.

30.1.4 If the overpayment amount to be repaid is more than five percent (5%) of the employee's regular monthly base salary, the overpayment shall be recovered in monthly amounts not

exceeding five percent (5%) of the employee's regular monthly base salary. If an overpayment is less than five percent (5%) of the employee's regular monthly base salary, the overpayment shall be recovered in a lump sum deduction from the employee's paycheck. If an employee leaves City service before the City fully recovers the overpayment, the remaining amount may be deducted from the employee's final paycheck. Alternate repayment plans may be allowed under this section pending approval by the Human Resources Director.

30.1.5 An employee who disagrees with the City's determination that an overpayment has been made to the employee may grieve the determination through the grievance procedure. In the event a grievance is filed over the City's determination that an overpayment has been made, recoupment deductions will be held in abeyance pending resolution of the grievance.

30.1.6 This Article does not waive the City's right to pursue other legal procedures and processes to recoup an overpayment made to an employee at any time.

30.2 Underpayments

30.2.1 In the event the employee does not receive the wages or benefits to which the employer agreed the employee was entitled, the City shall correct any such underpayment.

30.2.2 This provision shall not apply to claims asserting eligibility for payments which result from this agreement. Employees claiming eligibility for such things as lead work, work out of classification pay or reclassification must pursue those claims pursuant to the timelines elsewhere in this agreement.

Article 31. Clothing

31.1 In order to efficiently distribute currently provided work clothing and to encourage individual employee responsibility, each bureau shall set work group standards as to what constitutes work clothing and on what

schedule and in what quantity it shall be issued in accordance with the procedure defined in section 24.13.1.

- 31.2 Employees who work in hot asphalt will be furnished safety shoes on a replacement basis as needed, no more than two (2) pair annually. Asphalt employees will turn in worn out safety shoes as a condition to reimbursement for a new pair.
- 31.3 Any employee working in a position where the City now requires rain gear or safety shoes, shall be paid \$350 per fiscal year for the purchase of hearing protection, prescription safety glasses, safety shoes, rain gear, clothing that shall be worn on the job and that is intended to protect employees from exposure to potential hazards and/or inclement weather encountered in the performance of their assigned duties, or tools for employees who are required to furnish tools to carry on their trade for the City in accordance with present practices. Such payment will be made on the second paycheck in the fiscal year or the second paycheck following new employment.
- 31.3.1 A temporary employee, as defined in Article 1, shall be paid for safety shoes under this Article.
- 31.4 **Wildland Fire shoes.** Footwear must meet the current specifications established by the National Fire Protection Association.
- 31.4.1 Footwear will be cared for and maintained by the individual employee and stored by each with their fire gear. Such footwear is to be worn when fighting wildland fires on Portland Water Bureau property or at the discretion of Bureau Management and is not for personal use.
- 31.4.2 Footwear will be replaced for employees only after their footwear have been inspected for wear and replacement authorized by their Supervisor.
- 31.4.3 The purchase process and records maintenance will follow established Water Bureau guidelines.

- 31.5 **Water Meter Reader Shoes.** Water Meter Reader I and II employees regularly assigned to read meters will be reimbursed, upon proof of purchase, up to \$250.00 for an additional pair of safety shoes on a replacement basis, as needed, no more than twice annually.

Article 32. Unemployment Compensation

- 32.1 The City shall provide employees with unemployment insurance as required by law.

Article 33. Training, Schools, and Conventions

- 33.1 In making determinations as to personnel who shall attend conventions or schools, the City will consider personnel covered by this agreement when it finds that attendance by such employees will appreciably add to their ability to perform their duties to an extent deemed by the City to be economically justifiable.
- 33.2 Represented employees selected by the City to attend job-related training will be compensated on the same basis as other employees for wages, per diem and the costs of training and transportation.
- 33.3 Where the City requires certification of certain employee skills and the certification requirement did not exist at the time of employment in the classification, the City will pay the initial costs incurred in the certification. Present practices relating to the City assuming costs relating to employee certification will be continued. Drivers' License and endorsements are excluded from this provision.
- 33.4 When new equipment is obtained by the City, that falls within an existing classification and is significantly different from existing equipment, the City will offer the opportunity for on-the-job training to those required to operate the new equipment.

Article 34. Professional Development Fund

- 34.1 The Unions and the City mutually recognize the benefit of professional development for members of the Unions. To accomplish this:

- 34.2 The City shall fund a Professional Development account in the amount of \$175,000 per fiscal year.
- 34.3 At the end of each fiscal year any unexpended monies up to \$30,000 shall be carried over and added to the next fiscal year's fund. If at the end of a fiscal year more than \$30,000 remains in the fund, the entire unexpended monies shall be returned to the City.
- 34.4 Administrative assistance for administering the fund up to \$30,000 of the funds annually may be deducted from the fund to cover those costs provided. In addition, the City will confer with the Union about measures to reduce these administrative costs and implement measures as agreed.
- 34.5 Monies from this account may be used by an employee for any of the following, provided it pertains to their current position, or is reasonably related to work or services provided by the City:
- 34.5.1 Fees and/or tuition to professional development seminars, classes, workshops, and conferences.
 - 34.5.2 Books, tapes, videos, and software that may assist employees in their professional development. Items such as these must be turned over to the Bureau upon separation from the City.
 - 34.5.3 Licenses, certifications, and professional dues not paid by the employee's bureau.
 - 34.5.4 Up to \$40,000 from this fund, per fiscal year, may be utilized to hire consultants or coaches to work one-on-one with employees on career development activities.
- 34.6 The account shall be administered by a four (4) member Professional Development Committee, two (2) from the Union and two (2) from Management. This committee will approve expenditures and meet at least once (1) yearly to discuss any needed policy issues.
- 34.7 The Bureau of Human Resources will establish accounting procedures for the fund in accordance with all applicable Federal, State, and

Municipal Laws.

- 34.8 Professional Development Committee decisions shall be made by consensus. The Committee shall establish committee decision-making processes and criteria for approval of Professional Development requests.
- 34.9 Release time to attend professional development seminars, classes, workshops, and conferences shall be subject to approval by the City, which shall not be unreasonably denied when the training is directly related to the employee's City job or is reasonably related to work or services provided by the City. Except for the City funding of this program, Article 34 is not subject to the grievance procedure.
- 34.10 The Professional Development Fund for the Union will be governed by this Article, the Professional Development Committee and Professional Development Fund Plan Document.

Article 35. Evaluations/Counseling

- 35.1 Private discussions, evaluations or counseling may be used to review or evaluate employee performance or conduct and are not considered disciplinary action. Private discussions, evaluations or counseling are intended to acknowledge employee performance, identify standards of performance and behavior, and should result in reviewing employee progress in meeting identified standards of performance and behavior.
- 35.2 An employee shall receive a copy of any employee evaluation report, and management will receive acknowledgment that the employee has received such report. Any rebuttal to an employee's evaluation report shall be, upon request of the employee, attached to the evaluation report and placed in the employee's personnel file. Such rebuttal must be filed within fifteen (15) workdays following receipt of the evaluation report. Performance evaluations will be subject to the grievance procedure only when they are used as the basis for discipline or if an employee is claiming a factual misrepresentation.
- 35.3 One-on-one discussions, evaluations or counseling by supervisors do not require the presence of a Union representative.

- 35.4 The parties agree that all meetings under this Article will be conducted in a professional manner and in a spirit of mutual respect.

Article 36. Discipline and Discharge

- 36.1 Disciplinary actions or measures shall include only oral warning, written reprimand, demotion, suspension and discharge. Disciplinary action or measures may be imposed only for just cause. Any disciplinary action or measure imposed upon an employee may be processed as a grievance through the regular grievance procedure.
- 36.2 If the parties agree, a Performance Improvement Plan (PIP) may be used in place of the disciplinary steps prior to discharge in cases of employee performance problems. The content of the PIP will be mutually agreed upon and either parties' offer or refusal to agree to a PIP shall not be used against them in the grievance procedure.
- 36.3 If the City has reason to reprimand an employee, it shall be done in a manner that will not embarrass the employee before other employees or the public. If the City has reason to discuss any disciplinary action or the possibility of any disciplinary action, the employee shall be given the option of having a Union representative present at any such discussion. Written disciplinary actions shall not be posted; however, this does not preclude management from notifying other management and employees when restrictions are applied to an employee as a result of discipline.
- 36.4 Additionally, Police Bureau employees are provided with the following: prior to being interviewed regarding an Internal Affairs investigation for any reason which could lead to disciplinary action, an employee shall be afforded an opportunity and facilities to contact and, consult privately with an attorney of his choosing and/or a representative of the Union.
- 36.5 **Discharge, Demotion and Suspension.** The City shall not discharge, demote, or suspend employees without just cause who have completed their probationary period as provided in section 1.1.1. If, in any case, the City feels that there is just cause for discharge, demotion or suspension, the employee involved, and the Union shall be provided

with a written notice of proposed discipline seven (7) calendar days before the effective date. Such notification shall state the nature of the offense for which the employee is being discharged, demoted, or suspended, in detail, specifying dates, locations, and the particular nature of the offense committed by the employee and the right to respond to the authority proposing such action either orally or in writing prior to the effective date of proposed discipline.

- 36.6 Records of oral or written reprimand not involving other-disciplinary action, shall be removed from an employee's personnel file after one year, upon the employee's request, provided in the judgement of the City, the employee has taken corrective action and has received no other disciplinary actions. Approval to remove such material from the file shall not be unreasonably withheld.
- 36.7 Any employee found to be unjustly suspended or discharged shall be reinstated with full compensation for all lost time and with full restoration of all rights and conditions of employment unless otherwise stipulated by mutual agreement or otherwise specified in the grievance procedure or by an arbitrator under the grievance procedures hereinafter set forth.
- 36.8 Just cause provisions of this section do not apply to temporary employees, as defined in Article 1.
- 36.9 Upon separation, discipline, or discharge, a temporary employee as defined in Article 1, may write a statement which will be maintained with the employee's official records on file in the Bureau of Human Resources.

Article 37. Grievances, Complaints and Arbitration

- 37.1 To promote better City-employee relationships, all parties pledge their immediate cooperation to settle any grievances or complaints that might arise out of the application of this Agreement, and the following procedure shall be the sole procedure to be utilized for that purpose. The parties further agree that all meetings under this procedure will be conducted in a professional manner and in a spirit of mutual respect

consistent with mutual resolution of grievances arising under this Agreement.

- 37.2 If there is a breach of any provision of this Agreement affecting a group of employees, or if the breach of any provision of this Agreement is the result of an agreement reached between the City and an employee without the approval of the Union involved, the Union shall have the right to take up such breach with or without the consent of the employees or employee involved.

37.3 **Procedure**

37.3.1 **Time Limits.** It is important that grievances be processed as rapidly as possible. The number of days indicated at each level should be considered as a maximum, and every effort should be made to expedite the process. The time limits specified may, however, be extended by mutual agreement. Failure by the City to respond in writing within the time limits at each level shall render the grievance automatically appealed to the next level in the grievance procedure. Upon the timely filing of written grievance as specified herein, the Union shall have sole discretion as to the processing of such grievance and shall have the right to carry the grievance through the grievance procedure with or without the consent of the employee(s) originally filing the grievance.

37.3.2 **Informal Level.** Before initiating a formal written grievance at Level One, the employee may attempt to resolve the matter by informal conference with their immediate designated supervisor outside the bargaining unit. If the immediate supervisor is not available, the employee may attempt to contact another supervisor or manager. The employee shall notify the Union, and a representative of the Union shall be given the opportunity to be present at any meeting under this section. Either party may declare that the informal level has been completed.

37.3.3 Upon appeal of any discharge, demotion, or suspension before

the Civil Service Board any grievance filed under the terms of this Agreement shall be withdrawn.

37.3.4 Level One -- Bureau Head or Designee

- (A) If a dispute is not resolved at the informal level, the employee or Union shall file the grievance in writing to the Bureau Head or Designee within thirty (30) calendar days of the claimed violation.
- (B) The grievance statement shall specify (each of) the provision(s) of this Agreement claimed to be violated and the manner in which such provision is claimed to have been violated, all pertinent information, the remedy sought, and shall be signed by (each of) the employee(s) and/or by the Union. The Grievant and the Union have a good faith obligation to be as complete and forthcoming as possible in making this statement and providing information regarding the grievance.
- (C) The parties shall meet to discuss the grievance with the appropriate bureau head or designee to whom the grievance is submitted and shall communicate their decision, along with the reasons therefore, to the employee and the Union in writing within thirty (30) calendar days after having received a timely appeal to Level One.

37.3.5 Level Two -- Human Resources

- (A) If the employee or the Union is not satisfied with the disposition at Level One, the employee or the Union may appeal the grievance to the Bureau of Human Resources at Level Two within thirty (30) calendar days after receiving notice of the Level One decision.
- (B) The Union or the Grievant with the concurrence of the Union shall have the right to perfect the grievance at any time prior to a union appeal to Level 4 – Arbitration. The right to perfect the grievance is limited to the substantive issues previously

raised in the grievance.

- (C) The Union shall have a right to take up any disciplinary action brought against a Shop Steward by the City as a grievance at Level Two of the grievance procedure (see Clause 25.2 of this Agreement) within thirty (30) calendar days of receipt of written notice to impose the disciplinary action.
- (D) A grievance involving a suspension, demotion or discharge shall be filed directly to Level Two no later than thirty (30) calendar days of receipt of written notice of imposed discharge, demotion or suspension.
- (E) The Director of the Bureau of Human Resources or their designee shall respond to the grievance within thirty (30) calendar days after the grievance has been filed at Level Two.

37.3.6 Level Three -- Mediation

- (A) If the Union is not satisfied with the Level Two, upon the mutual agreement of the parties it may be referred to mediation within-thirty (30) calendar days after the Level Two disposition has been rendered.
- (B) The costs of the mediator will be equally split between the parties.

37.3.7 Level Four -- Arbitration

- (A) If the grievance remains unresolved at Level Two or Level Three (mediation), the Union shall have the right to refer the matter to arbitration. In the event the local Union elects to do so, it must notify the Bureau of Human Resources of its decision in writing within thirty (30) calendar days of denial of the grievance at Level Two or thirty (30) calendar days after the close of mediation if the parties agreed to refer the grievance to Level Three.

- (B) After the grievance has been referred to arbitration, the parties or their representatives shall jointly request the State Conciliation Service for a list of names of seven (7) arbitrators. The parties shall select an arbitrator from that list by such method as they may jointly select, or if they are unable to agree upon a method, then by the method of alternate striking of names under which the grieving party shall strike the first name objectionable to it, and the City shall then strike the first name objectionable to it. The final name left on the list shall be the arbitrator.
- (C) The arbitrator's decision shall be final and binding, but the arbitrator shall have no power to alter, modify, amend, add to or detract from the terms of this Agreement. The decision of arbitration shall be within the scope and terms of this Agreement and shall be in writing.
- (D) The City and local Union involved shall divide equally the arbitrator's fee, the cost of any hearing room and the cost of a shorthand reporter if requested by an arbitrator. All other expenses shall be paid by the party incurring them.
- (E) The time limits specified herein shall be jurisdictional unless waived by mutual agreement of the parties. The local Union involved shall have sole authority to determine whether a grievance shall be submitted to arbitration, and any such decision or settlement of the grievance between the Union and the Bureau of Human Resources/Bureau Head in good faith shall be binding on all parties.
- (F) The parties shall make a good faith effort to avoid unreasonable delay in scheduling arbitration hearings.

Article 38. Background Checks

- 38.1 The City can require employees to pass a criminal history check and/or background investigation based on business necessity. An employee who is required to undergo a criminal history check and/or background

investigation will be informed of the reason it is required.

- 38.2 Employees who fail to pass a criminal history check and/or background investigation shall be laid off in accordance with the provisions of Article 15. Management reserves the sole right to assign job duties and to determine if an employee is qualified to perform the job duties.
- 38.3 If employees are laid off under the provisions of this Agreement and have no bumping options available under Article 15 they may request the following assistance from their Bureau's Human Resources Business Partner within seven (7) calendar days of receipt of notice that there is no position available to which the employee is qualified to bump and that they will be subjected to layoff.
- 38.4 The Bureau of Human Resources (BHR) will provide the following assistance to place the employee in any vacancy for which the employee is qualified:
- a. Assess the employee's qualifications.
 - b. Review the employee's résumé and provide feedback. Assist the employee to revise their résumé, if requested.
 - c. Provide the employee with information on the recruitment process.
 - d. Inform the employee of appropriate vacancies.
 - e. Allow the employee to participate in limited recruitments.
 - f. Provide the name and qualifications of the employee to hiring managers for consideration when filling vacancies.
 - g. Hiring bureaus will be required to interview qualified candidates and give them priority consideration when filling vacancies.
- 38.5 BHR assistance, if requested in a timely manner, will be provided until the employee is recalled under the provisions of Article 15 or for a period of six (6) months from the date of the final notice of layoff,

whichever occurs first.

- 38.6 If the employee obtains a permanent position with the assistance described above, their name will be removed from the recall list for recall to their former classification.
- 38.7 BHR assistance does not guarantee that the employee will be placed in a vacant City position.

Article 39. Savings Clause

- 39.1 Should any part hereof or any provision herein contained be rendered or declared invalid by reason of any existing or subsequently enacted legislation or by any decree of a court of competent jurisdiction, such invalidation of such part or portion of this Agreement shall not invalidate the remaining portions hereof; provided, however, upon such invalidation the parties agree immediately to meet and negotiate such parts or provisions affected. The remaining parts or provisions shall remain in full force and effect.
- 39.2 The parties recognize that both the City and the Union are subject to the Americans with Disabilities Act (ADA) and that nothing in this Labor Agreement may supersede the requirements of that Federal Law. The parties agree to meet and confer regarding circumstances where the ADA and the Labor Agreement appear to conflict. A showing that a person is disabled, and that action taken as a reasonable accommodation is an absolute defense to a contract violation claim.

Article 40. Effective Date and Duration of Agreement

- 40.1 This Agreement, effective January 1 2025, or upon ratification by both parties, shall remain in full force and effect through December 31, 2027.
- 40.2 In the event that City revenue sources should be decreased by the passage or impact of a tax limitation measure, legislatively mandated change, cut back in Federal and/or State revenue sharing, or any other conditions causing a worsening of the City's financial position, the City Council and the Union agree that they will meet and discuss the

economic impact and, by mutual agreement, will put forth a good faith effort to arrive at alternatives to a reduction in the work force.

Water Bureau Addendum

Standby

1. The Bureau may require employees in the Maintenance and Construction Group to standby during their off-duty hours.
2. If the Bureau requires an employee to standby during their off-duty hours, the employee shall receive one quarter (0.25) hour of pay at the straight time rate for each hour of standby.
3. Employees who are assigned standby time and are called back to work during such assignment shall have the option of pay at the applicable overtime rate or compensatory time computed at the applicable overtime rate up to a total accrual of eighty (80) hours at any one time.
4. Work performed while on standby will be paid in accordance with Article 11.2 and its subsections of the Agreement.
5. Standby shall be defined as a requirement that an employee remain available and fit for callout, and respond for work as required, during non-working time. Employees are responsible for keeping their assigned telecommunications equipment in operation and for complying with their standby work assignment at all times. Failure to comply with the standby work assignments may subject employees to appropriate disciplinary actions.
6. The employee on standby must respond to the initial contact within one-half (1/2) hour unless otherwise mutually agreed. If the employee's presence at the worksite is required, the employee must be able to report for work within a period of one (1) hour, absent unusual circumstances.
7. If an employee is called back to work, either under a standby agreement or otherwise and works less than three (3) hours and is called out again within the three hours, they will not receive a second minimum.
8. When persons in a District are not able to work Standby, and standby

coverage is needed from persons outside of the District, the established process for overtime equalization will be utilized.

Water Treatment Operators

1. The Water Treatment Operators will work a schedule in positions delineated as follows:
 - Day 1 Shift
 - Day 2 Shift
 - Night 1 Shift
 - Night 2 Shift
 - Maintenance Operator 1 Shift
 - Maintenance Operator 2 Shift
 - Maintenance Relief 1 Shift
 - Maintenance Relief 2 Shift
2. The Water Treatment Operators will work the following shifts:
 - a. The Water Treatment Operators on Day 1 Shift and Night 1 Shift will work a bi-weekly schedule of one (1) six and one half (6.50) hour work day, three (3) days off, two (2) twelve and one quarter (12.25) hour work days, two (2) days off, three (3) twelve and one quarter (12.25) hour work days, two (2) days off, and one (1) twelve and one quarter (12.25) hour work day.
 - b. The Water Treatment Operators on Day 2 Shift and Night 2 Shift will work a bi-weekly schedule of one (1) day off, three (3) twelve and one quarter (12.25) hour work days, two (2) days off, one (1) twelve and one quarter (12.25) hour work day, one (1) six and one half (6.50) hour workday, three (3) days off, two (2) twelve and one quarter (12.25) hour workdays, and one (1) day off.
 - c. The Water Treatment Operators on Maintenance Operator 1 Shift will work a weekly schedule of one (1) ten (10) hour workday, three (3) days off, and three (3) ten (10) hour workdays.
 - d. The Water Treatment Operators on Maintenance Operator 2 Shift will work a weekly schedule of two (2) ten (10) hour workdays,

three (3) days off, and two (2) ten (10) hour workdays.

- e. The Water Treatment Operators on Maintenance Relief 1 Shift will work a weekly schedule of one (1) twelve (12) hour workday, three (3) days off, one (1) ten (10) hour workday, and two (2) nine (9) hour workdays.
 - f. The Water Treatment Operators on Maintenance Relief 2 Shift will work a weekly schedule of four (4) ten (10) hour workdays followed by three (3) days off.
 - g. The Lusted Hill Operator will work a weekly schedule of one (1) ten (10) hour workday, three (3) days off, and three (3) ten (10) hour workdays.
 - h. The Lead Operator will work a bi-weekly schedule of one (1) nine (9) hour workday, one (1) eight (8) hour workday, two days off, four (4) nine (9) hour workdays, three (3) days off, and three (3) nine (9) hour workdays.
- 3. Days and shift hours worked for each 80-hour pay period are set out in the attached shift schedule. The standard day shift hours set out in Article 8.1 and the shift starting times set out in Article 9.1 of the contract do not apply and are expressly waived.
 - 4. Water Treatment Operator Day Shifts 1 & 2 will receive Second/Swing differential pay as set forth in Article 9.3 of the contract for all hours worked from 4:00 p.m. to 8:00p.m. during their regularly scheduled shift.
 - 5. Water Treatment Operator Night Shifts 1 & 2 will receive Third/Graveyard differential pay as set forth in Article 9.3 of the contract for all hours worked during their regularly scheduled shift.
 - 6. Maintenance Relief 1 and Maintenance Operator 1 shifts will receive Relief differential pay as set forth in Article 9.3 of the contract for all hours worked during their regularly scheduled shift.
 - 7. All Operators working 12.25-hour shifts will have two (2) paid twenty

(20) minute lunch periods during their assigned shift and three (3) paid fifteen (15) minute rest periods, one for each segment of four (4) hours or major part thereof worked.

8. All Operators working ten (10) hours shifts will have one (1) paid thirty (30) minute lunch period during their assigned shift and two (2) paid fifteen (15) minute rest periods, one for each segment of four (4) hours or major part thereof worked.
9. All Water Treatment Operators are expected to respond to plant alarms, phone calls, and any other operational needs that may arise during their lunch or rest periods.
10. All Water Treatment Operators are ineligible for unpaid absences during the regular workday for personal reasons.
11. Article 9.3 of the contract does not apply and is expressly waived.
12. In the event the starting or quitting time of any existing schedule is changed, the Union will be advised. Notice of change in shift starting times or days off will be given prior to the end of the employee's workweek before the workweek in which the change becomes effective and such change will be effective for not less than one week, in accordance with the requirements of the contract. In the event any employee's workdays are changed so that the employee does not have two consecutive days off between schedules, the first day of the changed weekly schedule shall be paid for at time and one-half, in accordance with the contract.

Water Distribution Worker Transition

1. No current employee shall be required to move to the WDW classification as a requirement to maintain their employment in the PWB.
2. Any Automotive Equipment Operator (AEO) I, Utility Worker I & II's employed in the Maintenance & Construction division who has obtained journey status as a Utility Worker II will be afforded the opportunity to promote to Water Distribution Workers subject to the

terms of this agreement.

3. AEO I, Utility Worker I & II's employed in the Maintenance & Construction Division as of October 1, 2025 may elect to join the Water Distribution Worker (or Water Distribution Worker Trainee for existing Utility Worker II, Trainee) classification at any time prior to October 1, 2025 and the Bureau will request to reclassify the employee to the new classification when they become qualified and elect to join the new classification. Qualified employees as described above will be granted status into the Water Distribution Worker classification without a competitive process.
4. AEO I, Utility Worker I & II's employed within the Water Bureau who elect to promote to WDW will maintain seniority at the Journey date of Utility Worker II classification. The seniority date for employees moving into the WDW series from outside the Water Bureau will equate to the date the employee enter the WDW classification in the Water Bureau.
5. A current Water Bureau AEO I or Utility Worker II, who has achieved the top pay step within the AEO I or UW II classification shall be placed at the top step of the WDW pay range and their JCAD will reset.
6. Employees not at top step will be mapped to the to same level on the new scale as the employees' current level in the AEO I, Utility Worker I & II classifications and the employees will retain their current JCAD to determine the next step increase date.
7. Current City employees from outside the Water Bureau within the AEO1 and UWII classifications shall be placed into the WDW, Trainee classification at entry or will require Pay Equity to support placement above entry.
8. A Utility Worker II who was previously legaced into the Utility Worker II classification without acquiring a Commercial Driver's License will be eligible to join the new classification (WDW) without meeting the Commercial Driver's License requirement.
9. The Utility Worker II, Apprentice Eligible list in existence as of March 1,

2022 may be used for the selection of Water Distribution Worker, Trainees until it is replaced.

10. Utility Worker, Apprentices hired after December 1, 2021 will be reclassified to Water Distribution Worker, Trainee.
11. AEO I's employed within the Water Bureau as of March 1, 2020 shall maintain first right of refusal for any bid opening that is a result of an AEO I vacancy.
12. AEO I's employed within the Water Bureau as of March 1, 2022 shall be eligible to bid on the work location of any open WDW opportunity and bids will be awarded based on seniority as defined in the Labor Agreement. If there are already two (2) AEO I's in the work unit where the WDW bid is open, the City may decline to select an AEO I who bids on that opportunity. An AEO I who wins the bid will remain an AEO I and be moved to the new work location. Nothing in this agreement shall limit the City's utilization of the 25% rule outlined in Article 13.2.5.
13. A WDW leading a crew will receive an upgrade to WOM if the work involved requires equipment and an excavation greater than 24" in depth.
14. A WDW leading a crew for all paving operations will be upgraded to Street Maintenance Crew Leader.
15. E-crew and urgent responder duties shall remain the work of WOM. This is not intended to limit the Bureau from upgrading a WDW if a response is required.
16. When a planned overtime, emergency overtime, or standby opportunity callout requires the use of the general callout list or equivalent for operators of equipment with two or more rear axles, personnel in the Automotive Equipment Operator I classification employed prior to March 1, 2022 will be offered the OT before Water Distribution Worker.
17. When a planned overtime, emergency overtime, or standby opportunity callout requires the use of the general callout list or

equivalent for ground personnel to assist in the completion of the job and both a journey Utility Worker II and a journey Water Distribution Worker would be qualified to do the work, a blended list of both classifications will be used for the purpose of overtime equalization.

Internal-Only Recruitment Process for Customer Accounts Specialist (CAS) Vacancies

This agreement establishes a formal internal-only recruitment process for filling vacant positions in the Customer Accounts Specialist (CAS) classification within the Bureau of Water Works' Customer Service Group. This approach ensures that CAS vacancies are filled through a structured internal selection process, providing equitable access to job opportunities for current employees.

Terms and Conditions

1. Internal-Only Recruitment Process:

Posting Requirements: All CAS vacancies will be posted internally to Customer Service Group employees before any external recruitment efforts are made. The internal posting period will last at least ten business days, giving all eligible employees the opportunity to apply.

Eligibility: All Customer Service Group employees in good standing and meeting the minimum qualifications for the CAS role are eligible to apply. No minimum tenure in the CAS classification is required, allowing newer employees the chance to compete for open positions.

2. Evaluation Criteria:

Standardized Interview and Assessment: A standardized interview and assessment process will be conducted for all CAS applicants, focusing on qualifications, relevant experience, customer service skills, and job performance.

Objective Criteria: Candidate evaluation will include objective criteria such as customer service interaction quality, adherence to service-level agreements (SLAs), and attendance records.

Feedback and Development: Candidates will receive feedback on their applications to support continuous development and

readiness for future opportunities.

3. Selection and Transparency:

Selection Panel: A selection panel composed of managers, supervisors, and/or representatives from the Customer Service Group will review applications and conduct interviews, ensuring consistency and fairness in the selection process.

Results Communication: Candidates will be informed of the selection outcome and may request a feedback session to understand areas for improvement. This feedback will be provided by a panel member to help candidates prepare for future opportunities.

Parking Enforcement Addendum

Parade Schedules

1. Parking Code Enforcement Officers scheduled start to work between 0800 and 1200 hours on the Saturday during the week of the Starlight and/or Rose Festival parades who elect to take the day off will be permitted, with supervisor approval, to elect one of the following:
 - A. Change their schedules in the FLSA work week affected by parade events.
 - B. Use accrued Vacation Leave, Compensatory Time or a deferred or postponed holiday.
 - C. Elect to take the day off without pay.
2. If the Officer elects 1 (A), contractual overtime, other than required by the FLSA, shall be waived.
3. If the Officer elects 1 (C), the Officer will not realize a reduction of benefits or accruals.
4. If second shift officers elect 1(A), and the operational needs require an earlier shift start time, they will receive second shift premium pay.
5. Employees can change shift assignment by seniority as long as the Officer is currently performing that duty or is on the designated relief list for the position opening. Example: Car opening - employee requesting shift would need to currently be a Car Officer or on the Car Relief list.
6. The Division will determine minimum and maximum staffing requirements for each parade day.
7. This Agreement shall be in effect until such time that either party provides written notice to the other party of their wish to terminate this Agreement. Such termination will take effect 30 days after receipt of the written notice.

Holiday Schedules

1. Parking Patrol Division will consider employee requests to postpone holidays based on staffing levels. Requests apply to Parking Code Enforcement Officers whose regularly scheduled day off falls on the day one of the holidays listed in Article 16.1 is observed and, would observe the holiday on either the last scheduled workday before or the first scheduled workday after the holiday as provided in Article 16.1.
2. Based on staffing needs, these Officers may volunteer to work on what would otherwise be their observed holiday under Article 16.1.
3. Division management will set the number of these Officers needed to work.
4. Officers who volunteer to work on what would be their observed holiday will be paid at their regular rate of pay.
5. The paid holiday hours to which the employee is entitled will be postponed.
6. Postponed holidays will be used in accordance with Article 16.2.
7. Postponed holidays will be accrued in a different account than deferred holidays.

Thanksgiving Holiday Schedule

The Division permits as many Parking Enforcement Officers to observe the Day After Thanksgiving Holiday as business operations permit.

1. Division employees represented by the Union who work on the day after Thanksgiving will be paid in accordance with Article 16.2.
2. The Division may change an employee's scheduled working hours, i.e., shift, on the day after Thanksgiving to meet staffing needs. Any such change may be made without regard to the schedule change notification and/or duration requirements in Article 8.2 and the emergency shift change premium in Article 8.4.

3. An employee regularly scheduled to start work between 1200 and 1859 hours on the day of an observed holiday who voluntarily changes their regular starting time shall not receive shift premium.
4. For an employee who is regularly scheduled to work on the day a holiday is observed and whose work schedule requires a schedule change, the employee can volunteer to change her/his work starting time by seniority if qualified for the assignment. Example: Scooter opening - employee requesting shift would need to currently be a Scooter Officer or on the Scooter Relief list.
5. If required to change shift assignment, employees on second shift will receive a second shift premium regardless of shift starting time. Such required shift assignments will be assigned by the least senior qualified employee.

Earlier Start for Operational Need

1. If there is an operational need such as the unscheduled absence of a Parking Code Enforcement Officer or an unplanned special enforcement request, management may request a Parking Code Enforcement Officer to start their workday earlier than scheduled. If the Parking Code Enforcement Officer agrees to the request, it will be done without regard to the schedule change notification requirements of Article 8.2 or the emergency work scheduling provisions of Article 8.4.

Rest and Meal Breaks for Parking Enforcement Officers

1. Parking Enforcement Officers whose bid job is to work in the field will be provided with a twenty (20) minute rest period for each one half (1/2) shift. Break periods must be scheduled in the middle of each one half (1/2) shift whenever feasible. If an officer is temporarily reassigned to a non-field job for two or more consecutive full shifts due to training or as directed by a doctor, they will revert to the rest periods outlined in Article 9.7 of this contract for the duration of the reassignment.
2. If there is an operational need such as a staff meeting, committee meeting, training, or Field Enforcement Work, a Parking Code

Enforcement Officer, with supervisor approval, may combine one (1) rest break per shift with their lunch period, and take the lunch period outside of the timeframe established for their shift.

Portland Police Bureau Addendum

Rest and Meal Periods

Represented positions in the Bureau of Police which are filled on a 24-hour, 7-days a week basis, will have a total shift length of 8 hours and 15 minutes or 10 hours and 15 minutes. These shifts will provide for a half hour, (1/2) paid lunch period. It is further provided that employees from the oncoming shift may relieve employees of the off-going shift.

To provide consistency among work schedules, this agreement is extended to all Divisions and work units within the Portland Police Bureau, which have AFSCME, Local 189 members working.

Represented positions working in the Police Bureau may combine their rest periods under the following conditions:

1. Employees working an 8-hour day typically have an 8.5- or 9-hour schedule depending on whether they have a 30- or 60-minute unpaid lunch period.
2. Employees may combine their morning 15-minute rest period with their afternoon 15-minute rest period in order to take a 30- or 60-minute lunch period and have an 8 or 8.5 hour work schedule in lieu of an 8.5 or 9 hour work schedule. Employees may not leave work before the end of their work shift.
3. This agreement authorizes only the action outlined in Paragraph 2 above. The following are examples only and is not an exhaustive list of actions which are **not** authorized:
 - a. Combine breaks and skip lunch (thereby enabling the employee to leave 30 minutes earlier than would otherwise occur) (8-hour work schedule, paid 8 hours, work 7.5 hours)
 - b. Skip breaks and lunches altogether (thereby allowing the employee to leave 60 minutes earlier than would otherwise occur)
 - c. "Take" their breaks at the end of the day and go home 30 minutes

early

d. Skip the morning or afternoon break and have one longer break in the other half of the shift

e. Other

4. The Police Bureau shall review the waiver on an annual basis and inform the Director of BHR which Divisions/units are exercising the waiver and the operational rationale they are using to justify the waiver.
5. Any employee who does not wish to exercise the waiver may elect to have a schedule that complies with Article 8.3 of the Labor Agreement unless, in the opinion of the Chief or Chief's Designee, operational necessity dictates consistent work schedules in that unit. If that occurs, the Union, the Police Bureau and the Bureau of Human Resources shall meet to determine whether or not to terminate the waiver in that Division/Unit. If no agreement is reached, the Division/Unit will revert to work schedules consistent with Article 8.3.
6. The Police Bureau, the Bureau of Human Resources or Local 189 may terminate this alternate work schedule at any time for any reason, with written notice to the other parties of no less than two full pay periods.

Records Division Shift Bidding

In regard to the Records Division, the following procedure will be followed in seniority bidding for shift and days off:

1. At least once a year the Records Division Manager will determine the number of positions by classification available on each shift, including days off.
2. A sign-up will then be initiated, whereby, in seniority order, based on Bureau-wide seniority within classification, personnel will be contacted and allowed to sign up for shift and days off. Once a person has signed up, there will be no changing allowed. Sufficient advance notice of the sign-up will be given to employees to allow them to determine their

preferences.

3. At other times during the year when there is a vacancy due to a resignation, retirement, etc. or when Records Division Command determines that an additional shift/day off can be accommodated, each vacancy will be posted per union contract and the bid for such vacancy will be awarded based on Bureau-wide seniority within the classification. Vacancies will be posted first within the Division of occurrence and then Bureau wide.

Records Division 4/10 Implementation

The parties agree to establish 4-10 work shifts in the Police Bureau, Records Division, in accordance with Article 8.4.1 of this agreement. These positions will consist of four ten-hour (4-10) days with three consecutive days off. In order to implement the 4-10 plan on a permanent basis, the following conditions are mutually agreed upon:

1. Prior to the sign up, the Division will designate the number and distribution of the 4-10 positions.
2. Each 4-10 position will have a predesignated 5-8 position.
3. Upon mutual agreement between the employee and management, a person in a 4-10 position can revert to the inclusive 5-8 position. This does not limit an employee's rights from exercising their seniority pursuant to Article 13.
4. Between sign ups, vacant 4-10 positions may be filled through the formal bidding process.
5. Consistent with Article 9.1, the parties agree to a mutual change in the day shift for 4-10 personnel to a starting time of 0500 hours. The shift premium provisions shall only apply for starting times prior to 0500.
6. If personnel shortages exceed 20% of a relief's or the Division's authorized staffing level, management may revert the 4-10 personnel to their inclusive 5-8 positions. If staffing increases above that minimum and the 4-10 is reinstated, those reverted employees will

regain their original 4-10 positions without the formal bidding process.

7. No waiver of right established by the terms of the Collective Bargaining Agreement may be construed from this Memo of Understanding which is entered into pursuant of Article 37 of said contract. This Memo of Understanding supersedes any prior agreement on 4-10 scheduling which the parties may have agreed to for the Police Bureau Records Division.

Police Records Division Bidding Provisions

The current Labor Agreement defines the process by which employees earn seniority for the purpose of selecting job opportunities, work shifts and vacation periods. The definition of “work unit seniority” for job selection as well as shifts and vacations is in Article 13.

1. Employees in the Police Records Division have not lost their “work unit seniority” when they have been promoted to other classifications or when they have left the Police Records Division.
2. In circumstances where an employee has stayed within the Police Records Division, but has been promoted to a higher classification, their “work unit seniority” in the lower classification has continued to accrue.
3. In circumstances where an employee has left the Police Records Division, it has been the practice of the Police Records Division to “bridge” their “work unit seniority” giving employees “credit” for previous time served in the classification.
4. In the interests of continuity, the parties agree to continue these practices.
5. AFSCME 189 agrees that it will not file or process grievances alleging violations of Article 13 where the alleged violations are in compliance with this Addendum.

Forensic Evidence Division Time Exchange Guidelines

GENERAL

1. The practice of time exchanges (TX's) between permanently appointed Police ID Technicians, Police Administrative Support Specialists (PASS) is allowed. Individual requests are subject to approval by the affected shift(s) Lead Police ID Technician or Sergeant.
2. TX's are limited to the same job classification (i.e., Lead Police ID Technician, PASS). Lead Police ID Technicians are considered within the "Police ID Technician" classification.
3. Three-way time exchanges are not approved.
4. No member shall offer, or accept an offer, in which one member agrees to work for cash or other consideration.
5. Members requesting a TX are responsible for facilitating all aspects of the exchange. No other members shall be asked to facilitate the TX.
6. No member shall pressure another member to participate in a time exchange. Each member reserves the right to TX with the person of their choice. Seniority and shift assignment are not factors.
7. Overtime compensation shall not be paid for hours worked over the member's standard number of assigned hours in a given day, or 40 hours in a given week.
8. Members may work for a full or partial shift, but the TX must be hour for hour.
9. "5/9"/"5/8" Schedules. The 5/9 member shall take one (1) hour of VA/C/OTC when TXing with a 5/8 member, unless the requested TX is on the 5/9 members short day. Exchanges are "8 hours for 8 hours" or "9 hours for 9 hours".
10. Participants take the risk that a "Payback" does not occur due to Extended SK Leave/Retirement/LOS/etc.

11. Holidays. Only the person “officially” assigned to work the Holiday receives Holiday Compensation. Members will work “Holiday for Holiday”. Holiday paybacks are not subject to the “30-day” rule but will occur within a timely manner.
12. No member shall be pressured to work a TX to avoid paying overtime monies.
13. TX members shall work at the location assigned to the regularly scheduled member “Bumping” for assignment location is not allowed.
14. In the event a member is ordered to work over, and the on- duty TX is lowest in seniority, that member shall be ordered.
15. The option to Time Exchange will be at the discretion of the Division Captain, and may be terminated at any time.

PROCESSING AND APPROVAL

16. An email shall be submitted to the affected shift(s) Lead Police ID Technician(s) no less than four calendar days prior to the date of the requested time exchange.
17. Paybacks shall occur within thirty (30) days excluding Holiday time exchanges (Refer to #11).

MEMBER OBLIGATIONS

1. Members agreeing to work the shift of other members assume responsibility for reporting for duty for that member. In the event a member fails to show, the member regularly assigned to work the shift will be charged VA/C/CH, unless there is documentation supporting an emergency situation.
2. Members shall have the appropriate number of sick hours on the books to cover a requested TX in the event they become ill, and are unable to fulfill their duties.
3. A member may be authorized to use vacation leave in lieu of a time

exchange in the case of an emergency only (Funeral Leave/Written Medical Excuse). All requests will be approved by the Lead Police ID Technician and Sergeant, with notification to the Captain.

4. Members failing to report for duty on an approved time exchange will submit a memo to their assigned Lead Police ID Technician, explaining the circumstances of the “failed time exchange” (to include Sick leave). The Lead Police ID Technician will make any necessary notations and forward to the Captain, through channels, with a copy to the Time Roster System. A failed TX could result in suspension from TXing for an indeterminate amount of time at the discretion of the Captain.
5. Individuals suspended from TX privileges shall be given written notice of the proposed suspension and the reasons therefore, and shall have up to ten (10) calendar days to respond. In the event the individual is unable to respond during this period because they are unable to obtain necessary documentation from this Agency, this period may be extended. This Agency shall cooperate in providing requested documentation.
6. If the individual has been authorized to TX prior to the date of the suspension notice, such pre-approved TX shall be honored.
7. If a TX is requested subsequent to the suspension notice, and if either the TX or payback will occur during the possible suspension period, the request may either be held in abeyance or denied, subject to approval after a decision is made on the suspension.
8. If a TX is requested subsequent to the suspension notice, and both the TX and payback will occur within the ten (10) day notice period specified above, the TX will be considered like any other request.
9. The City and the Union(s) involved agree that either party may terminate the Time Exchange agreement at any time for any reason upon thirty (30) days written notice to the other party.

Hiring Above Entry

1. The employer shall have the ability to hire new employees at up to step three (3) for the following classifications: Building Inspector I, Building Inspector II, Senior Building Inspector, Combination Inspector, Housing Inspector, Senior Housing Inspector, Structural Inspector, Commercial Plans Examiner, Residential Plans Examiner, and Senior Plans Examiner. Employees hired at up to step three (3) may go to the top step after the successful completion of their probationary periods.
2. Based upon bona fide recruitment need, the initial permanent appointment to a Business Systems Analyst I, II, or III, or a Risk Specialist I classification may be above the entry rate of the assigned range based on a pay equity evaluation. The union will be provided notice when an employee is hired above the entry rate of the assigned wage. The provision for number 2 shall sunset on the expiration of the contract unless extended upon mutual agreement of both parties.

Classification Study

The City shall commission and conduct a study of the job classifications covered by this agreement. The study shall begin no later than fiscal year 2025-2026. The compensation portion of the study will be subject to negotiations with the Union as part of the successor contract.

Schedule “A” COLA

Effective upon ratification, if an employee did not receive a classification wage adjustment of at least one percent (1%), then a one percent (1%) across-the-board (ATB) increase applies.

Effective July 1, 2025, Wage rates will be revised as follows: Salary rates for classifications in Schedule “A” for the period July 1, 2025 to June 30, 2026 are to be increased by one hundred percent (100%) of the annual increase in the Consumer Price Index for Urban Wage Earners and Clerical Workers (CPI-W) (as measured by the annual change in the index between the 2nd Half 2020 and the 2nd Half 2021) for the West Coast Size A, published by the Bureau of Labor Statistics, U.S. Department of Labor. However, in no event shall the salary increase be less than one percent (1%) or greater than five percent (5.0%).

Effective July 1, 2026, Wage rates will be revised as follows: Salary rates for classifications in Schedule “A” for the period July 1, 2023 to June 30, 2024 are to be increased by one hundred percent (100%) of the annual increase in the Consumer Price Index for Urban Wage Earners and Clerical Workers (CPI-W) (as measured by the annual change in the index between the 2nd Half 2021 and the 2nd Half 2022) for the West Coast Size A, published by the Bureau of Labor Statistics, U.S. Department of Labor. However, in no event shall the salary increase be less than one percent (1%) or greater than five percent (5.0%).

Effective July 1, 2026, a one percent (1%) ATB increase for all classifications covered under Schedule A, with the exception of the Combination Inspector Classification.

Effective July 1, 2027, Wage rates will be revised as follows: Salary rates for classifications in Schedule “A” for the period July 1, 2024 to June 30, 2025 are to be increased by one hundred percent (100%) of the annual increase in the Consumer Price Index for Urban Wage Earners and Clerical Workers (CPI-W) (as measured by the annual change in the index between the 2nd Half 2022 and the 2nd Half 2023) for the West Coast Size A, published by the Bureau of Labor Statistics, U.S. Department of Labor. However, in no event shall the salary increase be less than one percent (1%) or greater than five percent (5.0%).

Effective July 1, 2027, a one percent (1%) ATB increase for all classifications covered under Schedule A, with the exception of Combination Inspector Classification.

Schedule "A" Premiums

Effective on ratification through December 31, 2027.

1. Premiums described in paragraphs 2 through 8 shall not be pyramided.
2. The following named classes and work situations will be paid a premium of four percent (4%) of the employee's base wage for actual time performing such work rounded up to the next whole hour:
 - a. Employees operating a jackhammer.
 - b. Employees who are assigned to drive a fuel truck in order to perform fueling operations and to transport fuel.
3. Any employee, while working from a temporary scaffolding, portable ladder, or boom, which is fifteen (15) feet above ground or working from any suspended device will receive a premium of four percent (4%) of the employee's base wage, for a minimum of one (1) hour. Senior inspectors are eligible for this premium.
4. Any employee who is required to work over forty-five (45) feet above the ground on bridges, fixed structures, or other horizontal surface and required to wear fall protection equipment while working from a temporary scaffolding, portable ladder or boom shall be paid 1.5 times the employee's base rate of pay, for a minimum of one (1) hour. The appropriate pay for employees working over forty-five (45) feet on overtime is 1.5 times the employee's base rate plus .5 time the employee's base rate for a total of 2 times the employee's base rate. Senior Inspectors are eligible for this premium.
5. Any employee other than an Inspector who is instructed to work underground or in a shored excavation will receive a premium of four percent (4%) of the employee's base wage, for a minimum of four hours.
6. The City will pay a premium of eight percent (8%) of the employee's base wage, per hour, for actual time worked, rounded up to the nearest whole hour, under the following conditions:
 - a. Employees, including Senior Building Inspectors, who are

required to be HAZWOPER trained and maintain that certification and who must wear special personal protective equipment (must include positive pressure respirators and/or safety suits) and/or Level “B” PPE only while:

- i) engaged in work inside a permit required confined space as defined by OSHA; or
 - ii) connecting chlorine cylinders or responding to liquid chlorine alarms; or, performing work in areas designated by the City as having contaminated soils (i.e. heavy metals). Note: Employees must complete forty (40) hours of hazardous materials training to perform work in contaminated soils; or
 - iii) receiving bulk shipments of chemicals; or
 - iv) performing maintenance and repair on piping and systems that can contain potentially hazardous chemicals.
 - b. Employees in the Electrician and related classifications including Senior Inspectors, working on “live” equipment with an Arc Flash rating of category three (3) or higher as described in the National Fire Protection Agency (NFPA) 70E Standard.
7. In the event the City places the responsibility for a crew of two (2) or more employees upon a member of that crew, to the extent that such member is held responsible for the work performance of the other members of that crew, it will pay such employee a premium of five percent (5%) of the employee’s base wage. This shall not be deemed a requirement that the City designate a lead in charge of every crew. Senior Inspectors are eligible for this premium.
- a. An employee assigned lead duties in a workday will receive the lead premium for a minimum of half a shift or for a full shift if the employee is assigned to such duties for more than half their shift.
 - b. Assignment to lead duties is temporary and employees do not acquire status or rights to such assignment.

- c. Portland Water Bureau employees in the AEO I - Saw Cutting, and AEO II - Sewer Vacuum, and any other classification performing saw duties that are assigned duties overseeing a helper will be paid a premium of five percent (5%) of the employee's base wage when-responsible for one other person.
- 8. Building Inspector IIs and Senior Building Inspectors assigned to the Residential Inspections Section of Portland Permitting and Development (PP&D) shall receive a premium of two percent (2%) added to the employee's base wage for all hours worked for each additional one- and two-family inspection certification(s) they obtain, are released to perform, and begin to perform such inspections. Building Inspectors who have requested the required ride along with a senior building inspector, after receiving their certification from that state shall be scheduled within 90 days.
- 9. Building Inspector IIs and Senior Building Inspectors shall receive a premium of two percent (2%) added to the employee's base wage for all hours worked for each additional one- and two-family inspection certification they obtain, are released to perform, and begin to use in the "Work without Permit Program" in the Compliance Services/Neighborhood Inspection Section of the Portland Permitting and Development (PP&D). Building Inspectors who have requested the required ride along with a senior building inspector, after receiving their certification from that state shall be scheduled within 90 days.
- 10. Building Inspector IIs, Structural Inspectors and Senior Building Inspectors who obtain, are released to perform, and begin to use both commercial Structural and commercial Mechanical certifications in the Commercial Structural/Mechanical Inspections Section in Portland Permitting and Development (PP&D) shall receive a premium of three percent (3%) added to the employee's base wage for all hours worked. Building or Structural Inspectors who have requested the required ride along with a senior building inspector, after receiving their certification from that state shall be scheduled within 90 days.

11. Water Treatment Certifications:

- a. Employees in the Water Treatment Operator I classification shall receive certification pay upon acquiring and maintaining a Water Treatment Level 2 Operator at two percent (2%) added to the employee's base wage for all hours worked. Certification pay for Water Treatment Level 3 Operator shall be three percent (3%) added to the employee's base wage for all hours worked.
- b. Employees in the Water Treatment Operator II classification are required to have and maintain certification as a Water Treatment Level 2 Operator. Certification pay for Water Treatment Level 3 Operator shall be three percent (3%) added to the employee's base wage for all hours worked. Certification pay for Water Treatment Level 4 Operator shall be four percent (4%) added to the employee's base wage for all hours worked.
- c. Employees in the Water Treatment Operator III classification are required to have and maintain certification as a Water Treatment Level 3 Operator. Certification pay for Water Treatment Level 4 Operator shall be four percent (4%) added to the employee's base wage for all hours worked.
- d. Employees are responsible for completing the required Continuing Education Units (CEUs) to maintain their certifications.

12. Water Distribution Certifications:

- a. Employees in the Water Operations Mechanic and Water Distribution Worker classification are required to have and maintain certification as a Water Distribution Level 1 Operator. Certification pay for Water Distribution Level 2 Operator shall be two percent (2%) added to the employee's base wage for all hours worked. Certification pay for Water Distribution Level 3 Operator shall be three percent (3%) added to the employee's base wage for all hours worked. Certification pay for Water Distribution Level 4 Operator shall be four percent (4%) added to

the employee's base wage for all hours worked.

- b. Employees in the Construction Equipment Operator and Automotive Equipment Operator III classification who become a Level 1 or Level 2 operator shall receive certification pay of two percent (2%) added to the employee's base wage for all hours worked. Certification pay for Water Distribution Level 3 Operator shall be three percent (3%) added to the employee's base wage for all hours worked. Certification pay for Water Distribution Level 4 Operator shall be four percent (4%) added to the employee's base wage for all hours worked.
- c. Employees in the Water Quality Inspector and Water Meter Technician classifications are required to have and maintain certification as a Water Distribution Level 1 Operator (except for those employees grandfathered in 2010). Certification pay for Water Distribution Level 2 Operator shall be two percent (2%) added to the employee's base wage for all hours worked. Certification pay for Water Distribution Level 3 Operator shall be three percent (3%) added to the employee's base wage for all hours worked. Certification pay for Water Distribution Level 4 Operator shall be four percent (4%) added to the employee's base wage for all hours worked.
- d. Employees in the Watershed Specialist III classification are required to have and maintain certification as a Water Distribution Level 2 Operator. Certification pay for Water Distribution Level 3 Operator shall be three percent (3%) added to the employee's base wage for all hours worked. Certification pay for Water Distribution Level 4 Operator shall be four percent (4%) added to the employee's base wage for all hours worked.
- e. Employees are responsible for completing the required Continuing Education Units (CEUs) to maintain their certifications.

- 13. Inspectors in the Portland Permitting & Development Residential Inspection program who possess and are regularly assigned to work that

requires manufactured home certification shall be paid \$15.00 per trip per unit when it includes a mobile home inspection. Senior Inspectors are eligible for this premium.

14. Employees who work for the Portland Permitting & Development in the classifications of Building Inspector II and Combination Inspector shall receive a certification premium of two percent (2%) added to the base wage for all hours worked, rounded up to the next fifteen (15) minute increment, when they successfully complete at least two of the following specializations; the Specialized Solar Photo-Voltaic (SSPVI), Specialized Plumbing Inspector (SPI), Specialized Electrical Inspector (SEI), and Specialized Systems/Final Inspector (SFI) certifications and perform inspection duties related to these certifications. This premium is not to exceed two percent (2%). Senior Inspectors are eligible for this premium.
15. Employees appointed to the Housing Inspector and Senior Housing Inspector classifications are required, within one year of appointment to the classification, to obtain and maintain one (1) of the following Inspector certifications: Residential Structural (CAS), Residential Electrical (CAE), or Residential Plumbing (CAP). The City shall pay employees in the Housing Inspector and Senior Housing Inspector classifications who work in the Portland Permitting & Development a certification premium of two percent (2%) added to the base wage for all hours worked for each certification they obtain and for which they are released to perform inspections of permitted work, up to a maximum of two certifications. Housing Inspectors who have requested the required ride along with a senior building inspector, after receiving their certification from that state shall be scheduled within 90 days of request.
16. Police Identification Technicians who acquire and maintain a Tenprint Fingerprint Certification from the International Association of Identification will receive certification pay of five percent (5%) added to the employee's base wage for all hours worked.
17. Members in the classifications of Police Records Specialist and Police Records Training Coordinator who have successfully completed Records

Finish training will receive a premium of three percent (3%) added to the employee's base wage for all hours worked.

18. Employees appointed to the classification of Accountant III or Accountant IV who acquire and maintain a CPA license shall receive a premium of five percent (5%) added to their base wage for all hours worked.
19. Employees whose job classifications are public facing, customer service, or community engagement oriented are included on the City Language Pay Differential Job Classification Eligibility List and whose language is listed on the City/County combined languages will receive a bilingual pay differential of \$1.00 per hour to their base wage for all hours worked. Passage of the verbal language proficiency test is required to receive the language pay differential. This premium is not subject to the grievance procedure. Senior Inspectors are eligible for this premium.
20. Effective upon ratification and upon completion of their tenth consecutive year of service as a permanent employee of the City, employees will receive longevity pay of two percent (2%). Longevity pay shall be calculated on the basis of the employee's regular hourly rate, not including premium pay. Senior Inspectors are eligible for this premium.
21. A premium of 3% shall be applied to the base wage of all hours worked for a limited number of eligible employees in the classifications below who maintain their Commercial Drivers' License (CDL) and perform the duties of a commercial driver for the City as needed. The Bureau shall have sole discretion to establish the total number of employees in these classifications who are eligible for the Premium.

The Premium applies to the following AFSCME represented classifications only:

Water Operations Mechanic

Employees must maintain a Commercial Driver License (CDL), with all the required endorsements, as determined by the Bureau, to be

considered for the Premium. Employees must also actively participate in the City's CDL drug testing program to utilize their CDL for city work assignments.

22. The Parking Enforcement Manager shall be authorized to assign "Special Projects" which includes projects that are outside of the job description of Parking Enforcement Officers but which in the judgment of the manager are related to Parking Enforcement duties, can be done by Parking Enforcement Officers, and which would benefit by being done by Parking Enforcement Officers. Actual hours worked on duties assigned as Special Projects shall be paid at a premium of the employee's base hourly rate plus five Percent (5%).
23. A premium of five percent (5%) on the base rate will be paid to employees in the Police ID Technician classification who are assigned by management to work in the jail taking prints of justice-involved individuals. Premium pay will be paid for all hours worked.

Schedule “A” Wage Scales

Rates Effective March 5, 2025

Prem Pay	Job Title	Entry	6 Mo	Year 1	Year 2	Year 3	Year 4	Year 5	Year 6	Year 7	Year 8
	311 Customer Service Rep I	26.68	29.66	31.80	34.43	35.51					
	311 Customer Service Rep II	29.34	31.91	33.70	35.44	37.76	38.91				
	Accountant I	32.74	34.56	36.33	38.76	39.93	43.02				
	Accountant II	36.94	40.13	41.81	43.56	45.12	46.49				
	Accountant III	40.66	44.18	46.04	48.00	49.67	51.13				
	Accountant IV	43.72	47.52	49.46	51.62	53.38	54.98				
	Accounting Technician	23.41	26.79	28.07	30.06	32.62	33.60				
	Automotive Equip Operator II: Tractor-Trailer	32.26	36.59	38.84							
	Automotive Equip Operator III: Crane	35.15	38.19	41.05							
	Automotive Equip Operator III: Sewer Vacuum	35.15	38.19	41.05							
	Automotive Equipment Operator I	31.24	35.52	37.84							
	Building Inspector I	42.77	44.89	47.13	49.33						
	Building Inspector II	48.89	51.36	53.83	56.56						
	Building Inspector, Sr	54.89	57.65	60.55	63.51						
	Building Inspector/Plans Examiner Trainee	23.24	24.42	25.62	26.89						
	Bus Driver	32.26	36.59	38.84							
	Business Systems Analyst I	41.78		43.87	46.07	48.39	50.82	53.36	56.04	58.83	
	Business Systems Analyst II	46.90		49.26	51.70	54.29	57.01	59.86	62.85	65.99	
	Business Systems Analyst III	53.94		56.64	59.46	62.44	65.55	68.83	72.27	75.88	
	Carpenter	39.38	41.34	43.41							
*	Carpenter Lead	41.34	43.41	45.58							
	Claims Technician	30.26	32.89	34.83	36.72	38.92	40.10				
	Claims Technician, Assistant	23.49	26.98	28.30	30.30	32.90	33.85				
	Code Specialist I	23.78	25.85	27.50	29.12	30.73	31.64				
	Code Specialist II	31.23	33.89	35.84	37.64	40.14	41.32				
	Code Specialist III	33.65	36.57	38.52	40.55	42.85	44.12				
*	Code Specialist, Lead	33.65	36.57	38.52	40.55	42.85	44.12				
	Code Specialist, Trainee	22.66									
	Combination Inspector	51.29	53.89	56.51	59.41						
	Concrete Finisher	39.38	41.34	43.41							
	Concrete Finisher, Apprentice	34.02	35.55	36.70							
*	Concrete Finisher, Lead	41.34	43.41	45.58							
	Construction Equipment Operator	33.43	38.04	41.23							
	Crime Prevention Program Administrator	32.28	35.17	37.26	39.14	42.04	43.28				
	Crime Prevention Rep	29.35	31.95	33.87	35.56	38.18	39.31				
	Customer Accounts Specialist I	26.68	29.66	31.80	34.43	35.51					
	Customer Accounts Specialist II	29.34	31.91	33.70	35.44	37.76	38.91				
	Customer Accounts Specialist III	30.50	33.17	35.04	36.84	39.26	40.45				
	Customer Accounts Specialist IV	32.03	34.83	36.79	38.69	41.22	42.47				
	Distribution Technician	27.99	31.89	34.31							
*	Distribution Technician, Lead	29.37	33.46	35.99							
	Electronic Pre-Press Operator	29.96	32.59	34.75	35.83	37.46					
*	Electronic Pre-Press Operator, Lead	34.42	37.46	39.35	41.21	43.13					
	Evidence Control Specialist	31.40	35.66	38.42							
*	Evidence Control Specialist, Lead	35.49	40.64	42.85	44.09						
	Facilities Maintenance Dispatch/Scheduler	30.06	33.07	35.56	38.22	42.05	46.26				
	Facilities Worker	32.22	33.42	34.65							
	Hearings Clerk	42.08	43.34	44.65	45.98	47.35	50.25	51.75			
	Horticulturist	32.61	37.23	39.39							
	Horticulturist, Apprentice	28.99	32.92	35.23							
*	Horticulturist, Lead	34.22	38.99	41.34							
	Housing Community Outreach & Information Rep, Sr	43.87		45.69	47.58	49.53	51.56	53.64	55.85	58.17	
	Housing Administrative Specialist, Sr	35.94		37.41	38.94	40.53	42.19	43.95	45.75	47.62	
	Housing Business Systems Analyst	46.90		49.26	51.70	54.29	57.01	59.86	62.85	65.99	

	Housing Business Systems Analyst, Asst	41.78		43.87	46.07	48.39	50.82	53.36	56.04	58.83	
	Housing Construction Coordinator	40.53		42.20	43.97	45.76	47.63	49.58	51.63	53.76	
	Housing Construction Coordinator, Sr	44.74		46.60	48.52	50.51	52.58	54.70	56.96	59.32	
	Housing Financial Analyst	42.61		44.34	46.15	48.03	50.04	52.06	54.22	56.44	
	Housing Financial Analyst, Assistant	38.64		40.19	41.87	43.56	45.37	47.20	49.15	51.19	
	Housing Inspector	37.62	40.93	42.99	45.17	47.63					
	Housing Inspector, Sr	49.65	52.12	54.68	57.44						
	Housing Lead Grant Program Coordinator	44.74		46.60	48.52	50.51	52.58	54.70	56.96	59.32	
	Housing Loan Compliance Analyst	35.94		37.41	38.94	40.53	42.19	43.95	45.75	47.62	
	Housing Loan Coordinator	38.64		40.19	41.87	43.56	45.37	47.20	49.15	51.19	
	Housing Loan Coordinator, Sr	42.61		44.34	46.15	48.03	50.04	52.06	54.22	56.44	
	Housing Management Assistant	38.64		40.19	41.87	43.56	45.37	47.20	49.15	51.19	
	Housing Portfolio Finance Coordinator	47.08		49.02	51.03	53.09	55.28	57.57	59.92	62.39	
	Housing Program Coordinator	44.74		46.60	48.52	50.51	52.58	54.70	56.96	59.32	
	Housing Program Specialist	40.53		42.20	43.97	45.76	47.63	49.58	51.63	53.76	
	Housing Program Specialist, Assistant	38.64		40.19	41.87	43.56	45.37	47.20	49.15	51.19	
	Industrial Painter	38.64	42.01	43.27							
	* Industrial Painter, Lead	40.58	44.11	45.43							
	Laboratory Analyst I	31.13	35.61	37.35	39.30						
	Laboratory Analyst II	33.41	38.10	39.99	42.01	44.10					
	Laboratory Analytical Specialist	37.97	42.15	44.03	47.12	50.40					
	Laboratory Coordinator	39.40	43.73	45.38	48.55	52.01	55.61				
	Maintenance Worker	22.92									
	Maintenance Worker Assistant	16.32	17.54	19.88							
	Office Support Specialist Assistant	18.40	19.62	20.89							
	Office Support Specialist I	27.07		27.88	28.72	29.58	30.45				
	Office Support Specialist II	29.85		30.75	31.67	32.62	33.60				
	Office Support Specialist III	31.91		34.37	36.14	38.51	39.68				
	* Office Support Specialist, Lead	31.91		34.37	36.14	38.51	39.68				
	Parking Code Enforcement Officer	30.01	32.45	34.41	36.21	38.28	39.41				
	* Parking Code Enforcement Officer, Lead	31.51	34.09	36.12	38.02	40.21	41.38				
	Parking Code Enforcement Officer-Abandoned Auto	24.87	27.06	28.83	30.46	32.15	33.10				
	Parks Technician	29.69	31.18	32.74	34.37	36.08					
	* Parks Technician, Lead	31.18	32.74	34.37	36.08	37.90					
	Plans Examiner, Commercial	46.87	49.21	51.64	54.26	55.89	57.58				
	Plans Examiner, Residential	44.21	46.42	47.81	49.26	50.72	52.23	54.32			
	Plans Examiner, Sr	53.47		56.21	58.95	60.75	62.56				
	Police Administrative Support Spec, Sr	35.56		36.63	37.88	39.01	40.82				
	Police Administrative Support Specialist	32.54		33.52	34.53	35.57	36.63				
	Police Desk Clerk	27.90		28.73	29.60	30.49	32.00				
	Police Identification Technician	37.98	41.24	43.92	46.12	48.48					
	* Police Identification Technician, Lead	41.28	44.82	47.77	50.11	52.73					
	Police Identification Technician, Trainee	27.72	41.24								
	Police Impound Technician	29.88	33.99	36.57							
	Police Internal Affairs Investigator	42.47		44.60	46.83	49.17	51.62	54.21	56.93	59.76	62.75
	Police Investigative Accountant	54.96	59.70	62.09	63.94						
	Police Photographic Reproduction Spec	43.97	47.77	50.11	52.73						
	Police Records Specialist	32.42		33.39	34.40	35.43	36.64				
	Police Records Training Coordinator	35.91		36.99	38.10	39.24	40.82				
	* Printing & Distribution Customer Svc Rep, Lead	34.42	37.46	39.35	41.21	43.13					
	Printing & Distribution Customer Svc Rep	29.96	32.59	34.75	35.83	37.46					
	Printing & Distribution Technician, Asst	20.79	21.14	21.52							
	Procurement Specialist	36.32	39.50	41.12	42.87	44.40	45.73				
	Procurement Specialist, Assistant	32.92	34.27	35.73	36.99	38.11					

Procurement Specialist, Sr	42.77	46.53	49.00	52.38	54.25	55.53					
Public Works Inspector	41.39	45.04	46.08	47.33							
Public Works Inspector, Sr	44.88	48.77	52.90								
Records Specialist	29.34	31.91	33.70	35.44	37.76	38.91					
Regulatory Program Administrator	44.29	47.37	50.64	53.19	54.79						
Regulatory Program Specialist	30.81	33.46	35.38	37.16	39.62	40.80					
Reprographic Operator I	24.71	26.88	28.45	30.08	31.69						
Reprographic Operator II	29.96	32.59	34.75	35.83	37.46						
Reprographic Operator III	34.42	37.46	39.35	41.21	43.13						
Revenue & Tax Specialist I	24.61	27.52	29.47	31.99	32.95						
Revenue & Tax Specialist II	29.47	31.99	33.46	35.38	36.40						
Revenue & Tax Specialist III	30.81	33.46	35.38	37.16	39.62	40.80					
Revenue & Tax Specialist IV	33.46	35.38	37.16	39.62	42.26	43.50					
* Revenue & Tax Specialist Lead	35.15	37.14	39.02	41.60	44.37	45.72					
Revenue & Tax Specialist V	36.07	38.03	40.02	42.28	45.39	46.75					
Risk Specialist I	36.97		38.80	40.74	42.78	44.91	47.17	49.53	52.19		
Service Dispatcher	26.68	29.66	31.80	34.43	35.51						
* Service Dispatcher, Lead	29.34	31.91	33.70	35.44	37.76	38.91					
Site Development Inspector I	42.77	44.89	47.13	49.33							
Site Development Inspector II	48.89	51.36	53.83	56.56							
Site Development Inspector, Sr	54.89	57.65	60.55	63.51							
Storekeeper/Acquisition Specialist I	29.88	33.99	36.57								
Storekeeper/Acquisition Specialist II	31.40	35.66	38.42								
Storekeeper/Acquisition Specialist III	35.49	40.64	42.85	44.09							
* Storekeeper/Acquisition Specialist, Lead	35.49	40.64	42.85	44.09							
Structural Inspector	47.33	49.71	52.11	54.77							
Structural Inspector, Trainee	41.39	43.47	45.63	47.89							
Survey Project Support Tech	38.42	39.94	41.90								
Surveying Aide I	28.34	30.81	33.52	35.50							
Surveying Aide II	33.59	36.52	37.27	39.14							
Surveyor I	39.34	42.74	48.29								
Surveyor II	48.37	52.25	56.42	59.26							
Timekeeping Specialist	25.01	28.62	30.00	32.11	34.87	35.93					
Utility Worker I	29.32	31.90									
Utility Worker II	31.90	33.09	34.30								
Water Distribution System Technician	32.22	34.64									
Water Distribution System Technician, Trainee	27.17	29.45									
Water Distribution Worker	35.70	36.38	37.45	38.84							
Water Meter Reader I	26.33	28.64	32.45	33.45							
Water Meter Reader II	32.27	35.06	35.80	36.74	37.82						
Water Meter Technician I	31.91	33.09	34.31								
Water Meter Technician II	32.58	34.31	36.10	37.82							
Water Meter Technician III	39.28	42.69									
Water Meter Technician IV	41.24	44.83									
Water Operations Mechanic	43.86	45.18									
Water Quality Inspector I	35.50	38.58	40.73	43.22	45.85						
Water Quality Inspector II	37.29	40.54	42.76	45.42	48.19						
Water Quality Inspector III	39.14	42.56	44.93	47.68	50.55						
Water Security Specialist	31.91	33.09	34.31								
* Water Security Specialist, Lead	33.49	35.58	37.68								
Water Service Inspector I	32.27	35.06	35.80	36.74	37.82						
Water Service Inspector II	34.88	37.89	38.63	39.68	40.87						
Water Treatment Operator I	33.51	35.09	36.83								
Water Treatment Operator II	37.29	40.54	42.76	45.42	48.19						
Water Treatment Operator III	39.14	42.56	44.93	47.68	50.55						
Water Utility Worker, Sr	32.39	35.20	36.01								
Watershed Specialist I	33.48	35.14	36.91								
Watershed Specialist II	35.14	36.90	38.73								
Watershed Specialist III	38.63	42.06	42.67	43.32							

Apprentice and Trainee Scales Effective March 5, 2025

Carpenter, Apprentice	Entry to 5 months	6 months to 11 months	12 months to 17 months	18 months to 23 months	24 months to 29 months	30 months to 35 months	36 months to 41 months	42 months to 47 months
Top step journey rate	43.41	43.41	43.41	43.41	43.41	43.41	43.41	43.41
% of top step journey rate	60%	65%	70%	75%	80%	85%	90%	95%
Hourly Rate	26.05	28.22	30.39	32.56	34.73	36.90	39.07	41.24
Advancement to journey rate is upon completion of the program and when approved by the TAC								

Water Distribution Worker, Trainee	Entry to 5 months	6 months to 11 months	12 months to 17 months	18 months to 23 months
Top step journey rate	38.84	38.84	38.84	38.84
% of top step journey rate	70.0%	72.5%	85.0%	92.5%
Hourly Rate	27.19	28.16	33.01	35.93
Advancement to journey rate is upon completion of the program				

Water Operations Mechanic, Apprentice	Entry to 5 months	6 months to 11 months	12 months to 17 months	18 months to 23 months	24 months to 29 months	30 months to 35 months
Top step journey rate	45.18	45.18	45.18	45.18	45.18	45.18
% of top step journey rate	70%	75%	80%	85%	90%	95%
Hourly Rate	31.63	33.89	36.14	38.40	40.66	42.92
Advancement to journey rate is upon completion of the program and when approved by the TAC						

Rates Effective July 1, 2025

Prem Pay	Job Title	Entry	6 Mo	Year 1	Year 2	Year 3	Year 4	Year 5	Year 6	Year 7	Year 8
	311 Customer Service Rep I	27.32	30.37	32.56	35.26	36.36					
	311 Customer Service Rep II	30.04	32.68	34.51	36.29	38.67	39.84				
	Accountant I	33.53	35.39	37.20	39.69	40.89	44.05				
	Accountant II	37.83	41.09	42.81	44.61	46.20	47.61				
	Accountant III	41.64	45.24	47.14	49.15	50.86	52.36				
	Accountant IV	44.77	48.66	50.65	52.86	54.66	56.30				
	Accounting Technician	23.97	27.43	28.74	30.78	33.40	34.41	-			
	Automotive Equip Operator II: Tractor-Trailer	33.03	37.47	39.77							
	Automotive Equip Operator III: Crane	35.99	39.11	42.04							
	Automotive Equip Operator III: Sewer Vacuum	35.99	39.11	42.04							
	Automotive Equipment Operator I	31.99	36.37	38.75							
	Building Inspector I	43.80	45.97	48.26	50.51						
	Building Inspector II	50.06	52.59	55.12	57.92						
	Building Inspector, Sr	56.21	59.03	62.00	65.03						
	Building Inspector/Plans Examiner Trainee	23.80	25.01	26.23	27.54						
	Bus Driver	33.03	37.47	39.77							
	Business Systems Analyst I	42.78		44.92	47.18	49.55	52.04	54.64	57.38	60.24	
	Business Systems Analyst II	48.03		50.44	52.94	55.59	58.38	61.30	64.36	67.57	
	Business Systems Analyst III	55.23		58.00	60.89	63.94	67.12	70.48	74.00	77.70	
	Carpenter	40.33	42.33	44.45							
	* Carpenter Lead	42.33	44.45	46.67							
	Claims Technician	30.99	33.68	35.67	37.60	39.85	41.06				
	Claims Technician, Assistant	24.05	27.63	28.98	31.03	33.69	34.66				
	Code Specialist I	24.35	26.47	28.16	29.82	31.47	32.40				
	Code Specialist II	31.98	34.70	36.70	38.54	41.10	42.31				
	Code Specialist III	34.46	37.45	39.44	41.52	43.88	45.18				
	* Code Specialist, Lead	34.46	37.45	39.44	41.52	43.88	45.18				
	Code Specialist, Trainee	23.20									
	Combination Inspector	52.52	55.18	57.87	60.84						
	Concrete Finisher	40.33	42.33	44.45							
	Concrete Finisher, Apprentice	34.84	36.40	37.58							
	* Concrete Finisher, Lead	42.33	44.45	46.67							
	Construction Equipment Operator	34.23	38.95	42.22							
	Crime Prevention Program Administrator	33.05	36.01	38.15	40.08	43.05	44.32				
	Crime Prevention Rep	30.05	32.72	34.68	36.41	39.10	40.25				
	Customer Accounts Specialist I	27.32	30.37	32.56	35.26	36.36					
	Customer Accounts Specialist II	30.04	32.68	34.51	36.29	38.67	39.84				
	Customer Accounts Specialist III	31.23	33.97	35.88	37.72	40.20	41.42				
	Customer Accounts Specialist IV	32.80	35.67	37.67	39.62	42.21	43.49				
	Distribution Technician	28.66	32.66	35.13							
	* Distribution Technician, Lead	30.07	34.26	36.85							
	Electronic Pre-Press Operator	30.68	33.37	35.58	36.69	38.36					
	* Electronic Pre-Press Operator, Lead	35.25	38.36	40.29	42.20	44.17					
	Evidence Control Specialist	32.15	36.52	39.34							
	* Evidence Control Specialist, Lead	36.34	41.62	43.88	45.15						
	Facilities Maintenance Dispatch/Scheduler	30.78	33.86	36.41	39.14	43.06	47.37				
	Facilities Worker	32.99	34.22	35.48							
	Hearings Clerk	43.09	44.38	45.72	47.08	48.49	51.46	52.99			
	Horticulturist	33.39	38.12	40.34							
	Horticulturist, Apprentice	29.69	33.71	36.08							
	* Horticulturist, Lead	35.04	39.93	42.33							
	Housing Community Outreach & Information Rep, Sr	44.92	-	46.79	48.72	50.72	52.80	54.93	57.19	59.57	
	Housing Administrative Specialist, Sr	36.80		38.31	39.87	41.50	43.20	45.00	46.85	48.76	
	Housing Business Systems Analyst	48.03		50.44	52.94	55.59	58.38	61.30	64.36	67.57	
	Housing Business Systems Analyst, Asst	42.78		44.92	47.18	49.55	52.04	54.64	57.38	60.24	
	Housing Construction Coordinator	41.50		43.21	45.03	46.86	48.77	50.77	52.87	55.05	

	Housing Construction Coordinator, Sr	45.81		47.72	49.68	51.72	53.84	56.01	58.33	60.74	
	Housing Financial Analyst	43.63		45.40	47.26	49.18	51.24	53.31	55.52	57.79	
	Housing Financial Analyst, Assistant	39.57		41.15	42.87	44.61	46.46	48.33	50.33	52.42	
	Housing Inspector	38.52	41.91	44.02	46.25	48.77					
	Housing Inspector, Sr	50.84	53.37	55.99	58.82						
	Housing Lead Grant Program Coordinator	45.81		47.72	49.68	51.72	53.84	56.01	58.33	60.74	
	Housing Loan Compliance Analyst	36.80		38.31	39.87	41.50	43.20	45.00	46.85	48.76	
	Housing Loan Coordinator	39.57		41.15	42.87	44.61	46.46	48.33	50.33	52.42	
	Housing Loan Coordinator, Sr	43.63		45.40	47.26	49.18	51.24	53.31	55.52	57.79	
	Housing Management Assistant	39.57		41.15	42.87	44.61	46.46	48.33	50.33	52.42	
	Housing Portfolio Finance Coordinator	48.21		50.20	52.25	54.36	56.61	58.95	61.36	63.89	
	Housing Program Coordinator	45.81		47.72	49.68	51.72	53.84	56.01	58.33	60.74	
	Housing Program Specialist	41.50		43.21	45.03	46.86	48.77	50.77	52.87	55.05	
	Housing Program Specialist, Assistant	39.57		41.15	42.87	44.61	46.46	48.33	50.33	52.42	
	Industrial Painter	39.57	43.02	44.31							
*	Industrial Painter, Lead	41.55	45.17	46.52							
	Laboratory Analyst I	31.88	36.46	38.25	40.24						
	Laboratory Analyst II	34.21	39.01	40.95	43.02	45.16					
	Laboratory Analytical Specialist	38.88	43.16	45.09	48.25	51.61					
	Laboratory Coordinator	40.35	44.78	46.47	49.72	53.26	56.94				
	Maintenance Worker	23.47									
	Maintenance Worker Assistant	16.71	17.96	20.36							
	Office Support Specialist Assistant	18.84	20.09	21.39							
	Office Support Specialist I	27.72		28.55	29.41	30.29	31.18				
	Office Support Specialist II	30.57		31.49	32.43	33.40	34.41				
	Office Support Specialist III	32.68		35.19	37.01	39.43	40.63				
*	Office Support Specialist, Lead	32.68		35.19	37.01	39.43	40.63				
	Parking Code Enforcement Officer	30.73	33.23	35.24	37.08	39.20	40.36				
*	Parking Code Enforcement Officer, Lead	32.27	34.91	36.99	38.93	41.18	42.37				
	Parking Code Enforcement Officer-Abandoned Auto	25.47	27.71	29.52	31.19	32.92	33.89				
	Parks Technician	30.40	31.93	33.53	35.19	36.95					
*	Parks Technician, Lead	31.93	33.53	35.19	36.95	38.81					
	Plans Examiner, Commercial	47.99	50.39	52.88	55.56	57.23	58.96				
	Plans Examiner, Residential	45.27	47.53	48.96	50.44	51.94	53.48	55.62			
	Plans Examiner, Sr	54.75		57.56	60.36	62.21	64.06				
	Police Administrative Support Spec, Sr	36.41		37.51	38.79	39.95	41.80				
	Police Administrative Support Specialist	33.32		34.32	35.36	36.42	37.51				
	Police Desk Clerk	28.57		29.42	30.31	31.22	32.77				
	Police Identification Technician	38.89	42.23	44.97	47.23	49.64					
*	Police Identification Technician, Lead	42.27	45.90	48.92	51.31	54.00					
	Police Identification Technician, Trainee	28.39	42.23								
	Police Impound Technician	30.60	34.81	37.45							
	Police Internal Affairs Investigator	43.49		45.67	47.95	50.35	52.86	55.51	58.30	61.19	64.26
	Police Investigative Accountant	56.28	61.13	63.58	65.47						
	Police Photographic Reproduction Spec	45.03	48.92	51.31	54.00						
	Police Records Specialist	33.20		34.19	35.23	36.28	37.52				
	Police Records Training Coordinator	36.77		37.88	39.01	40.18	41.80				
*	Printing & Distribution Customer Svc Rep, Lead	35.25	38.36	40.29	42.20	44.17					
	Printing & Distribution Customer Svc Rep	30.68	33.37	35.58	36.69	38.36					
	Printing & Distribution Technician, Asst	21.29	21.65	22.04							
	Procurement Specialist	37.19	40.45	42.11	43.90	45.47	46.83				
	Procurement Specialist, Assistant	33.71	35.09	36.59	37.88	39.02					
	Procurement Specialist, Sr	43.80	47.65	50.18	53.64	55.55	56.86				
	Public Works Inspector	42.38	46.12	47.19	48.47						
	Public Works Inspector, Sr	45.96	49.94	54.17							
	Records Specialist	30.04	32.68	34.51	36.29	38.67	39.84				
	Regulatory Program Administrator	45.35	48.51	51.86	54.47	56.10					
	Regulatory Program Specialist	31.55	34.26	36.23	38.05	40.57	41.78				
	Reprographic Operator I	25.30	27.53	29.13	30.80	32.45					

Reprographic Operator II	30.68	33.37	35.58	36.69	38.36					
Reprographic Operator III	35.25	38.36	40.29	42.20	44.17					
Revenue & Tax Specialist I	25.20	28.18	30.18	32.76	33.74					
Revenue & Tax Specialist II	30.18	32.76	34.26	36.23	37.27					
Revenue & Tax Specialist III	31.55	34.26	36.23	38.05	40.57	41.78				
Revenue & Tax Specialist IV	34.26	36.23	38.05	40.57	43.27	44.54				
* Revenue & Tax Specialist Lead	35.99	38.03	39.96	42.60	45.43	46.82				
Revenue & Tax Specialist V	36.94	38.94	40.98	43.29	46.48	47.87				
Risk Specialist I	37.86		39.73	41.72	43.81	45.99	48.30	50.72	53.44	
Service Dispatcher	27.32	30.37	32.56	35.26	36.36					
* Service Dispatcher, Lead	30.04	32.68	34.51	36.29	38.67	39.84				
Site Development Inspector I	43.80	45.97	48.26	50.51						
Site Development Inspector II	50.06	52.59	55.12	57.92						
Site Development Inspector, Sr	56.21	59.03	62.00	65.03						
Storekeeper/Acquisition Specialist I	30.60	34.81	37.45							
Storekeeper/Acquisition Specialist II	32.15	36.52	39.34							
Storekeeper/Acquisition Specialist III	36.34	41.62	43.88	45.15						
* Storekeeper/Acquisition Specialist, Lead	36.34	41.62	43.88	45.15						
Structural Inspector	48.47	50.90	53.36	56.08						
Structural Inspector, Trainee	42.38	44.51	46.73	49.04						
Survey Project Support Tech	39.34	40.90	42.91							
Surveying Aide I	29.02	31.55	34.32	36.35						
Surveying Aide II	34.40	37.40	38.16	40.08						
Surveyor I	40.28	43.77	49.45							
Surveyor II	49.53	53.50	57.77	60.68						
Timekeeping Specialist	25.61	29.31	30.72	32.88	35.71	36.79				
Utility Worker I	30.02	32.67								
Utility Worker II	32.67	33.88	35.12							
Water Distribution System Technician	32.99	35.47								
Water Distribution System Technician, Trainee	27.82	30.16								
Water Distribution Worker	36.56	37.25	38.35	39.77						
Water Meter Reader I	26.96	29.33	33.23	34.25						
Water Meter Reader II	33.04	35.90	36.66	37.62	38.73					
Water Meter Technician I	32.68	33.88	35.13							
Water Meter Technician II	33.36	35.13	36.97	38.73						
Water Meter Technician III	40.22	43.71								
Water Meter Technician IV	42.23	45.91								
Water Operations Mechanic	44.91	46.26								
Water Quality Inspector I	36.35	39.51	41.71	44.26	46.95					
Water Quality Inspector II	38.18	41.51	43.79	46.51	49.35					
Water Quality Inspector III	40.08	43.58	46.01	48.82	51.76					
Water Security Specialist	32.68	33.88	35.13							
* Water Security Specialist, Lead	34.29	36.43	38.58							
Water Service Inspector I	33.04	35.90	36.66	37.62	38.73					
Water Service Inspector II	35.72	38.80	39.56	40.63	41.85					
Water Treatment Operator I	34.31	35.93	37.71							
Water Treatment Operator II	38.18	41.51	43.79	46.51	49.35					
Water Treatment Operator III	40.08	43.58	46.01	48.82	51.76					
Water Utility Worker, Sr	33.17	36.04	36.87							
Watershed Specialist I	34.28	35.98	37.80							
Watershed Specialist II	35.98	37.79	39.66							
Watershed Specialist III	39.56	43.07	43.69	44.36						

Apprentice and Trainee Scales Effective July 1, 2025

Carpenter, Apprentice	Entry to 5 months	6 months to 11 months	12 months to 17 months	18 months to 23 months	24 months to 29 months	30 months to 35 months	36 months to 41 months	42 months to 47 months
Top step journey rate	44.45	44.45	44.45	44.45	44.45	44.45	44.45	44.45
% of top step journey rate	60%	65%	70%	75%	80%	85%	90%	95%
Hourly Rate	26.67	28.89	31.12	33.34	35.56	37.78	40.01	42.23
Advancement to journey rate is upon completion of the program and when approved by the TAC								

Water Distribution Worker, Trainee	Entry to 5 months	6 months to 11 months	12 months to 17 months	18 months to 23 months
Top step journey rate	39.77	39.77	39.77	39.77
% of top step journey rate	70.0%	72.5%	85.0%	92.5%
Hourly Rate	27.84	28.83	33.80	36.79
Advancement to journey rate is upon completion of the program				

Water Operations Mechanic, Apprentice	Entry to 5 months	6 months to 11 months	12 months to 17 months	18 months to 23 months	24 months to 29 months	30 months to 35 months
Top step journey rate	46.26	46.26	46.26	46.26	46.26	46.26
% of top step journey rate	70%	75%	80%	85%	90%	95%
Hourly Rate	32.38	34.70	37.01	39.32	41.63	43.95
Advancement to journey rate is upon completion of the program and when approved by the TAC						

Schedule “B”: Applicability of Contract to Temporary Employees

With respect to temporary employees in full-time budgeted positions in AFSCME represented classifications without permanent status with the City, who are represented as provided for by Article 1.1.6, Articles of this contract do not specifically apply unless a direct reference to temporary employees is contained therein, with the following exceptions:

Preamble Applies.

1. Recognition applies as indicated except:

1.1.1 Probationary period applies to permanently hired only, does not apply to temps.

1.1.4 Emergency Employment Employee and 1.1.5 Seasonal are not covered by the agreement as represented.

1.3 Merger language does not apply.

2. Union Security applies.

3. Dues Check-Off applies.

4. Management Rights clause applies.

5. Productivity. No change.

6. Job Security and Outside Contracting applies except for 6.1 (loss of job due to contracting out).

7. Protection of Bargaining Unit Work applies.

8. Work Schedules & Workweeks applies except for 9.1 and its sub-parts (Workweek / schedules).

9. Shifts applies except for 9.1 (day shift limitations and shift changes).

10. Overtime applies except for 10.3, 10.4 (overtime equalization) and 10.8 as indicated.

11. Reporting Pay applies.

12. Working Out of Classification applies.

13. Seniority does not apply.

14. Promotion does not apply.

15. Layoff/Recall does not apply.

16. Holidays applies.

17. Vacation applies, except for 17.8 (vacation selection) and 17.14 (vacation cancellation).

18. Health and Life Insurance applies. Status quo as is currently provided for in the City's benefit plans (for example, concerning temporary job share employees in one-half of a full-time budgeted position).

19. Sick Leave applies, except that 19.6 (Industrial Accident Leave) is limited

to what is allowed at the time of the ratification of the successor to the 1988-92 contract.

20. Family Leave applies.
21. VEBA applies.
22. Leaves applies, except for:
22.2.2 Personal Leave of Absence, does not apply.
23. Jury Duty applies only as indicated.
24. Safety-Sanitation applies, except for 24.14 (right to non-driving position if driver's license is lost).
25. Union Representation applies.
26. Payday applies.
27. Strikes and Walkouts Barred applies.
28. Maintenance of Standards applies, however, the standards for temporaries may vary from that which applies to employees with regular status.
29. Wage Scales applies, but some provisions are not relevant.
30. Recoupment of Overpayment/Underpayment applies.
31. Clothing applies, except for 31.2 (safety shoes) as indicated.
32. Unemployment Compensation applies.
33. Training, Schools and Conventions applies.
34. Professional Development Fund does not apply.
35. Evaluations/Counseling does not apply except for 35.1 and 35.2.
36. Discipline and Discharge does not apply except as indicated.
37. Grievance Procedure applies except as limited by the provisions of Article 35.
38. Background Checks applies.
39. Savings Clause. No change resulting from extending representation to temporary employees.
40. Effective Date and Duration. No change resulting from extending representation to temporary employees.

Schedule A. Applies.

LETTERS OF AGREEMENT

LETTERS OF UNDERSTANDING/AGREEMENT – ALL BUREAUS

March 14, 1989

LETTER OF UNDERSTANDING

American Federation of State, County and Municipal Employees and the City of Portland

- I. PARTIES The parties to this Letter of Agreement are the City of Portland (hereinafter the City), and the American Federation of State, County and Municipal Employees (hereinafter AFSCME).
- II. PURPOSE This letter is to set forth the parties' intent as to the application of the provisions of the Labor Agreement, specifically:
 - Article 1. Recognition
 - Article 3. Dues Check-off
 - Article 12. Working Out of Classification
 - Article 13 Seniority
- III. AGREEMENT

- 1. The parties agree that the following definitions shall apply:

Temporary Upgrade -- Employees temporarily assigned to higher classifications; in some cases non-represented classifications

Temporarily Appointed -- Employees appointed to non-represented classifications by written Personnel Action Notice (PAN).

- 2. Employees who are temporarily upgraded shall receive compensation in accordance with the Labor Agreement and shall still retain status as a represented employee under the collective bargaining agreement.
 - 3. Employees who are temporarily appointed shall be notified in writing that pursuant to Article 11.4.3B that the provisions of the Labor Agreement (with the exception of Article 14.6) shall not apply to them.

4. Employees upon completion of the ninety (90) day period specifically mentioned in Article 14.6 shall no longer be required to pay Union dues.
5. After the 90-day period, AFSCME shall not be required to represent employees temporarily appointed to non-represented positions.
6. Employees who are temporarily appointed shall be given by the City a copy of this Letter of Agreement upon appointment and be required to sign a form acknowledging receipt of this Letter. A copy of that signed acknowledgment and PAN shall be sent to the Union.

Letter of Agreement
AFSCME Local 189 and the City of Portland

Effective, July 1, 2022, it is agreed between the City of Portland (City), the Bureau of Emergency Communications (BOEC) and AFSCME Local 189 (Union) that when a represented Business Systems Analyst I, II, or III employee at BOEC is assigned Stand-By Duty and is requested to carry a paging or other telecommunication device when assigned to stand-by, the employee shall receive pay for each one (1) hour of stand by time as indicated on the Rate of Compensation scale. All standby pay or compensatory time is earned at the straight time rate (1.0). The employee may elect to receive pay or compensatory time.

The rate of pay is based upon total hours of assigned Stand-By Duty per fiscal year and will apply as follows:

Rate of Compensation Scale	
Standby Duty Hours	Time Earned
1-864.99	0.125 hours for each one hour of standby duty
865-1684.99	0.15 hours for each one hour of standby duty
1685-2504.99	0.20 hours for each one hour of standby duty
2505+ hours	0.25 hours for each one hour of standby duty

If an employee is assigned to Stand-By Duty while on a city paid holiday, the employee will receive pay at the straight time rate (1.0) for each one hour of standby duty in accordance with the Rate of Compensation scale.

After-hours callout work performed while an employee is assigned to Stand-By Duty will be paid in accordance with Article 11.2, 11.2.1, and 11.2.4. It is expressly understood that, as part of this Agreement, Article 11.2 and 11.2.1 shall apply only when a BSA I, II, or III is required to physically report for a callout and that for all work performed remotely while on a callout, Article 11.2.4 shall apply. The bureau and the union representative(s) involved agree that either party may terminate the agreement at any time for any reason upon thirty (30) days written notice to the other party.

This agreement is in full effect for the life of the existing contract and will remain in full effect unless opened by either party at the end at the current contract.

LETTER OF AGREEMENT

The parties to this Letter of Agreement are the City of Portland (City) on behalf of the Bureau of Water Works (Bureau) and AFSCME Local 189 (Union) on behalf of the employees in the Water Security Specialist classification (Employees).

AGREEMENT

This Letter of Agreement authorizes the following alternative work schedules for Water Security Specialists.

1. The alternative schedule described as a bi-weekly rotation including three (3) twelve (12) hour workdays, one (1) eight (8) hour workday, three (3) days off, three (3) twelve (12) hour work days, and four (4) days off.
2. For FLSA purposes, the workweek for an employee with the work schedule described in section number one (1) shall begin at the midpoint of the eight (8) hour day.
3. For those employees with the work schedule described in No. 1 above, the provisions of Articles 8.1 and 9.2 in the current Labor Agreement are waived.
4. The alternative schedule described as a workweek consisting of four (4) consecutive ten (10) hour days and three (3) consecutive days off.
5. Either party may terminate this Letter of Agreement at any time for any reason upon thirty (30) days written notice to the other party. The employees will revert to a shift schedule established by the Bureau under Article 8.1.
6. When transitioning to new shifts and schedules following the implementation of this Letter of Agreement or by the termination of the schedule as provided for in No. 5, the City may not be able to schedule all employees for 40 hours in a workweek or two (2)

consecutive days off in order to begin the new shift configuration. The City will pay overtime in these situations only when required under the Fair Labor 201 Standards Act (FLSA).

This Letter of Agreement does not affect any other group of employees within the AFSCME bargaining unit.

The parties to this Letter of Agreement are the City of Portland (hereinafter the City) and the American Federation of State, County and Municipal Employees (hereinafter AFSCME).

Background

In order to ascertain the location of City vehicles equipment, the City has installed Global Positioning Systems (GPS). GPS also has the capacity to record vehicle speed, idling time, hard breaking of a vehicle. GPS can send alerts if a vehicle passes a certain location, exceeds a certain speed, or engages in hard breaking.

Agreement

1. The City will not use GPS data to discipline an employee for otherwise allowable activity during breaks and lunches.
2. The City may use GPS data for the purposes of discipline if there is a documented complaint, if an employee has a performance deficiency, if an employee has been counseled or disciplined for inappropriate use of City time, City resources or performance deficiencies, or if the City discovers an irregularity during a review conducted for reasons other than investigating for potential misconduct or performance deficiencies.
3. The City will notify its employees and the appropriate union when a bureau issues electronic devices, e.g., cell phones, computer tablets, handheld devices used by the Portland Bureau of Transportation Parking Enforcement Division, capable of determining the location of the device. Data from such a device may be used as outlined in #2 above.
4. The City and AFSCME have bargained to completion regarding the impact of installing GPS devices on City vehicles and this Agreement represents the entire agreement of the parties on that subject.
5. This agreement is in full effect for the life of the existing CBA and will remain in full effect unless either opened by either party during negotiations for a successor contract.

I. Parties to the Agreement

The parties to this Letter of Agreement (hereinafter referred to as “LOA”) are the City of Portland, (hereinafter referred to as “City”), and City of Portland Employees Union, Local 189, AFL-CIO (hereinafter referred to as “Union”).

II. Background

The City intends to classify the Business Systems Analyst classifications into specialties. As an example, the City may categorize the BSA work into specialized types such as Data Analysis, Project Management, Enterprise Information Technology, among other specialized categories.

The BHR Classification Compensation team will work with Bureaus to determine how to categorize the work and will update the classification specifications to define the work, distinguishing characteristics, the minimum qualifications, and required knowledge, skills, and abilities. The City reserves all management rights to classify the work and identify the necessary classification specifications.

Now, therefore, the parties mutually agree as follows:

I. Terms of Agreement

The City and Union agree to enter into a Letter of Agreement that:

1. Creates a subcommittee comprised of an equal number of management and labor representatives to identify how to place employees into the specialized classifications; and
2. Requires the parties to negotiate seniority in the new specialized classifications and define how that process works with from the final product to work with the existing Article 15 language.
3. The Union will withdraw all existing grievances with prejudice related to the alleged violations of Article 15.5 by the City related to layoff actions impacting employees in the Business Systems Analyst classifications. Employees affected by the grievance will maintain any recall rights they

are currently entitled to.

4. The Parties agree to maintain current contract language for Article 14 with the addition of the terms of the Letter of Agreement and the language proposed below.

Employees who return to City service into a classification with a lower rate of maximum pay within 6 months after layoff, but not through the recall process, will be placed at the rate of pay which represents the least or no reduction in pay for the employee, so long as the new rate is consistent with Oregon Law.

Employees who return to City service into a classification with a higher rate of maximum pay within six (6) months after layoff, but not through the recall process, will be placed at the rate of pay in accordance with Article 14.

5. The Union reserves the right to bargain the impacts of any proposed change to classifications.

Letter of Agreement

The parties to this Letter of Agreement are the City of Portland (City) on behalf of the Portland Water Bureau (PWB) and AFSCME Local 189 (Union).

Background

1. The City and the District Council of Trade Unions (DCTU) are parties to a collective bargaining agreement (CBA) for the period of July 1, 2021, through December 31, 2024. The Union involved (AFSCME) is an affiliated union of the DCTU. AFSCME is currently negotiating their own independent contract to be effective as of January 1, 2025.
2. In April 2022, the Portland Water Bureau (PWB) created a new Improved Corrosion Control Facility.
3. As a result, the Oregon Health Authority (OHA) reclassified Portland's drinking water treatment system to a Water Treatment Level 3 system on or about October 26, 2022.
4. Water Treatment Level 3 systems require a Water Treatment Level 3 license to operate.

Agreement

This Letter of Agreement outlines the terms and conditions for the PWB adding a Water Treatment Operator III classification to the Water Treatment Operator series and employee movement into the classification and including provisions for movement from WTO I (trainee) to WTO II.

1. A new Water Treatment Operator III (WTO III) classification (#30000148) was added to the Water Treatment Operator series on July 21, 2022.
2. The WTO III classification is represented by AFSCME Local 189.
3. Employees in the PWB hired prior to the signed date of this Agreement working in the Water Treatment Operator I (WTO I) classification who obtain a valid Oregon Health Authority Water Treatment Operator Class II certification will move to the Water Treatment Operator II (WTO II) classification through a CAPR process instead of the competitive recruitment process.

4. Employees in the PWB working in the Water Treatment Operator II (WTO II) classification who obtained a valid Oregon Health Authority Water Treatment Operator Class III certification are eligible to move to the WTO III classification through a CAPR process instead of the competitive recruitment process.
5. Employees moving from the WTO I classification into the WTO II classification, or from the WTO II classification into the WTO III classification, will be placed at the wage step as described in Article 14 of the current CBA, "Employees promoted to another City Classification are eligible to receive 3% promotional increase, or the next step in the higher classification, whichever is greater, though not to exceed the top step of the new classification".
6. Employees promoted under this Agreement will not be required to complete a probationary period.
7. The Job Class Anniversary Date (JCAD) for the employees covered under this Agreement moving into the WTO III classification will be July 21, 2022, or the date they obtain their Level III certification, whichever is later.
8. The existing order of job seniority for layoff and recall within the WTO II class will remain the same in the WTO III class for those employees covered under this Agreement. Note: There is a separate agreement which designates seniority in this workgroup is determined by series rather than classification.
9. The parties agree to meet and discuss any impacts to mandatory subjects of bargaining if the plant is upgraded to a Level 4 Water Treatment facility.
10. Retroactive payment applies from the latter date of either (a) the opening of the corrosion control facility, or (b) when the employee achieved the Water Treatment Level III Operator certification, to any employee reclassified to Level III according to the terms of this Agreement.
11. Separated employee, S.M (PERNR 1008018), will receive retroactive compensation for Water Treatment certifications obtained prior to the signing of this Agreement from July 21, 2022 through their separation date. Employee separated from City service August 16, 2024.

12. Schedule A Premium #11, Water Treatment Certifications, will be amended to read:
 - a. Employees in the Water Treatment Operator I classification shall receive certification pay upon acquiring and maintaining a Water Treatment Level 2 Operator at two percent (2%) added to the employee's base wage for all hours worked. Certification pay for Water Treatment Level 3 Operator shall be three percent (3%) added to the employee's base wage for all hours worked.
 - b. Employees in the Water Treatment Operator II classification are required to have and maintain certification as a Water Treatment Level 2 Operator. Certification pay for Water Treatment Level 3 Operator shall be three percent (3%) added to the employee's base wage for all hours worked. Certification for Water Treatment Level 4 Operator shall be four percent (4%) added to the employee's base wage for all hours worked.
 - c. Employees in the Water Treatment Operator III classification are required to have and maintain certification as a Water Treatment Level 3 Operator. Certification pay for Water Treatment Level 4 Operator shall be four percent (4%) added to the employee's base wage for all hours worked.
13. Upon ratification by City Council, the parties agree to a Water Treatment Operator III "Lead" assignment with the following criteria:
 - a. A WTO III will maintain their Water Treatment Level 4 Operator Certification premium pay when acting as a "Lead."
 - b. A crew of two or more is not required to receive "Lead" premium pay.
 - c. The City, on behalf of the Water Bureau, recognizes the value of assigning "lead" duties which are distinct from the duties of the WTOIII classification and must have potential impacts for the entire unit.
 - d. The City maintains the right to assign and approve employees for lead work.
 - e. Employees conducting lead work without prior management approval are not eligible for the lead premium.
 - f. The City maintains the right to determine what specific duties are "lead" duties which will be documented in a Water Bureau policy.

- 14. Implementation of this Agreement is dependent on the City’s ability to configure the SAP system. The City and the Union agree that the City will add this configuration to the existing project list.
- 15. This Agreement is based on the circumstances described above and does not constitute or create a precedent for any party to this Agreement.
- 16. This Agreement, unless stated above, does not go into effect until it is authorized by Portland City Council.

WTO III Pay rate
Fiscal Year 2022 – 2023 (effective July 21, 2022 with a Level III certification)

Entry	6 mo.	Year 1	Year 2	Year 3
35.03	38.09	40.22	42.67	45.24

Fiscal Year 2023 – 2024

Entry	6 mo.	Year 1	Year 2	Year 3
36.78	39.99	42.23	44.80	47.50

Fiscal Year 2024 – 2025

Entry	6 mo.	Year 1	Year 2	Year 3
38.75	42.14	44.49	47.21	50.05

March 2025

LETTER OF AGREEMENT AND SETTLEMENT OF CLAIMS

The Parties to this Letter of Agreement and Settlement of Claims("AGREEMENT") are the City of Portland ("City"), American Federation of State, County, and Municipal Employees (AFSCME), Local 189, and MB #58 (Automotive Equipment Operator I), CC #11 (Laboratory Analytical Specialist), KG #49 (Construction Equipment Operator), JH #35 (Automotive Equipment Operator I), DL #19 (Storekeeper/Acquisition Specialist I), LB #55 (Construction Equipment Operator), HER #25 (Automotive Equipment Operator I), LR #54 (Automotive Equipment Operator I), MW #60 (Automotive Equipment Operator I), CH #9 (Construction Equipment Operator), CL #12 (Construction Equipment Operator), KT #47 (Construction Equipment Operator), JV #39 (Construction Equipment Operator), RW #72 (Automotive Equipment Operator I), RA #69 (Automotive Equipment Operator I), AE #1 (Construction Equipment Operator), JL #44 (Construction Equipment Operator), and JR #40 (Automotive Equip Operator II: Sewer Vacuum (collectively, "Affected Employees"), (collectively "Parties").

RECITALS

This AGREEMENT is made with the understanding and agreement of the following:

A. WHEREAS, the City and AFSCME are parties to a Collective Bargaining Agreement (CBA), effective January 1, 2021 -December 31, 2024, under the CBA between the City and the District Council of Trade Unions (DCTU).

B. There are shared classifications with bargaining units represented by AFSCME 189 and Portland City Laborers that are at issue in this matter, and they are as follows: Automotive Equip Oper II: Sewer Vacuum; Automotive Equip Oper II: Tractor-Trailer; Automotive Equipment Oper I; Carpenter; Carpenter Lead; Carpenter, Apprentice; Concrete Finisher; Concrete Finisher, Apprentice; Concrete Finisher, Lead; Construction Equipment Operator; Horticulturist; Horticulturist, Apprentice; Horticulturist, Lead; Laboratory Analyst I; Laboratory Analyst II; Laboratory Analytical Specialist; Laboratory Coordinator; Maintenance Worker; Maintenance Worker Assistant; Parks Technician; Parks Technician, Lead; Storekeeper/Acquisition Specialist I; Storekeeper/Acquisition Specialist II; Storekeeper/Acquisition Specialist III; Storekeeper/Acquisition Specialist, Lead; Utility Worker I; Utility Worker II; and Utility Worker II, Apprentice (hereafter, "Shared Classifications").

C. WHEREAS, the Affected Employees are employees are members of the AFSCME 189 bargaining unit who work in Shared Classifications and sent tort claim notices to the City of a class action based on claims under ORS 652.220 *et. seq.* (Pay Equity law) and those Affected Employees are as follows: MB #58 (Automotive Equipment Operator I), CC #11 (Laboratory Analytical Specialist), KG #49 (Construction Equipment Operator), JH #35 (Automotive Equipment Operator I), DL #19 (Storekeeper/Acquisition Specialist I), LB #55 (Construction Equipment Operator), HER #25 (Automotive Equipment Operator I), LR #54 (Automotive Equipment Operator I), MW #60 (Automotive Equipment Operator I), CH #9 (Construction Equipment Operator), CL #12 (Construction Equipment Operator), KT #47 (Construction Equipment Operator), JV #39 (Construction Equipment Operator), RW #72 (Automotive Equipment Operator I), RA #69 (Automotive Equipment Operator I), AE #1 (Construction Equipment Operator), JL #44 (Construction Equipment Operator), and JR #40 (Automotive Equipment Operator II: Sewer Vacuum).

D. WHEREAS, AFSCME 189 is the sole and exclusive bargaining representative for all AFSCME 189 members of the DCTU listed in Schedule A of the CBA, including the Affected Employees.

E. WHEREAS, the City, AFSCME 189, and Affected Employees disagree on the interpretation of the Pay Equity law, and the City denies and disputes the claims of Affected Employees as reflected in the November 18, 2024, November 27, 2024, December 5, 2024, and January 21, 2025, tort claim notices (“Notices”), but the Parties want to amicably resolve the matter.

F. WHEREAS, to amicably resolve the matter, the CITY is willing to provide Affected Employees and AFSCME with the consideration described below and as provided for in the attached Exhibit B, in exchange for Affected Employees’ and AFSCME 189’s waiver, satisfaction, and release of claims as provided for in this Agreement.

AGREEMENT

The Parties agree as follows:

1. This Agreement shall be effective once all signatories have executed it.
2. Affected Employees and others represented by AFSCME 189 as listed in Exhibit B who are in Shared Classifications will be brought to parity with Portland City Laborers wage scales upon ratification, with implementation of the wages occurring as of March 5, 2025.

3. Effective and conditional on ratification by City Council of the successor collective bargaining agreement (CBA) between the City and AFSCME 189 for a CBA that adopts the terms and conditions of employment reflected in the tentative agreement between the City and AFSCME 189 dated February 5, 2025 and inclusive of any updates tentatively agreed on by the City and AFSCME 189, and within a reasonable time thereafter but no later than April 30, 2025, the City will compensate all AFSCME members in a lump sum amount as described in Exhibit B.

4. Conditional on the City's payment of compensation as described in Section 3, the Affected Employees, as individual tort claimants as reflected in the tort claim notices dated November 18, 2024, November 27, 2024, December 5, 2024, and January 21, 2025, accept the lump sum payments reflected in Exhibit B as full satisfaction for any and all claims against the City under the Oregon Equal Pay Act that the Affected Employees may have as of March 5, 2025 and hereby waive and agree not to seek any further compensation or other remedies for such claims up through March 5, 2025.

5. The lump sum amount as stated in Exhibit B will be included in the paychecks of those employees listed in Exhibit B, which includes Affected Employees, and will not be provided on a separate check.

6. Conditional on the City's payment of compensation as described in Section 3, the Union will cease any voluntary involvement in any claims described in the tort notices filed to date under the Oregon Pay Equity law for wages owed to employees or any other claims to date for bargaining unit employees and will decline and not seek any further monetary damages or compensation in any forum including any pending actions before the Oregon Employment Relations Board.

7. This Agreement resolves a disputed issue with no Party admitting that such agreement is necessitated by any obligation under the Pay Equity law, Public Employees Collective Bargaining Act, or the collective bargaining agreement between the City and AFSCME 189, and it represents the full agreement of all Parties under the terms stated herein.

8. This Agreement is entered into on a nonprecedent-setting basis and the Parties agree it will not be used in the future as a basis for future settlements, in litigation, or to support a position in bargaining.

Exhibit B – Lump Sum Calculations

Number	Hourly Wages	Leave	Overtime	Premium pay	Holiday premium 1.5	Total Pre- tax lump sum
1	5,258	1,854	769	189	19	8,089
2	7,955	2,510	4,445	910	89	15,909
3	2,308	284	31	-	-	2,623
4	2,743	619	-	-	-	3,362
5	3,574	425	65	7	-	4,071
6	3,774	804	4	13	-	4,595
7	1,981	851	71	-	-	2,903
8	3,071	446	-	-	-	3,517
9	9,920	2,306	3,961	819	19	17,025
10	2,369	914	639	-	58	3,980
11	3,710	861	48	23	-	4,642
12	6,631	2,055	3,430	654	61	12,831
13	5,405	1,502	914	301	69	8,191
14	1,763	1,245	320	90	62	3,480
15	2,645	707	14	4	7	3,377
16	4,263	907	185	182	-	5,537
17	2,570	710	6	2	31	3,319
18	2,257	391	-	-	-	2,648
19	2,627	729	349	8	29	3,742
20	1,225	102	243	4	30	1,604
21	2,738	629	802	3	91	4,263
22	2,586	551	652	111	5	3,905
23	5,335	1,727	515	195	-	7,772
24	3,420	308	769	111	31	4,639
25	8,196	2,704	2,755	616	110	14,381
26	5,326	1,448	117	3	-	6,894
27	8,483	2,405	4,904	1,015	114	16,921
28	5,562	1,626	-	-	-	7,188
29	3,943	496	9	11	-	4,459
30	5,451	1,201	-	4	-	6,656
31	2,549	387	17	-	-	2,953
32	5,477	1,557	898	34	-	7,966
33	2,896	622	195	-	16	3,729
34	2,330	606	137	-	-	3,073
35	8,614	2,275	-	-	-	10,889
36	8,289	2,644	805	7	16	11,761
37	3,445	620	35	25	15	4,140
38	5,580	1,480	2,233	219	86	9,598
39	5,366	1,654	2,645	627	83	10,375
40	12,449	3,741	4,126	223	-	20,539
41	502	46	2	-	-	550
42	5,732	1,006	62	-	-	6,800
43	2,395	758	127	48	2	3,330
44	5,497	1,580	1,980	207	94	9,358
45	1,283	101	482	48	9	1,923
46	6,962	2,585	5,361	848	39	15,795
47	3,844	2,102	691	12	15	6,664
48	5,720	1,165	-	15	-	6,900
49	5,821	1,230	2,759	514	53	10,377
50	4,883	1,734	1,137	167	48	7,969
51	7,853	2,318	2,880	367	126	13,544
52	2,533	407	-	-	-	2,940
53	3,459	1,008	7	26	-	4,500
54	10,427	2,900	7,041	984	166	21,518
55	5,975	1,111	891	268	-	8,245
56	3,336	749	-	-	-	4,085
57	5,291	1,721	1,987	465	15	9,479
58	8,676	2,261	2,835	410	210	14,392
59	3,964	628	60	-	43	4,695
60	8,408	2,505	3,882	195	111	15,101
61	5,514	1,574	2,064	105	112	9,369
62	3,171	429	112	5	-	3,717
63	1,176	174	-	-	-	1,350

64	6,599	1,754	1,519	60	47	9,979
65	2,691	245	6	-	-	2,942
66	2,336	1,694	21	-	-	4,051
67	6,876	1,779	2,193	55	15	10,918
68	5,686	1,399	442	2	-	7,529
69	7,915	2,676	4,674	338	51	15,654
70	8,218	2,340	468	-	-	11,026
71	3,440	1,152	-	-	-	4,592
72	8,877	1,963	3,037	820	154	14,851
73	7,156	1,799	108	3	42	9,108
74	1,152	221	-	-	-	1,373
75	5,458	1,779	260	257	-	7,754
76	5,134	1,891	1,850	383	121	9,379
77	5,639	1,415	107	-	28	7,189
78	2,636	431	17	-	-	3,084
79	2,638	747	594	8	50	4,037
80	8,042	2,286	196	5	-	10,529
81	8,165	2,656	95	105	-	11,021
82	5,469	1,494	775	2	-	7,740
83	5,463	1,420	-	2	-	6,885
84	3,335	628	286	19	45	4,313
85	2,648	720	-	-	-	3,368
86	11,769	2,593	-	53	-	14,415
87	3,284	378	52	6	-	3,720
88	905	141	75	33	-	1,154
89	2,241	880	50	40	-	3,211
90	4,868	-	275	-	-	5,143
	435,146	115,476	88,568	13,285	2,637	655,112

Letter of Agreement

This Letter of Agreement (LOA) is between the City of Portland (City) and the American Federation of State County Municipal Employees, Local 189 (AFSCME).

Background

1. The City and AFSCME are parties to a collective bargaining agreement (CBA) effective January 1, 2025, through December 31, 2027.
2. Article 21 requires AFSCME to establish a retirement medical trust for the purpose of providing the payment of life, sick, accident or other benefits to its members. The trust will be known as the AFSCME Local 189 Voluntary Employee Beneficiary Association (VEBA).
3. Under Article 21 the VEBA will be funded through withholding a percentage of base pay from AFSCME members' gross wages per pay period. AFSCME is required to determine the withholding percentage by July 1, 2025. The City is required to implement withholding the percentage determined by AFSCME effective the first pay period after January 1, 2026.
4. AFSCME wants to amend Article 21 to provide more time to establish the AFSCME Local 189 VEBA. The additional time will allow AFSCME to engage its full membership to determine the percentage to be withheld.

Agreement

The Parties agree as follows:

1. Article 21 of the AFSCME CBA will be amended to the following;

The Effective the first pay period after January 1, 2026, the City will allow AFSCME 189 members to participate in a Plan(s) which is defined to include a Voluntary Employee Beneficiary Association (VEBA), a Section 457 plan, or any other form of non-qualified deferred compensation program. AFSCME Local 189's members' participation in the plan will start no earlier than the first pay period after January 1, 2026.

AFSCME Local 189 will establish a retirement medical trust (the AFSCME Local 189 VEBA) for the purpose of providing for the payment of life, sick, accident or other benefits to its members. The AFSCME Local 189 VEBA will receive tax-exempt status from the Internal Revenue Service under Section 501(c)(9) of the Internal Revenue code. The City will withhold a percentage of base pay from each individual AFSCME member's gross wages per pay period to be determined by AFSCME and submitted to the City ~~by July 1, 2025~~. This amount shall be contributed on the member's behalf to the AFSCME Local 189 VEBA each pay period or monthly, the interval to be determined by the City. The withholding will be made on a pre-tax basis. The City will begin withholding the percentage submitted by AFSCME at the start of a pay period, no more than 6 months after the submission by AFSCME.

2. This LOA does not modify any other term, provision, or practice of the CBA except as specifically stated herein.
3. This LOA does not set a precedent.
4. This LOA will not take effect until after it has been signed by all Parties.

Signatures:

For the City:

For the Union:

Signed by:			
	5/30/2025		
17BABF3A51194CD...	Date	Rob Martineau,	Date
Director of Human Resources		AFSCME, Local 189 President	

Approved as to Form:

Signed by:		
	5/29/2025	
44CE42E08D1C4C8...	Date	
Sr. Deputy City Attorney		

Signed by:
Keith Wilson 5/31/2025
F65FA440482B41E...

Signed by:
Simone Rede 6/2/2025
B605FE20E98A442...

Signed by:
Tracy Warren 5/29/2025
17BA8F2A51194CD...
Tracy Warren
Director, Bureau Human

Signed by:
Matthew Farley 5/29/2025
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Matt Farley
Senior Deputy City

For the Union:
Chris Edwards 4/10/25
Karl Edwards
AFSCME 189 Business
Representative
Chris Flanary 4/14/25
Chris Flanary
AFSCME Bargaining Team
Member
Chris Richard 4/14/25
Chris Richard
AFSCME Bargaining Team
Member
Tara Carlson 4.14.25
Tara Carlson
AFSCME Bargaining Team
Member
Anna Cowen 4/16/2025
Anna Cowen
AFSCME Bargaining Team
Member
Codie Larsen 4/16/2025
Codie Larsen
AFSCME Bargaining Team
Member
Stephanie Romine 4/14/25
Stephanie Romine
AFSCME Bargaining Team
Member
Rob Martineau 4-10-2025
Rob Martineau
AFSCME, Local 189 President

OREGON AFSCME



UNION LABEL